



# THE OFFICIAL GAZETTE

## OF THE COLONY AND PROTECTORATE OF KENYA

Published under the Authority of His Excellency the Governor of the Colony and Protectorate of Kenya

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## GOVERNMENT NOTICE No. 1655

The Governor in Council has approved of the introduction of the following Bill into Legislative Council.

A. W. PURVIS,  
*Clerk of the Legislative Council.*

**A BILL ENTITLED  
AN ORDINANCE TO AMEND THE CRIMINAL  
PROCEDURE CODE AND TO MAKE CERTAIN  
VALIDATING PROVISION IN CONNEXION  
THEREWITH**

ENACTED by the Governor of the Colony of Kenya,  
with the advice and consent of the Legislative Council thereof,  
as follows:—

Short title.

1. This Ordinance may be cited as the Criminal Procedure Code (Amendment and Validation) Ordinance, 1955, and shall be read and construed as one with the Criminal Procedure Code, hereinafter referred to as "the Code".

Cap. 27.

Insertion of  
new section 6A  
in the Code.

2. The Code is amended by inserting therein, immediately after section 6 thereof, a new section as follows— 5

Sentences  
which a  
Senior  
Resident  
Magistrate  
may pass.

6A. Subject to the provisions of Part VII of this Code, a subordinate court of the first class presided over by a Senior Resident Magistrate, or by any Resident Magistrate upon whom the Governor has, by notice in the Gazette, conferred such power, may, 10 in cases in which such sentences are authorized by law, pass the following sentences, namely—

(a) imprisonment for a term not exceeding seven years; 15

(b) fine not exceeding ten thousand shillings;

(c) corporal punishment not exceeding twenty-four strokes:

Provided that no sentence exceeding three years' imprisonment (whether such sentence shall be 20 a substantive sentence of imprisonment or a sentence of imprisonment in default of payment of a fine, or costs, or compensation, or a combination of such sentences), or sentence exceeding twelve strokes shall be carried into effect, and no order 25 for payment of a sum of money exceeding three thousand shillings (whether by way of fine or costs, or compensation or any combination thereof), shall be executed, until the record of the case or a certified copy thereof has been transmitted to, and the 30 sentence has been confirmed by, the Supreme Court.

Amendment  
of section 7  
of the Code.

3. Section 7 of the Code is amended by substituting for the expression "Subject to the provisions of Part VII of this Code," which appears therein, the expression "Subject to 35 the provisions of section 6A, and subject to the provisions of Part VII, of this Code,".

4. Section 45 of the Code is amended by substituting the expression “; or” for the comma which appears at the end of paragraph (f) therein and by adding immediately thereafter a new paragraph as follows—

Amendment  
of section 45  
of the Code.

- 5 (g) is a member of an unlawful society within  
the meaning of sub-section (2) of section  
69 of the Penal Code.,

Cap. 24.

5. The Code is amended by inserting therein, immediately after section 182 thereof, a new section as follows—

Insertion of  
new section 182A  
in the Code.

- 10 182A. Where a person is charged with an  
offence under sub-section (1) of section 62 of the  
Persons charged with administering oaths may be convicted of being present at administration, etc.  
15 Penal Code, and the court is of opinion that he is  
not guilty of that offence but is guilty of another  
offence under the same sub-section, he may be con-  
victed of that other offence although he was not  
charged with it.  
Cap. 24.

6. Section 194 of the Code is amended—

Amendment  
of section 194  
of the Code.

- 20 (a) by inserting the words “on a typewriter” immediately  
after the word “writing” which appears in para-  
graph (a) in sub-section (1) thereof;
- (b) by inserting therein, immediately after sub-section (1)  
thereof, a new sub-section as follows—

- 25 (1A) Notwithstanding the provisions of sub-sec-  
tion (1) of this section, a record of any proceedings  
at any inquiry or trial (other than trials under sec-  
tion 197) by or before a magistrate may be taken  
in shorthand if the magistrate so directs; a transcript  
of such shorthand shall be made if the magistrate  
so orders, and such transcript shall form part of the  
30 record.

7. Sub-section (4) of section 197 of the Code is amended  
by substituting for the words “three months” and “four hun-  
dred”, which appear therein, the words “six months” and  
“eight hundred” respectively.

Amendment  
of section 197 (4)  
of the Code.

35 8. Sub-section (1) of section 344 of the Code is amended  
by substituting for paragraphs (a), (b) and (c) therein the fol-  
lowing new paragraphs—

Amendment  
of section 344 (1)  
of the Code.

- (a) to reside within the limits of any specified area;
- 40 (b) not to transfer his residence to any other area with-  
out the written consent of the district commissioner  
or police officer in charge of the district in which  
such area is situate;
- 45 (c) not to leave the area in which he resides without the  
written consent of the district commissioner or  
police officer in charge of the district in which such  
area is situate;.

9. Section 349 of the Code is amended by substituting  
the word “fourteen” for the word “thirty” which appears  
therein.

Amendment  
of section 349  
of the Code.

50 10. Section 350 of the Code is amended by substituting  
for sub-section (2) thereof a new sub-section as follows—

Amendment  
of section 350 (2)  
of the Code.

- (2) Every petition of appeal shall be signed, if the  
appellant is not represented by an advocate, by the  
appellant, and, if the appellant is represented by an advo-  
cate, by such advocate, shall contain particulars of the

matters of law or fact in regard to which the subordinate court appealed from is alleged to have erred, and shall specify an address at which any notices or documents connected with the appeal may be served on the appellant or, as the case may be, on his advocate; and the appellant shall not be permitted, at the hearing of the appeal, to rely on any ground of appeal other than those set forth in the petition of appeal:

Provided that—

- (i) subject to the provisions of paragraph (ii) of this proviso, where, within five days of the date of the judgment or order appealed against, the appellant or his advocate has applied to the subordinate court which passed such judgment or made such order for a copy of the record of the proceedings before such court, and where the appeal is entered within the period of limitation prescribed by section 349 of this Code but before receipt by the appellant or his advocate of the aforesaid copy of the record, the petition of appeal may be amended, on notice in writing to the Registrar of the Supreme Court and to the Attorney General and without leave of the Supreme Court, within seven days of the receipt by the appellant or his advocate of the copy of the record applied for;
- (ii) the provisions of paragraph (i) of this proviso shall not apply in any case in which the petition of appeal is signed by an advocate who represented the appellant in the proceedings before the subordinate court appealed from;
- (iii) where in any case a copy of the record of the proceedings before the subordinate court appealed from is applied for by the appellant or his advocate, the date of the receipt thereof by the appellant or his advocate shall be certified to the Supreme Court by the said subordinate court and shall for the purposes of this subsection be deemed to be—
  - (a) if the said copy of the record be delivered otherwise than by post, the date of such delivery; and
  - (b) if the said copy of the record be delivered by post, the date on which it is shown, on an advice of the delivery of a registered postal article issued under sub-regulation (3) of regulation 34 of the East African Postal Regulations, 1953, or any provision of law amending or replacing the same, to have been delivered,
- and no such copy of a record shall be delivered by post otherwise than by registered post;
- (iv) save as provided in paragraph (i) of this proviso, a petition of appeal may only be amended with the leave of the Supreme Court and on such terms and conditions, whether as to costs or otherwise, as the Supreme Court may see fit to impose;
- (v) notice in writing of an application for leave to amend a petition of appeal shall be given to the Registrar of the Supreme Court and to the

5 Attorney General not less than three clear days, or such shorter period as the Supreme Court may in any particular case allow, before the application is made; and an application for leave to amend a petition of appeal shall be made either at the hearing of the appeal or, if made previously, by way of motion in open court.

11. (1) The First Schedule to the Code is amended—

Amendment  
of First  
Schedule to  
the Code.

10 (a) by substituting for the words "Administering or taking oath to commit capital offence.", which appear in the second column thereof in respect of section 61 of the Penal Code, the words "Presence at and consent to administration of, or taking, oath to commit capital offence.";

15 (b) by inserting, immediately after the item in respect of section 61 of the Penal Code, a new item as follows—

| (1) | (2)                                                          | (3)                         | (4)    | (5) |
|-----|--------------------------------------------------------------|-----------------------------|--------|-----|
| 61A | Administration of unlawful oaths to commit capital offences. | May arrest without warrant. | Death. | —   |

20 (c) by substituting for the item therein in respect of section 116 of the Penal Code a new item as follows—

| (1)     | (2)                                        | (3)                         | (4)                                          | (5)             |
|---------|--------------------------------------------|-----------------------------|----------------------------------------------|-----------------|
| 116 (1) | Offences relating to judicial proceedings. | May arrest without warrant. | Imprisonment for three years.                | Any magistrate. |
| (2)     | If offence committed in view of court.     | —                           | Fine of one thousand four hundred shillings. | Any magistrate. |

(d) by substituting for the item therein in respect of section 132 of the Penal Code a new item as follows—

| (1) | (2)   | (3)                         | (4)                                                        | (5) |
|-----|-------|-----------------------------|------------------------------------------------------------|-----|
| 133 | Rape. | May arrest without warrant. | Imprisonment for life with or without corporal punishment. | —   |

25 (e) by inserting, immediately after the item in respect of section 233 of the Penal Code, a new item as follows—

| (1)  | (2)           | (3)                         | (4)                         | (5)                                   |
|------|---------------|-----------------------------|-----------------------------|---------------------------------------|
| 233A | Intimidation. | May arrest without warrant. | Imprisonment for ten years. | Subordinate court of the first class. |

(f) by substituting for the item therein in respect of section 333 of the Penal Code a new item as follows—

| (1) | (2)                                                                                  | (3)                         | (4)                              | (5)                                   |
|-----|--------------------------------------------------------------------------------------|-----------------------------|----------------------------------|---------------------------------------|
| 333 | Killing or wounding animal—<br>if stock as defined in section 273 of the Penal Code. | May arrest without warrant. | Imprisonment for fourteen years. | Subordinate court of the first class. |
|     | in any other case.                                                                   | May arrest without warrant. | Imprisonment for three years.    | Subordinate court of the first class. |

and



(g) by substituting for the first two items under the heading "OFFENCES AGAINST OTHER LAWS" therein the following items—

| (1) | (2)                                                                                | (3)                         | (4) | (5)                                   |
|-----|------------------------------------------------------------------------------------|-----------------------------|-----|---------------------------------------|
| —   | If punishable with death or imprisonment for more than ten years.                  | May arrest without warrant. | —   | —                                     |
| —   | If punishable with imprisonment for three years or upwards, but not more than ten. | May arrest without warrant. | —   | Subordinate court of the first class. |

(2) The First Schedule to the Code is further amended—

(a) by substituting in the fourth column thereof the words 5  
set forth in the third column of the Schedule to this Ordinance for the words set out in the second column of the said Schedule (being words now appearing in the said fourth column) in respect of the sections of the Penal Code specified in the first column of the 10  
said Schedule and in the first column of the said First Schedule;

(b) by inserting in the fifth column thereof the words  
"Subordinate court of the first class." in respect of  
the following sections of the Penal Code— 15

219, 227, 229, 231, 232, 253, 255, 256, 334 (2)  
and 334 (3).

Continuation  
of 1950 jury  
or assessor list.

12. Notwithstanding the provisions of sections 260, 263 and 264 of the Code, the triennial list of jurors or assessors prepared in 1950 and published in the Gazette in 1951 shall 20  
be deemed to be, and at all times since then to have been, the current and valid list of jurors or assessors, as the case may be, pending the preparation of a new list not later than the 30th June, 1956; and no trial of any person shall be deemed to be, or at any time to have been, invalid or 25  
open to any objection by reason only of the fact that the provisions of the said sections have not been complied with.

## SCHEDULE

(Section 11)

| (1)     | (2)                                                  | (3)                         |
|---------|------------------------------------------------------|-----------------------------|
| 54 (1)  | two thousand                                         | eight thousand              |
| 54 (2)  | one thousand                                         | four thousand               |
| 55 (1)  | one thousand                                         | four thousand               |
| 58 (1)  | two thousand                                         | eight thousand              |
| 58 (2)  | one thousand                                         | four thousand               |
| 62      | seven years                                          | ten years                   |
| 62A (1) | seven years                                          | ten years                   |
| 62A (2) | seven years                                          | ten years                   |
| 70      | seven years                                          | fourteen years              |
| 71      | three years                                          | seven years                 |
| 81      | five years                                           | life                        |
| 82      | ten or five years                                    | life                        |
| 91      | one year                                             | three years                 |
| 91      | two years                                            | four years                  |
| 92      | two thousand                                         | six thousand                |
| 112     | two years                                            | five years                  |
| 124     | six months or a fine<br>of one thousand<br>shillings | three years                 |
| 172 (4) | one hundred                                          | three hundred               |
| 172 (4) | four hundred                                         | one thousand two<br>hundred |

## SCHEDULE—(Contd.)

| (1)     | (2)           | (3)                       |
|---------|---------------|---------------------------|
| 175     | four thousand | five thousand             |
| 175A    | four thousand | five thousand             |
| 177     | two thousand  | seven thousand            |
| 178     | forty         | one hundred               |
| 180 (1) | two hundred   | six hundred               |
| 180 (2) | four hundred  | one thousand two hundred  |
| 180 (3) | two thousand  | six thousand              |
| 218     | seven years   | life                      |
| 219     | seven years   | ten years                 |
| 230     | seven years   | life                      |
| 233     | three years   | five years                |
| 240     | two thousand  | six thousand              |
| 258     | four thousand | fourteen thousand         |
| 273     | ten years     | fourteen years            |
| 274     | seven years   | fourteen years            |
| 289     | one thousand  | three thousand            |
| 293     | three years   | five years                |
| 297     | five years    | ten years                 |
| 303     | three years   | five years                |
| 303     | seven years   | ten years                 |
| 320 (2) | four hundred  | one thousand four hundred |
| 334 (1) | two years     | five years                |
| 334 (7) | seven years   | ten years                 |
| 334 (8) | seven years   | ten years                 |
| 338     | four hundred  | one thousand two hundred  |
| 339     | four hundred  | one thousand two hundred  |
| 365     | two thousand  | eight thousand            |
| 375     | one thousand  | three thousand            |
| 385     | six thousand  | twenty thousand           |
| 386     | ten thousand  | thirty thousand           |

## MEMORANDUM OF OBJECTS AND REASONS

This Bill makes a number of miscellaneous amendments to the Criminal Procedure Code, all of which are in substance the same as or similar to amendments which have been made to the Code by Emergency (Amendment of Laws) Regulations during the course of the Emergency; it also regularizes an omission to comply with certain directions of the Code in regard to revision of the list of jurors and assessors.

*Clause 2* adds a new section 6A to the Code to empower Senior Resident Magistrates to pass sentences greater than those which may be passed by other Resident Magistrates or by other Magistrates holding subordinate courts of the first class; the new section also increases the limits of punishments above which sentences passed by the Senior Resident Magistrates require confirmation by the Supreme Court before being carried into effect. The increase in the powers of punishment is from three to seven years' imprisonment, and the new limits above which confirmation is required are three years' imprisonment or a fine of Sh. 3,000, compared with the normal limits, in the case of other Resident Magistrates or First Class Magistrates, of 12 months' imprisonment or a fine of Sh. 1,000. This increase in the powers of punishment of Senior Resident Magistrates, and the raising of the limits above which confirmation of sentences is required, will reduce the burden of work on the Supreme Court. Provision is included in the new section for the extended jurisdiction to be conferred selectively on Resident Magistrates other than Senior Resident Magistrates. *Clause 3* makes a consequential amendment to section 7 of the Code.

Section 45 of the Code enables a Magistrate, when he is informed on oath that any person within the local limits of his jurisdiction is an habitual offender or comes within certain categories set out in the section, to require that person to show cause why he should not give security for good behaviour. It is considered that this power should be extended so as to be applicable to a person who is stated on oath to be a member of an unlawful society, and *clause 4* amends the section to effect this purpose.

Section 62 of the Code makes it an offence to administer certain oaths and also to be present at and consent to such administration. Experience has shown that the evidence against a person charged with one of these offences may be insufficient to justify a conviction on that charge but adequate to sustain a conviction for the other offence, with which he has not been specifically charged. *Clause 5* of the Bill inserts a new section 182A into the Code to enable the alternative conviction to be recorded in such circumstances.

Section 194 of the Code deals with the recording of evidence in inquiries and trials before subordinate courts and requires that the evidence of witnesses shall be taken down "in writing" by the Magistrate or in his presence and hearing and under his personal direction. *Clause 6* amends this section to provide that evidence may be recorded by typewriter or in shorthand, and, in the latter case, that a transcript of the shorthand note shall form part of the record of the case.

*Clause 7* amends section 197 of the Code to enhance the maximum punishment which may be imposed upon the summary trial of minor offences under that section.

Section 244 (1) of the Code specifies the requirements which may be imposed upon persons subject to police supervision and paragraphs (a), (b) and (c) of that sub-section provide that a court may direct such a person to reside within a specified district and not to move his residence within the district, or leave the district, without permission. Technically, the word "district" in this context means an administrative district, and *clause 8* amends the section so as to enable a court to restrict such persons under the said paragraphs to an area less than that of the whole of an administrative district. The purpose of the amendment is to facilitate and increase the effectiveness of police supervision, where ordered under the section.

*Clauses 9* and *10* amend sections 349 and 350 of the Code in relation to appeals from subordinate courts to the Supreme Court and reproduce, as permanent amendments of the Code, the procedure for such appeals which has been operative during the Emergency by reason of amendments effected by Emergency Regulations. The period for appealing is reduced from 30 to 14 days and the necessary provisions for amendment of grounds of appeal are included, particularly in regard to cases in which appeals have to be entered before the record of the trial has been received from the subordinate court against whose decision the appeal is entered.

*Clause 11* amends the First Schedule to the Code consequentially upon the amendments to the Penal Code which have been made by amending Ordinances since 1952.

Sections 260 and 263 of the Code require the Registrar of the Supreme Court to prepare and publish in the Gazette lists of persons who are liable to serve as jurors or assessors, a main list once every three years and an interim or supplementary list in each of the intervening years. A main list was prepared in 1950 and published in 1951, but owing to the exigencies of the Emergency, and the very great pressure of work upon the Courts resulting therefrom, no revised lists have been prepared or published since then. During the war the operation of these sections was suspended, but although the pressure on the Supreme Court Registry has been far greater during the Emergency than it was during the war, it is considered preferable to preserve the operation of the last list by positive enactment rather than to suspend the operation of these sections retrospectively. A new main list is in preparation and will be completed and published in 1956 in conformity with the provisions of the Code: 1956 is a year in which a main list should be prepared. *Clause 12* of the Bill, accordingly, makes the necessary provision for this, and, for the avoidance of doubt, expressly confirms the validity of jury and assessor trials during the period in question.

No expenditure of public money will be incurred if this Bill is enacted.

Nairobi,  
28th November, 1955.

E. N. GRIFFITH-JONES,  
*Attorney General.*





# THE OFFICIAL GAZETTE

## OF THE COLONY AND PROTECTORATE OF KENYA

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## CORRIGENDA

Government Notice No. 1010 appearing on page 714 of the Official Gazette dated 19th July, 1955:—

No. 5 of the Schedule—

for "Mission or Department—Embu District Education Board" read "Mission or Department—African Anglican Church".

Government Notice No. 1498 appearing on page 1156 of the Official Gazette dated 1st November, 1955—

for William Henry Ritchie read William Hamilton Ritchie.

Government Notice No. 1500 appearing on page 1157 of the Official Gazette dated 1st November, 1955—

for Arthur Jones Donaldson read Arthur James Donaldson.

for Denis William Shaw read Dennis William Shaw.

GOVERNMENT NOTICE No. 1656

## APPOINTMENTS

OSCAR JACK MASON to act as Senior Labour Officer (Headquarters), with effect from 27th September, 1955.

JOHN PHILLIPS WEBBER to act as Senior Crown Counsel, with effect from 25th November, 1955.

JOHN IVAN BATTERBEE to be Office Superintendent/Revenue Officer, Thika District, Central Province, with effect from 3rd September, 1955.

CHARLES ARNOLD RENNEY to be Administrative Assistant, Thika District, Central Province, with effect from 14th October, 1955.

ROGER EDWARD COCKETT to be District Officer, Kikuyu Guard, Thika District, Central Province, with effect from 21st September, 1955.

ARTHUR GRAHAM DUDLESTON to be District Officer (African Home Guard), Laikipia District, Rift Valley Province, with effect from 19th November, 1955.

JOHN ROBERT GATES to be District Officer (African Home Guard), Laikipia District, Rift Valley Province, with effect from 17th November, 1955.

COLIN CAMPBELL, O.B.E., to be District Commissioner, Machakos District, Southern Province, with effect from 7th November, 1955.

JOHN PINNEY to be District Commissioner, Fort Hall District, Central Province, with effect from 16th November, 1955.

JOHN PINNEY to be Officer-in-Charge of the Fort Hall Special District as defined in Proclamation No. 37 of 1952, with effect from 16th November, 1955.

GEORGE ALEXANDER GRAHAM ADAMSON to be District Officer (Emergency), with effect from 1st May, 1955.

JOHN HENRY REISS resumed duty on return from leave as Director of Information, with effect from 23rd November, 1955.

FRANCIS WILLIAM GOODBODY to act as Civil Secretary, Police, Police Department, with effect from 7th November, 1955.

HUGH REDMAYNE WALKER to act as Assistant Commissioner of Police, with effect from 16th November, 1955.

JOHN HARRY BAKER to act as Senior Superintendent of Police, with effect from 16th November, 1955.

MERVYN COLIN MANBY to act as Senior Superintendent of Police, with effect from 1st November, 1955.

RONALD HENRY MUNRO, LL.B., to be Deputy Registrar General and Deputy Public Trustee, with effect from 1st December, 1955.

## PROMOTIONS

ERIC ROBERT NATHANIEL COOKE, B.A., M.D., to be Specialist (Pathologist), with effect from 1st July, 1955.

FREDERICK CHARLES BROOKES to be Deputy Commissioner of Police, with effect from 1st November, 1955.

JOHN VINCENT PRENDERGAST, G.M., to be Assistant Commissioner of Police, with effect from 7th March, 1955.

DOUGLAS DAVID PEDLER CRACKNELL, O.B.E., to be Assistant Commissioner of Police, with effect from 1st May, 1955.

## REVERSIONS

ALASTAIR CAMERON BROWN REID ceased to act as Senior Crown Counsel, with effect from 25th November, 1955.

RUPERT NORMAN WATKINS-PITCHFORD ceased to act as Director of Information, with effect from 23rd November, 1955.

PATRICK THOMAS LOGAN ceased to act as Civil Secretary, Police, Police Department, with effect from 30th November, 1955.

LAURENCE NOEL LEACH ceased to act as Deputy Registrar General and Deputy Public Trustee, with effect from 1st December, 1955.

BHAILALBHAI PRABHUDAS PATEL ceased to act as Assistant Registrar General, with effect from 1st December, 1955.

JOE HUBERT D'MELLO ceased to act as Estate Duty Officer, with effect from 1st December, 1955.

## RELINQUISHMENT

GEORGE ALEXANDER GRAHAM ADAMSON ceased to be District Officer (Emergency), with effect from 1st November, 1955.

## CORRIGENDUM

Government Notice No. 1382 of the Official Gazette dated 11th October, 1955, is cancelled in so far as it relates to the appointment of Raymond Ernest Hawes and is replaced by the following:—

RAYMOND ERNEST HAWES to be Office Superintendent/Revenue Officer, South Nyanza District, Nyanza Province, with effect from 5th September, 1955.

R. G. TURNBULL,  
Chief Secretary.

GOVERNMENT NOTICE No. 1657

## OBITUARY

The Governor regrets to announce the death of Mr. James Arthur McNab, B.E.M., Field Intelligence Officer, Kenya Police, who was killed in action in the Naivasha Area on 10th November, 1955.

Mr. McNab joined the Kenya Police on 1st September, 1954, and by his untimely death the Government has lost the services of a loyal and promising officer.

GOVERNMENT NOTICE No. 1658

## OBITUARY

The Governor regrets to announce the death of Mr. Ehuwa Kabala, Lorry Driver Grade III, Public Works Department, which occurred on 18th November, 1955.

Mr. Ehuwa joined the Public Works Department on 31st July, 1945, and by his death the Government has lost the services of a loyal and efficient officer.

GOVERNMENT NOTICE No. 1659

(G. & L. 24/I. IV)

## THE JUSTICES OF THE PEACE ORDINANCE

(Cap. 4)

## APPOINTMENTS

IN EXERCISE of the powers conferred by section 2 of the Justices of the Peace Ordinance, the Governor has been pleased to appoint—

MAJOR HUGH HANNAY, M.C.

MAJOR DONALD EDWARD ROBATHAN

to be Justices of the Peace for the Kericho District.

By Command of the Governor

3rd December, 1955.

E. N. GRIFFITH-JONES,  
Minister for Legal Affairs

## GOVERNMENT NOTICE No. 1660

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 21 (1) of the Native Lands Trust Ordinance, 1938, certain portions of land, of 10 acres only, more particularly described in the Schedule below, in the Fort Hall District of the Kikuyu Land Unit, and whereas this setting apart has been approved by the proper authority, I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the areas of land described in the Schedule have been set apart for the purposes specified in the said Schedule.

Nyeri,  
26th November, 1955.

A. C. C. SWANN,  
Provincial Commissioner,  
Central Province.

## SCHEDULE

(1) *Mission or department.*—District Education Board.

*Name of land.*—Kirogo, Location No. 10.

*Purpose.*—Special Intermediate School

*Area.*—10 acres.

*Landowners.*—Karenye s/o Thairu, Mucha s/o Thairu, Daudi Mwangi s/o Musa, Nyamu s/o Nguyo, Ben Nyamu s/o Kabungo, Kamaina s/o Gitau, C. Nyaga s/o Kiongo, Mwangi s/o Ngungu, Ndigiri s/o Muoria, Kahuria s/o Waithaka, King'a s/o Ndogo Ndugira s/o Murimi, Gatira s/o Gakanga, Daniel Mwangi, Kihara s/o Mwangi, Daniel Munyua, Njoki w/o Dani, Gichoya s/o Kinga and Samuel Gichui.

*Description of Boundaries*

It is an octagonal plot of 10 acres situated on Fort Hall-Weithaga road for about two miles west of Kahuhia Mission having sides: point A which is about 10 feet north of Karuri-Weithaga road to point B for a bearing of N.58°W. for a distance of 140 feet; thence from B to C for a bearing of N.68½°W. for a distance of 220 feet; thence from C to D for a bearing of N.70½°W. for a distance of 220 feet; thence D to E for a bearing of N.77½°W. for a distance of 320 feet; thence E to F for a bearing of S.58°W. for a distance of 170 feet; thence F to G for a bearing of S.89°W. for a distance of 350 feet; thence G to H for a bearing of S.61½°E. (here the point G emerges out to the road mentioned at point A) following a straight course by the road for a distance of 1,120 feet; thence from H to A for a bearing of N.47½°E. for a distance of 475 feet following a straight course (here the point H is 25 feet on the lower side of the road).

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

(2) *Mission or department.*—Consolata Catholic Mission.

*Name of land.*—Rocho, Location No. 4.

*Purpose.*—School site.

*Area.*—10 acres.

*Landowners.*—Philip Matite, Njau s/o Kiriga, Kinuthia s/o Mbiu, Mukuru s/o Kanyagia, Kagima s/o Komo, Mariko Mwangi, Chogere s/o Kimondo and Benedecto Muriithi.

*Description of Boundaries*

An enneagonal plot of 10 acres situated on the south of Thika-Ng'araria-Kiguoya road for about two miles west of Kandara Headquarters having sides: point A to a point B for a bearing of S.56°W. for a distance of 388 feet; thence from B to C for a bearing of N.65°W. for a distance of 230 feet; thence C to D for a bearing of N.84°W. for a distance of 325 feet; thence D to E for a bearing of N.39°W. for a distance of 165 feet; thence E to F for a bearing of N.3°W. for a distance of 130 feet; thence F to G for a bearing of N.20°W. for a distance of 182 feet; thence G to H for a bearing of N.43°E. for a distance of 355 feet; thence H to J for a bearing of S.56½° for a distance of 270 feet; thence J to A for a bearing of S.53°E. for a distance of 665 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

(3) *Mission or department.*—District Education Board.

*Name of land.*—Thare, Location No. 1.

*Purpose.*—School site reduction.

*Area.*—10 acres.

*Landowners.*—Charles s/o Kahiga, Kioria s/o Waweru, Njoroge s/o Kuria, Washington Mwangi, Wilson Karanja, Ngugi s/o Kinyanjui, Kinyanjui s/o Mukore, Kibuku s/o Wamitha and Hezekiah Gatimu.

*Description of Boundaries*

A multilateral plot of 10 acres situated on the northern side of main Kirwara-Gatura road a few miles on Chomo Trading Centre-Kiria road having sides: point A to point B for a bearing of S.75°E. for a distance of 90 feet; thence B to C for a bearing of S.64°E. for a distance of 330 feet; thence C to D for a bearing of S.40½°E. for a distance of 60 feet; thence D to E for a bearing of S.33°E. for a distance of 92 feet;

thence E to F for a bearing of S.23½°E. for a distance of 325 feet; thence F to G for a bearing of S.52°W. for a distance of 400 feet; thence G to H for a bearing of N.74°W. for a distance of 50 feet; thence H to J for a bearing of N.86°W. for a distance of 180 feet; thence J to K for a bearing of N.77°W. for a distance of 120 feet; thence K to L for a bearing of N.46°W. for a distance of 50 feet; thence L to M for a bearing of N.22°W. for a distance of 400 feet; thence M to N for a bearing of N.29°W. for a distance of 315 feet; thence N to O for a bearing of N.64°W. for a distance of 255 feet; thence O to A for a bearing of N.62°E. for a distance of 140 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 437 of 1947 is hereby varied accordingly.

## GOVERNMENT NOTICE No. 1661

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 24 of the Native Lands Trust Ordinance, a certain portion of land, more particularly described in the Schedule below, in the Kiambu District of the Kikuyu Land Unit, and whereas this setting apart has been duly approved by the proper authority, I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the area of land described in the Schedule below has been set apart for the purpose specified in the said Schedule.

Nyeri,  
25th November, 1955.

A. C. C. SWANN,  
Provincial Commissioner,  
Central Province.

## SCHEDULE

*Mission or department.*—Africa Inland Mission.

*Purpose.*—Mission, school and church.

*Name of land.*—Kagwe.

*Area.*—13.78 acres.

*Landowners.*—Daniel Kihara, Mutura Mumbura and Gioko Mumbura.

*Description of boundaries.*—Starting from a point A which is on the northern edge of Kagwe-Uplands road northward for 126.6 ft. on a bearing of 3 degrees 30 minutes to a point B;

thence on a bearing of 16 degrees 35 minutes for 227 ft. to point C;

thence on a bearing of 8 degrees 45 minutes for 384.4 ft. to point D;

thence on a bearing of 88 degrees 45 minutes for 203 ft. to point E;

thence on a bearing of 100 degrees 25 minutes for 712.5 ft. to point F;

thence on a bearing of 177 degrees 25 minutes for 88 ft. to point G;

thence on a bearing of 184 degrees 25 minutes for 180.4 ft. to point H;

thence on a bearing of 189 degrees 25 minutes for 94 ft. to point I;

thence on a bearing of 206 degrees 55 minutes for 174.3 ft. to point J;

thence on a bearing of 215 degrees 25 minutes for 171 ft. to point K, on the edge of Kagwe-Uplands road and thence following the road uphill for 830 ft. to the starting point A.

## GOVERNMENT NOTICE No. 1662

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 24 of the Native Lands Trust Ordinance, a certain portion of land, more particularly described in the Schedule below, in the Kiambu District of the Kikuyu Land Unit, and whereas this setting apart has been duly approved by the proper authority, I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the area of land described in the Schedule below has been set apart for the purpose specified in the said Schedule.

Nyeri,  
25th November, 1955.

A. C. C. SWANN,  
Provincial Commissioner,  
Central Province.

## SCHEDULE

*Mission or department.*—The Holy Ghost Mission.

*Purpose.*—School.

*Name of land.*—Gatitu.

*Area.*—Two acres.

*Landowner.*—Mugwi s/o Ichugu (2 acres).

*Description of boundaries.*—Starting from point A south-westwards on a bearing of 228 degrees for 420 feet to point B; thence on a bearing of 319 degrees for 210 feet to point C; thence on a bearing of 48 degrees for 420 feet to point D; and thence on a bearing of 138 degrees for 210 feet to the starting point A.

A copy of the plan of this area is deposited with the District Commissioner, Kiambu, and is available for inspection on request.

GOVERNMENT NOTICE NO. 1663

(Lnd. 4/3/8/13)

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 11 of the Native Lands Trust Ordinance, a certain portion of land, more particularly described in the Schedule below, in the South Nyanza District of the Nyanza Land Unit, and whereas this setting apart has been duly approved by the proper authority (and the compensation deposited with the District Commissioner), I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the area of land described in the Schedule below has been set apart for the purpose specified in the said Schedule.

C. H. WILLIAMS,  
Provincial Commissioner,  
Nyanza Province.

Kisumu,  
21st November, 1955.

## SCHEDULE

*Description of Boundaries*

*Ibino Church of God Mission, Nyaribari Location* (area approximately two acres).

Starting at a point A from which Kabosi Hill bears 178 degrees and it is approximately 1.5 miles distant, and from which end of Kagochi Ridge bears 243 degrees and it is approximately five miles distant, and on a bearing of 47 degrees for 276 feet to a point B;

thence on a bearing of 26 degrees for 226 feet to a point C;  
thence on a bearing of 333 degrees for 113 feet to a point D;  
thence on a bearing of 60 degrees for 492 feet to a point E;  
thence on a bearing of 124 degrees for 177 feet to a point F;  
thence on a bearing of 210 degrees for 135 feet to a point G;  
thence on a bearing of 107 degrees for 80 feet back to the starting point A.

*Purpose.*—Mission Station.

GOVERNMENT NOTICE NO. 1664

(Lnd. 4/4/8/3)

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 21 of the Native Lands Trust Ordinance, certain portions of land, more particularly described in the Schedule below, in Central Nyanza District of the Nyanza Land Unit, and whereas this setting apart has been duly approved by the proper authority, I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the areas of land described in the Schedule below have been set apart for the purpose specified in the said Schedule.

C. H. WILLIAMS,  
Provincial Commissioner,  
Nyanza Province.

Kisumu,  
8th November, 1955.

## SCHEDULE

(1) *Place.*—Chiga, West Kano Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—5.41 acres.

*Description.*—Starting at a peg PA beside old road on the south-west;

thence on a bearing of 184° 45' north-west for a distance of 340 feet;

thence on a bearing of 268° 30' north-east for a distance of 600.5 feet;

thence on a bearing of 2° 0' south-east for a distance of 441.5 feet;

thence on a bearing of 277° 45' for a distance of 620 feet to the starting point.

(2) *Place.*—Nduru, West Kano Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—4.37 acres.

*Description.*—Starting at a point on the south-west on a leak swamp;

thence on a bearing of 348° 0' north-west for a distance of 444 feet;

thence on a bearing of 257° 30' north-east for a distance of 434 feet;

thence on a bearing of 168° 15' south-east for a distance of 444 feet crossing Ahero-Kisumu road;

thence on a bearing of 77° 30' for a distance of 433 feet to the starting point.

(3) *Place.*—Nyamware, West Kano Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—4 acres.

*Description.*—Starting at a point on the north-west;

thence northerly on a bearing of 266° 15' for a distance of 261 feet;

thence on a bearing of 280° 30' north-east for a distance of 124 feet;

thence on a bearing of 1° 30' south-east for a distance of 483.5 feet crossing Kisumu-Ahero road;

thence on a bearing of 100° 45' south-west for a distance of 383 feet;

thence on a bearing of 181° 0' for a distance of 411 feet to the starting point.

(4) *Place.*—Kibigori, East Kano Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—4.27 acres.

*Description.*—Starting at a point on the south-west near Masogo-Station road;

thence on a bearing of 354° 30' north-west for a distance of 450 feet;

thence on a bearing of 80° 0' north-east for a distance of 460 feet;

thence on a bearing of 183° 0' south-east for a distance of 416 feet;

thence on a bearing of 254° 45' for a distance of 401 feet to the starting point.

(5) *Place.*—Kibogo, Nyakach Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—1.75 acres.

*Description.*—Starting at a point on the south-west approximately five feet away from leak swamp base;

thence on a bearing of 345° 45' north-west about 15 feet away from Ahero-Sondu road for a distance of 334 feet;

thence on a bearing of 87° 0' north-east for a distance of 256 feet;

thence on a bearing of 170° 0' south-east for a distance of 310 feet;

thence on a bearing of 263° 0' for a distance of 225 feet to the starting point.

(6) *Place.*—Gari, Nyakach Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—2.11 acres.

*Description.*—Starting at a point on the north-east;

thence on a bearing of 154° 45' south-east for a distance of 221 feet;

thence on a bearing of 231° 30' south-west for a distance of 329 feet;

thence on a bearing of 334° 15' north-west for a distance of 352 feet;

thence on a bearing of 74° 30' for a distance of 330 feet to the starting point.

(7) *Place.*—Onyuongo, Nyakach Location.

*Applicant.*—African District Council.

*Purpose.*—Market.

*Area.*—1.73 acres.

*Description.*—Starting at a point on the south-east approximately 80 feet away from Sondu-Ahero road;

thence on a bearing of 74° 0' south-west for a distance of 284 feet;

thence on a bearing of 160° 0' north-west for a distance of 237 feet;

thence on a bearing of 247° 15' north-east for a distance of 282 feet;

thence on a bearing of 340° 15' for a distance of 270 feet to the starting point.

Plans of the above are filed in the office of the District Commissioner, Central Nyanza, Kisumu.



GOVERNMENT NOTICE NO. 1665

## THE NATIVE LANDS TRUST ORDINANCE

(Cap. 100)

## SETTING APART OF LAND

WHEREAS I consider it desirable to set apart, under section 21 (1) of the Native Lands Trust Ordinance, 1938, certain portions of land, above 10 acres, more particularly described in the Schedule below, in the Fort Hall District of the Kikuyu Land Unit, and whereas this setting apart has been approved by the proper authority, I do hereby, in accordance with the provisions of sub-section (1) of section 15 of the aforesaid Ordinance, notify that the areas of land described in the Schedule have been set apart for the purposes specified in the said Schedule.

Nyeri,  
26th November, 1955.

A. C. C. SWANN,  
Provincial Commissioner,  
Central Province.

## SCHEDULE

(1) *Mission or department.*—African Anglican Church.

*Name of land.*—Githunguri, Location No. 5.

*Purpose.*—School site.

*Area.*—12.73 acres.

*Landowners.*—Muiruri s/o Njuguna, Nganga s/o Mwea, Muchina s/o Wanjogu and Muchina s/o Wahinya.

*Description of Boundaries*

A multilateral plot of 12.73 acres situated on Fort Hall-Nairobi road on Kabati-Kagundu road, having sides: point A to point B for a bearing of S.70°E. for a distance of 329 feet; thence from B to C for a bearing of S.20°W. for a distance of 253 feet; thence from C to D for a bearing of S.39°W. for a distance of 249 feet; thence from D to E for a bearing of S.48½°W. for a distance of 305 feet; thence from E to F for a distance of 195 feet for a bearing of S.66½°W.; thence from F to G for a bearing of N.80½°W. for a distance of 111 feet; thence from G to H for a bearing of N.3°W. for a distance of 259 feet; thence from H to J for a bearing of N.26°W. for a distance of 348 feet; thence from J to K for a bearing of N.29°W. for a distance of 238 feet; thence from K to L for a bearing of N.52°E. for a distance of 220 feet; thence from L to M for a bearing of N.64°E. for a distance of 200 feet; thence from M to N for a bearing of S.80°E. for a distance of 330 feet; thence from N to A for a bearing of S.28°E. for a distance of 189 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

(2) *Mission or department.*—African Anglican Church.

*Name of land.*—Kiaguthu, Location No. 8.

*Purpose.*—School site.

*Area.*—10.43 acres.

*Landowners.*—Samson Kamara, Nathaniel Manyagi, Thomas Ngomo, Elizaphan Mbacho, Stanley Turura, James Nganga, Harris Nganga, Mithiori s/o Thoronja, Gichemi s/o Kahacho, Njoroge s/o Kabuteru, Mwangi s/o Nduati, Kareebu s/o Kamau, Mwangi s/o Ndonga, Kimori s/o Kahacho, Jonah Gachembe, Njora s/o Kienja, Kimana s/o Kienja, Karoga s/o Thoronja and Kariuki s/o Kienja.

*Description of Boundaries*

A heptagonal plot of 10.43 acres situated on the eastern side of Kagaa-Muriranjia's Hospital road having sides: point A to point B for a bearing of S.74°E. for a distance of 303 feet; thence from B to C for a bearing of S.68°E. for a distance of 468 feet; thence from C to D for a bearing of S.1½°W. for a distance of 495 feet; thence from D to E for a bearing of S.87°W. for a distance of 164 feet; thence from E to F for a bearing of N.86°W. for a distance of 343 feet; thence from F to G for a bearing of N.75°W. for a distance of 458 feet; thence from G to A for a bearing of N.13°E. for a distance of 630 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

(3) *Mission or department.*—African Anglican Church.

*Name of land.*—Kiamuri, Location No. 15.

*Purpose.*—School site extension.

*Area.*—12 acres total revised area.

*Landowners.*—Amos Mukiria s/o Kamama, Stefano Kimani s/o Kuria and Joseph Matogia s/o Kimani.

*Description of Boundaries*

An enneagonal plot of 12 acres situated on Fort Hall-Gathukeini road for about a ½ mile west of Kaweru Market having sides: point A to point B for a bearing of S.48°E. for a distance of 330 yards; thence from B to C for a bearing of N.44½°E. for a distance of 35 yards; thence C to D for a bearing of S.69½°E. for a distance of 72 yards; thence D to E for a bearing of N.33½°E. for a distance of 67 yards; thence E to F for a bearing of N.45½°W. for a distance of 227 yards; thence F to G for a bearing of N.24°W. for a distance of

42 yards; thence G to H for a bearing of N.44°W. for a distance of 147 yards; thence H to J for a bearing of S.52°W. for a distance of 98 yards; thence J to A for a bearing of S.12°W. for a distance of 65 yards.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 870 of 1945 is hereby varied accordingly.

(4) *Mission or department.*—African Christian Church and Schools.

*Name of land.*—Mung'aria, Location No. 3.

*Purpose.*—School site extension.

*Area.*—12.86 acres.

*Landowners.*—Jason Kamau, Mau s/o Githu, Kamau s/o Murori, Reuben Njoroge and portion for community.

*Description of Boundaries*

A hendecagonal plot of 12.86 acres situated on the south of Kirigithu Market-Ithanga road for about two miles west of the Kirigithu Market having sides: point A to point B for a bearing of S.38°E. for a distance of 268 feet; thence B to C for a bearing of S.55°E. for a distance of 213 feet; thence C to D for a bearing of S.74°E. for a distance of 182 feet; thence D to E for a bearing of S.22°E. for a distance of 180 feet; thence E to F for a bearing of S.3°E. for a distance of 213 feet; thence F to G for a bearing of S.5°W. for a distance of 138 feet; thence G to H for a bearing of S.34°W. for a distance of 295 feet; thence H to J for a bearing of N.71°W. for a distance of 211 feet; thence J to K for a bearing of N.35°W. for a distance of 333 feet; thence K to L for a bearing of N.39°W. for a distance of 660 feet; thence L to A for a bearing of N.56°E. for a distance of 468 feet.

The plan of this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 829 of 1951 is hereby varied accordingly.

(5) *Mission or department.*—District Education Board.

*Name of land.*—Gakurari, Location No. 1.

*Purpose.*—School site extension.

*Area.*—15.5 acres.

*Landowners.*—Mwema Kieha, Gathungu Kiingati, Karuku Kamami, Mbuthia Mwaura, Mambo Ndatha, Kibaka Mugokonyi and Hezekiah Kariuki.

*Description of Boundaries*

A multilateral plot of 15.5 acres situated on Thika-Kigio-Kirwara road for about a mile north-west of Giatutu Trading Plot having sides: point A to point B for a bearing of S.10°W. for a distance of 230 feet; thence B to C for a bearing of S.13°W. for a distance of 105 feet; thence C to D for a bearing of S.24°E. for a distance of 105 feet; thence D to E for a bearing of S.60½°E. for a distance of 61 feet; thence E to F for a bearing of S.40°E. for a distance of 99 feet; thence F to G for a bearing of S.36°W. for a distance of 165 feet; thence G to H for a bearing of S.24°W. for a distance of 70 feet; thence H to J for a bearing of S.39°W. for a distance of 410 feet; thence J to K for a bearing of S.86°W. for a distance of 74 feet; thence K to L for a bearing of N.44½°W. for a distance of 240 feet; thence L to M for a bearing of N.40°W. for a distance of 130 feet; thence M to N for a bearing of N.21°W. for a distance of 180 feet; thence N to O for a bearing of N.13½°W. for a distance of 158 feet; thence O to P for a bearing of N.26°W. for a distance of 190 feet; thence P to Q for a bearing of N.21°E. for a distance of 179 feet; thence Q to R for a bearing of N.50°E. for a distance of 260 feet; thence R to S for a bearing of N.76°E. for a distance of 284 feet; thence S to T for a bearing of N.69°E. for a distance of 104 feet; thence T to A for a bearing of S.67°E. for a distance of 241 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 1210 of 1949 is hereby varied accordingly.

(6) *Mission or department.*—District Education Board.

*Name of land.*—Gakarara, Location No. 4.

*Purpose.*—School site extension.

*Area.*—10.5 acres.

*Landowners.*—Ichung'wa s/o Ng'ang'a, Gichengo s/o Kihahu, Henry Kang'ethe, Douglas Gachemba, Mwaganu s/o Githongo and Wangai s/o Mukuundu.

*Description of Boundaries*

A multilateral plot of 10.5 acres situated one mile west of Kandara Headquarters having sides: point A to B for a bearing of N.9°E. for a distance of 195 feet; thence B to C for a bearing of N.0°N. for a distance of 105 feet; thence C to D for a bearing of N.53½°W. for a distance of 170 feet; thence D to E for a bearing of N.51°W. for a distance of 222 feet; thence E to F for a bearing of 52°W. for a distance of 110 feet; thence F to G for a bearing of N.51½°W. for a distance of 98 feet; thence G to H for a bearing of N.59½°W. for a distance of 140 feet; thence H to J for a bearing of S.85°W. for a distance of 80 feet; thence J to K for a bearing

of S.88½°W. for a distance of 380 feet; thence K to L for a bearing of S.18½°E. for a distance of 165 feet; thence L to M for a bearing of S.24½°E. for a distance of 215 feet; thence M to N for a bearing of S.27°W. for a distance of 85 feet; thence N to O for a bearing of S.66½°E. for a distance of 232 feet; thence O to P for a bearing of S.77½°E. for a distance of 438 feet; thence P to A for a bearing of S.78°E. for a distance of 270 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 434 of 1946 is hereby varied accordingly.

(7) *Mission or department.*—District Education Board.

*Name of land.*—Gacharage, Location No. 4.

*Purpose.*—School site reduction.

*Area.*—10.72 acres.

*Landowners.*—Muhia s/o Muigai, Kariko s/o Karitu, Kangaru s/o Ngara, Gitau s/o Njuguna, Muiruri s/o Kimani, Karanja s/o Ngara, Onesboros Ngara s/o Kamau and Sospeter Ndungu.

*Description of Boundaries*

A multilateral plot of 10.72 acres situated on the main Kandara-Githumu road on the boundary of Locations Nos. 3 and 4 near the Gacharage Market for about 100 from the road having sides: point A to point B for a bearing of N.17°E. for a distance of 285 feet; thence B to C for a bearing of S.86½°E. for a distance of 222 feet; thence C to D for a bearing of S.85°E. for a distance of 170 feet; thence D to E for a bearing of S.58°E. for a distance of 174 feet; thence E to F for a bearing of S.56½°E. for a distance of 242 feet; thence F to G for a bearing of S.30°E. for a distance of 148 feet; thence G to H for a bearing of S.44½°E. for a distance of 100 feet; thence H to J for a bearing of S.72½°W. for a distance of 398 feet; thence J to K for a bearing of N.70½°W. for a distance of 91 feet; thence K to L for a bearing of N.15°E. for a distance of 20 feet; thence L to M for a bearing of S.89°W. for a distance of 147 feet; thence M to N for a distance of 135 feet for a bearing of N.63°W.; thence N to O for a distance of 45 feet for a bearing of N.35°E.; thence O to P for a distance of 90 feet for a bearing of N.36°W.; thence P to A for a distance of 120 feet for a bearing of N.6½°E.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 1063 of 1946 is hereby varied accordingly.

(8) *Mission or department.*—District Education Board.

*Name of land.*—Muruka, Location No. 4.

*Purpose.*—School site reduction.

*Area.*—15.8 acres.

*Landowners.*—Wangacha s/o Gathariki, Muhia s/o Kinuthia, Itongu s/o Muiru, Guchu s/o Ribiro and Jason Mungai.

*Description of Boundaries*

A multilateral plot of 15.8 acres situated on the southern side of main Mackenzie's-Kandara road for about one and a half miles west of Muruka Trading Centre having sides: point A to B for a bearing of S.45°E. for a distance of 56 feet; thence B to C for a bearing of S.30°E. for a distance of 116 feet; thence C to D for a bearing of S.22°E. for a distance of 135 feet; thence D to E for a bearing of S.36°W. for a distance of 160 feet; thence E to F for a bearing of S.30°W. for a distance of 261 feet; thence F to G for a bearing of S.53½°W. for a distance of 510 feet; thence G to H for a bearing of S.70°W. for a distance of 69 feet; thence H to J for a bearing of S.80½°W. for a distance of 190 feet; thence J to K for a bearing of N.25½°W. for a distance of 280 feet; thence K to L for a bearing of N.2°E. for a distance of 225 feet; thence L to M for a bearing of N.21°E. for a distance of 356 feet; thence M to N for a bearing of N.45°E. for a distance of 225 feet; thence N to O for a bearing of N.69°E. for a distance of 155 feet; thence O to P for a distance of 271 feet for a bearing of N.87°E.; thence P to A for a bearing of S.52°E. for a distance of 155 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notices Nos. 578 of 1943 and 1164 of 1949 are hereby varied accordingly.

(9) *Mission or department.*—District Education Board.

*Name of land.*—Thuita, Location No. 14.

*Purpose.*—School site reduction.

*Area.*—12.6 acres.

*Landowners.*—Muchiri s/o Thigai, Reuben Gatari, S. Mukera, Wanjohi s/o Muchiri and Zekaria Mwangi s/o Rutere.

*Description of Boundaries*

A hendecagonal plot of 12.6 acres situated on Kiriaini-Geitwa road (northern side) for a few miles west of Geitwa Market having sides: point A to B for a bearing of N.58°W. for a distance of 815 feet; thence B to C for a bearing of N.2°E. for a distance of 195 feet; thence C to D for a bearing of

N.57°E. for a distance of 710 feet; thence D to E for a bearing of N.69°E. for a distance of 88 feet; thence E to F for a bearing of N.86°E. for a distance of 80 feet; thence F to G for a bearing of S.80°E. for a distance of 88 feet; thence G to H for a bearing of S.65°E. for a distance of 160 feet; thence H to J for a bearing of S.52°E. for a distance of 110 feet; thence J to K for a bearing of S.19°W. for a distance of 185 feet; thence K to L for a bearing of S.32°W. for a distance of 320 feet; thence L to A for a bearing of S.20°W. for a distance of 475 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 66 of 1948 is hereby varied accordingly.

(10) *Mission or department.*—District Education Board.

*Name of land.*—Mbogiti, Location No. 16.

*Purpose.*—School site reduction.

*Area.*—12.6 acres.

*Landowners.*—Kigecha s/o Kubai, Wakarii s/o Thing'o, Ngaari s/o Mwendiarihuu, Kara s/o Mugo and Njoroge s/o Kamau.

*Description of Boundaries*

A hendecagonal plot of 12.6 acres situated on Kirwara-Gatura-Forest road, between Gatura-Forest and Gatura-Kimandi road north of Kiarutara Market having sides: point A to B for a bearing of N.38½°W. for a distance of 110 feet; thence B to C for a bearing of N.22°W. for a distance of 528 feet; thence C to D for a bearing of N.36°E. for a distance of 90 feet; thence D to E for a bearing of N.29°E. for a distance of 125 feet; thence E to F for a bearing of N.59°E. for a distance of 290 feet; thence F to G for a bearing of S.48°E. for a distance of 335 feet; thence G to H for a bearing of S.40½°E. for a distance of 110 feet; thence H to J for a bearing of S.13½°E. for a distance of 280 feet; thence J to K for a bearing of S.2°W. for a distance of 390 feet; thence K to L for a bearing of S.32°W. for a distance of 110 feet; thence L to A for a bearing of N.68½°W. for a distance of 435 feet.

The plan for this area is in the office of the District Commissioner, Fort Hall, and is open for inspection.

Government Notice No. 437 of 1947 is hereby varied accordingly.

GOVERNMENT NOTICE No. 1666

THE MARRIAGE ORDINANCE

(Cap. 144)

NOTICE is hereby given that in exercise of the powers conferred by section 6 of the Marriage Ordinance, I have licensed the undermentioned place of worship to be a place for the celebration of marriages:—

*Name.*—Chapel of St. Michael and All Angels.

*Place.*—Former R.N.A.S. Camp, Nairobi West, Nairobi.

*District.*—Nairobi Extra-Provincial District, Nairobi.

Nairobi,

29th November, 1955.

D. J. COWARD,

Registrar General.

GOVERNMENT NOTICE No. 1667

(Ed. 6/3/1/1)

THE EDUCATION ORDINANCE

(No. 58 of 1952)

THE ADVISORY COUNCIL ON ASIAN EDUCATION

IN EXERCISE of the powers conferred by section 8 of the Education Ordinance, 1952, the Minister for Education, Labour and Lands hereby appoints the following persons to be members of the Advisory Council on Asian Education\*:

DR. (MRS.) BILQUIS HASSAN.

MRS. VIDYA VATI SONDHI.

J. J. ADIE,

Minister for Education,  
Labour and Lands.

Nairobi,

26th November, 1955.

\* G.N. 657 of 1955.

GOVERNMENT NOTICE No. 1668

(Ed. 6/2/1/1)

THE EDUCATION ORDINANCE

(No. 58 of 1952)

IN EXERCISE of the powers conferred by section 8 of the Education Ordinance, 1952, the Minister for Education, Labour and Lands hereby appoints the following persons to be members of the Advisory Council on European Education:—

THE HON. MRS. A. R. SHAW, M.L.C., *vice* Lady Shaw (resigned).

CAPT. G. R. WILLIAMS, *vice* H. H. Robinson, Esq. (resigned).

Government Notice No. 268 of 1955 is varied accordingly.

Nairobi,

26th November, 1955.

J. J. ADIE,

Minister for Education,  
Labour and Lands.

GOVERNMENT NOTICE No. 1669

(Wel. 26/2/2)

## THE PREVENTION OF CRUELTY TO AND NEGLECT OF CHILDREN ORDINANCE

(No. 12 of 1955)

## APPOINTMENT OF INSPECTORS OF CHILDREN

IN EXERCISE of the powers conferred by section 11 of the Prevention of Cruelty to and Neglect of Children Ordinance, 1955, the Minister for Local Government, Health and Housing hereby appoints as Inspector of Children for the purpose of the said Ordinance the persons named in the Schedule hereto.

Nairobi, 28th November, 1955.

W. B. HAVELOCK,  
Minister for Local Government,  
Health and Housing.

## SCHEDULE

Mrs. E. Jackson.  
Miss M. Brooksmith.

GOVERNMENT NOTICE No. 1670

(Quar/O)

## THE ANIMAL DISEASES ORDINANCE

(Cap. 213)

IN EXERCISE of the powers conferred by section 4 of the Animal Diseases Ordinance, I hereby declare—

(a) the areas described in Schedule I and Schedule II to be "infected areas" in respect of the diseases indicated at the head of such Schedules; and

(b) the Government Notices specified in the first column of Schedule III to be amended in the manner specified in such Schedule.

Kabete, 28th November, 1955.

K. D. S. MACOWAN,  
Director of Veterinary Services.

## SCHEDULE I—EAST COAST FEVER

L.O. 7221, Monte Carlo Ranch, P.O. Kiganjo, Nanyuki.

## SCHEDULE II—FOOT-AND-MOUTH DISEASE

Crown land of the Kedong Valley, The Manager, Akira Ranch, Ltd., P.O. Kijabe, Naivasha District.

L.O. 3238, Cecilia Farm, P.O. Subukia, Nakuru District.

L.O. 2687, 2688/R, 2689/R, A. J. Williamson, Esq., P.O. Subukia, Nakuru District.

L.O. 8440, W. B. Lambert, Esq., P.O. Subukia, Nakuru District.

L.O. 6600, F. A. Poestkoke, Esq., P.O. Solai, Nakuru District.

L.O. 6980, Lt.-Col. G. E. C. Mossley, P.O. Rongai, Nakuru District.

L.O. 487/60, W. H. Langridge, Esq., P.O. Rongai, Nakuru District.

L.O. 482/1, 482/2, 483/3, 482/4 and 6911, The Manager, Athanai Sisal, Ltd., P.O. Kampi-ya-Moto, Nakuru District.

Mukogodo Reserve, The District Officer i/c Mukogodo Reserve, P.O. Nanyuki, Nanyuki District.

Lembus Forest, The District Officer, Eldama Ravine, South Baringo District.

## SCHEDULE III

| First Column                                                      | Second Column                                                                                                                                                                                                   |
|-------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Government Notice No. 1012 dated the 11th day of July, 1955.      | By deleting from Schedule II (Foot-and-Mouth Disease) thereto the following:—<br>"L.O. 3016, Commander F. B. Carslake, Trans Nzoia District."<br>"L.O. 3017 and 2172, M. Jennings, Esq., Trans Nzoia District." |
| Government Notice No. 1058 dated the 18th day of July, 1955.      | By deleting from Schedule II (Foot-and-Mouth Disease) thereto the following:—<br>"L.O. 3019, 3042, 3048, 2201 and 5705/2, The Manager for His Grace the Duke of Manchester, Kitale, Trans Nzoia District."      |
| Government Notice No. 1185 dated the 15th day of August, 1955.    | By deleting from Schedule I (Foot-and-Mouth Disease) thereto the following:—<br>"L.O. 5781, A. V. Nash, Esq., Kitale, Trans Nzoia District."                                                                    |
| Government Notice No. 1311 dated the 12th day of September, 1955. | By deleting from Schedule II (Foot-and-Mouth Disease) thereto the following:—<br>"The Kaputie Section of the Masai Reserve, The District Commissioner, Kajiado, Kajiado District."                              |

GOVERNMENT NOTICE No. 1671

## THE EMERGENCY (MOVEMENT OF KIKUYU, MERU AND EMBU) REGULATIONS, 1953

(G.N. 192 of 1953)

## MOVEMENT ORDER

WHEREAS I, Eric Allen Sweatman, Provincial Commissioner, Southern Province, consider it to be expedient for securing the public safety so to do:

Now therefore, in exercise of the powers conferred by regulations 2 and 5 of the Emergency (Movement of Kikuyu, Meru and Embu) Regulations, 1953, I make this Movement Order and direct that the persons of the Kikuyu, Meru and Embu tribes specified in the Schedule hereto shall move from the Loitokitok area and shall reside in the Narok Works Camp until further notice.

This Order shall also apply to the family residing with those persons specified in the Schedule hereto.

This Order shall come into operation at 00.01 hours on the 1st day of December, 1955.

Made this twenty-ninth day of November, 1955.

E. A. SWEATMAN,  
Provincial Commissioner,  
Southern Province.

## SCHEDULE

## A.—Males

1. Mariti Weithaga.
2. Njau Kororo.
3. Kamau Kororo.
4. Macharia Waithaga.
5. Nyaga Githambu.

## B.—Females

1. Tikoshi w/o Kitororo or Monanga w/o Kechohe.
2. Wanjiko w/o Nganga.
3. Kapura w/o Ndamburo.
4. Wanjohi w/o Ndamburo.
5. Njiri w/o Nganga, alias Kitororo.
6. Isabella d/o Crispin.
7. Njiri Wangara.
8. Wamboi Wanyoki.
9. Nyakaki Wamboi.
10. Wanjiro Kamau.
11. Nduta w/o Kanyua.
12. Njiri w/o Kanyua.
13. Ngendo w/o Kanyua.
14. Wanjiro w/o Kanyua.
15. Wamboi d/o Kanyua.
16. Mumbi d/o Kanyua.
17. Njoki d/o Kanyua.
18. Njiri d/o Kanyua.
19. Wanjiro d/o Kanyua.
20. Wamboi d/o Kanyua.
21. Wanjiro (mother-in-law of Kanyua).
22. Wanjiro w/o Wainana.
23. Njoki d/o Wainana.
24. Njoka d/o Wainana.
25. Wanjiko d/o Wainana.
26. Elizabeth d/o Wainana.
27. Naiteeyio w/o Mariti.
28. Mweru w/o Mariti.
29. Njambi d/o Mariti.
30. Wanjiro w/o Mutheri.
31. Wambui w/o Mutheri.
32. Waturi (mother-in-law of Mutheri).
33. Njiri w/o Njau.

GOVERNMENT NOTICE No. 1672

(M. &amp; LG. 2/87)

## THE LOCAL GOVERNMENT (COUNTY COUNCILS) ORDINANCE

(No. 30 of 1952)

## APPOINTMENT OF COUNCILLORS—NYERI URBAN DISTRICT COUNCIL

IN EXERCISE of the powers conferred by section 6 (2) (b) of the Local Government (County Councils) Ordinance, 1952, the Minister for Local Government, Health and Housing hereby appoints—

MR. HUSSEIN JAVER MANJI

to be a member of the Nyeri Urban District Council, *vice* Mr. Mohamed Ali Guled (resigned), for the period commencing on 1st December, 1955, and expiring on the day of the annual meeting in 1956 of the County Council of Aberdare.\*

Nairobi, 28th November, 1955.

W. B. HAVELOCK,  
Minister for Local Government,  
Health and Housing.

\* G.N. 746/55.

GOVERNMENT NOTICE No. 1673

(Pris. 34/1/1)

## THE PRISONS ORDINANCE

(Cap. 78)

## CLOSING OF PRISONS

IN EXERCISE of the powers conferred by section 3 of the Prisons Ordinance and delegated to me, I hereby declare that the prisons at Gilgil and Siakago shall now cease to be prisons.\*

Nairobi, 30th November, 1955.

E. W. M. MAGOR,  
Secretary for Internal Security  
and Defence.

\* G.N. 1109/54, G.N. 834/48 and G.N. 1789/53.

GOVERNMENT NOTICE No. 1674

(Pris. 46/1/III)

THE PRISONS ORDINANCE

(Cap. 78)

APPOINTMENT OF OFFICIAL VISITOR

IN EXERCISE of the powers conferred by section 37 of the Prisons Ordinance and delegated to me, I hereby appoint—

Mr. L. R. L. MacCulloch

to be an Official Visitor, for the purposes of the said Ordinance, for the Kisumu Prison in the place of Mr. S. H. H. Frere.\*

Nairobi,

1st December, 1955.

E. W. M. MAGOR,

Secretary for Defence.

\* G.N. 1109/54 and G.N. 440/53.

GOVERNMENT NOTICE No. 1675

(Pris. 46/1/III)

THE PRISONS ORDINANCE

(Cap. 78)

APPOINTMENT OF OFFICIAL VISITORS

IN EXERCISE of the powers conferred by section 37 of the Prisons Ordinance and delegated to me, I hereby appoint—

Mr. E. Bryson,

Mr. H. Bown

to be Official Visitors, for the purposes of the said Ordinance, for the Eldoret Prison.\*

Nairobi,

1st December, 1955.

E. W. M. MAGOR,

Secretary for Defence.

\* G.N. 1109/54.

GOVERNMENT NOTICE No. 1676

(Pris. 46/1/III)

THE PRISONS ORDINANCE

(Cap. 78)

APPOINTMENT OF OFFICIAL VISITOR

IN EXERCISE of the powers conferred by section 37 of the Prisons Ordinance and delegated to me, I hereby appoint—

S/MAJOR (Salvation Army) Cyril Woods

to be an Official Visitor, for the purposes of the said Ordinance, for the Thika Prison in the place of Brigadier J. K. Munn.\*

Nairobi,

1st December, 1955.

E. W. M. MAGOR,

Secretary for Defence.

\* G.N. 1109/54 and G.N. 1122/52.

GOVERNMENT NOTICE No. 1677

(J. & L. 13/1/6)

THE COURTS ORDINANCE

(Cap. 3)

APPOINTMENT OF PERSONS TO BE MAGISTRATES, WITH POWERS TO HOLD SUBORDINATE COURTS OF THE FIRST AND SECOND CLASS

IN EXERCISE of the powers conferred by sections 5 and 6 of the Courts Ordinance, the Governor is hereby pleased to appoint each of the persons named in the first column of the First Schedule hereto to be a magistrate and to confer on each such person the power to hold a subordinate court of the first class within the District or Districts specified against their respective names in the second column of the said Schedule; and the person named in the first column of the Second Schedule hereto to be a magistrate and to confer on him the power to hold a subordinate court of the second class within the Districts specified against his name in the second column of the said Schedule.

| FIRST SCHEDULE                            |                                                                  |
|-------------------------------------------|------------------------------------------------------------------|
| (1)                                       | (2)                                                              |
| Wyndham Albert Wild, D.F.C.               | Northern Frontier District.                                      |
| Geoffrey George Hill, M.B.E.              | Northern Frontier District.                                      |
| Charles Pocklington Chevenix-Trench, M.C. | Northern Frontier District.                                      |
| Charles Lynmore Ryland                    | Northern Frontier District.                                      |
| George Huntley Hilton Brown               | Northern Frontier District.                                      |
| Johnston Robertson Nimmo, M.C.            | Northern Frontier District, Meru District and Laikipia District. |
| Roger Anthony Hosking                     | Central Nyanza District.                                         |
| Peter Lovell Johnson                      | Naivasha District.                                               |

| SECOND SCHEDULE                 |                                                                  |
|---------------------------------|------------------------------------------------------------------|
| (1)                             | (2)                                                              |
| Thomas Herbert Richard Cashmore | Northern Frontier District, Meru District and Laikipia District. |

By Command of the Governor.

Nairobi,

3rd December, 1955.

E. N. GRIFFITH-JONES,

Minister for Legal Affairs.

GOVERNMENT NOTICE No. 1678

THE NATIVE AUTHORITY ORDINANCE

(Cap. 97)

APPOINTMENT

IN EXERCISE of the powers thereunto enabling me, I hereby appoint the person named in the Schedule annexed hereto to be the Official Chief of the area named therein.

Nyeri,

28th November, 1955.

A. C. C. SWANN,

Provincial Commissioner,

Central Province.

SCHEDULE

Kiambu District, Central Province

Name.—Nehemiah Gitonga.

Area.—Chania Location.

With effect from.—1st December, 1955.

Remarks.—On probation, vice Zakariah Wangewa, medically unfit.

GENERAL NOTICE No. 2866

THE EAST AFRICAN AIR TRANSPORT AUTHORITY

THE AIR SERVICES (LICENSING) REGULATIONS, 1946

Notice of Application for a Licence to Operate Air Services

PURSUANT to the provisions of regulations 21 and 22 of the Air Services (Licensing) Regulations, 1946, notice is hereby given that East African Airways Corporation, P.O. Box 1010, Nairobi, Kenya Colony, has applied to the East African Air Transport Authority for a licence to operate the following air services:—

(a) The scheduled air route:—Nairobi-Tabora (optional)—Abercorn-Lusaka-Salisbury. For a period of five years from 3rd December, 1955.

(b) The scheduled air route:—Dar es Salaam-Mbeya-Ndola. For a period of three years from date of grant.

It is further notified that any representations or objections with regard to this application must be made to the East African Air Transport Authority at the office of the Director of Civil Aviation, P.O. Box 5163, Nairobi, not later than 5th January, 1956. Every such representation or objection shall be made in writing, shall state the specific grounds on which it is based, and shall specify any conditions which it may be desired should be attached to the licence if granted. A copy of every such representation or objection shall be sent by the person making the same to the applicant of the licence at the same time as it is sent to the Authority.

Nairobi,

26th November, 1955.

STACEY W. D. COLLS,

Director of Civil Aviation,

East Africa.

GENERAL NOTICE No. 2867

THE EAST AFRICAN AIR TRANSPORT AUTHORITY

THE AIR SERVICES (LICENSING) REGULATIONS, 1946

Notice of Application for a Licence to Operate Air Service

PURSUANT to the provisions of regulations 21 and 22 of the Air Services (Licensing) Regulations, 1946, notice is hereby given that East African Airways Corporation, P.O. Box 1010, Nairobi, Kenya Colony, has applied to the East African Air Transport Authority for a licence to operate the following air service:—

The scheduled route serving the following places to timetables approved by the Authority: Nairobi-Moshi (optional)—Tanga-Pemba-Zanzibar-Dar es Salaam. For a period of two years from 1st December, 1955.

It is further notified that any representations or objections with regard to this application must be made to the East African Air Transport Authority at the office of the Director of Civil Aviation, P.O. Box 5163, Nairobi, not later than 6th January, 1956. Every such representation or objection shall be made in writing, shall state the specific grounds on which it is based, and shall specify any conditions which it may be desired should be attached to the licence if granted. A copy of every such representation or objection shall be sent by the person making the same to the applicant of the licence at the same time as it is sent to the Authority.

Nairobi,

28th November, 1955.

STACEY W. D. COLLS,

Director of Civil Aviation,

East Africa.



EAST AFRICA HIGH COMMISSION  
EAST AFRICAN CUSTOMS AND EXCISE DEPARTMENT  
EAST AFRICAN CUSTOMS AND EXCISE MANAGEMENT ACT  
(No. 12 of 1952)

AMENDMENT TO IMPORT AND EXPORT LIST

IN EXERCISE of the powers conferred upon the Commissioner of Customs and Excise by regulation 171 of the East African Customs Regulations, 1954, notice is hereby given that the amendments specified in the Schedule to this notice will be made to the Official Import and Export List on the 1st January, 1956. With effect from that date, consignments of the goods concerned must be described on the relevant entries in accordance with the amended classifications.

F. BISHOP,  
Commissioner of Customs and Excise.

SCHEDULE

| PRESENT CLASSIFICATION |                                                                                                                                                                                     |                    |       | AMENDED CLASSIFICATION |                                                                                                                                                                               |                    |       |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------|
| Code                   | Group No., Division No. and Item                                                                                                                                                    | Unit               | Value | Code                   | Group No., Division No. and Item                                                                                                                                              | Unit               | Value |
| 53-01                  | Preserved fruits, whole or in pieces, with or without added sugar, whether in airtight containers or not (including fruit frozen, or in temporary preservative, e.g. brine) .. .. . | Centals of 100 lb. | Value |                        | Preserved fruits, whole or in pieces, with or without added sugar, whether in air-tight containers or not (including fruit frozen or in temporary preservative, e.g. brine):— | Centals of 100 lb. | Value |
|                        | Fruit juices, unfermented, whether frozen or not (including syrups and natural fruit flavours)*:—                                                                                   |                    |       | 53-01-01               | (a) Pineapples .. .. .                                                                                                                                                        | "                  | "     |
| 53-04-01               | (a) Passion fruit concentrates .. .. .                                                                                                                                              | Imp. gal.          | "     | 53-01-09               | (b) Other .. .. .                                                                                                                                                             | "                  | "     |
| 53-04-09               | (b) Other concentrates .. .. .                                                                                                                                                      | "                  | "     |                        | Fruit juices, unfermented, whether frozen or not (including syrups and natural fruit flavours)*:—                                                                             |                    |       |
|                        | Hides of cattle, including buffalo, and hides of horses, mules and asses, undressed:—                                                                                               | Centals of 100 lb. |       | 53-04-01               | (a) Passion fruit concentrates .. .. .                                                                                                                                        | Imp. gal.          | "     |
| 211-01-01              | (a) Ground-dried .. .. .                                                                                                                                                            | "                  | "     | 53-04-02               | (b) Pineapple concentrates .. .. .                                                                                                                                            | "                  | "     |
| 211-01-02              | (b) Suspension-dried .. .. .                                                                                                                                                        | "                  | "     | 53-04-09               | (c) Other concentrates .. .. .                                                                                                                                                | "                  | "     |
| 211-01-03              | (c) Wet-salted hides .. .. .                                                                                                                                                        | "                  | "     |                        | Hides of cattle, including buffalo, and hides of horses, mules and asses, undressed:—                                                                                         | Centals of 100 lb. |       |
|                        | Calf skins and kip skins, undressed:—                                                                                                                                               |                    |       | 211-01-01              | (a) Ground-dried .. .. .                                                                                                                                                      | "                  | "     |
| 211-02-01              | (a) Ground-dried .. .. .                                                                                                                                                            | "                  | "     | 211-01-02              | (b) Suspension-dried .. .. .                                                                                                                                                  | "                  | "     |
| 211-02-02              | (b) Suspension-dried .. .. .                                                                                                                                                        | "                  | "     | 211-01-03              | (c) Wet-salted .. .. .                                                                                                                                                        | "                  | "     |
|                        | Sheep skins and lamb skins (except astrakhan, caracul, persian lamb, broadtail), undressed:—                                                                                        |                    |       | 211-01-04              | (d) Pickled .. .. .                                                                                                                                                           | "                  | "     |
| 211-03-01              | (a) Ground-dried .. .. .                                                                                                                                                            | "                  | "     |                        | Calf skins and kip skins, undressed:—                                                                                                                                         |                    |       |
| 211-03-02              | (b) Suspension-dried .. .. .                                                                                                                                                        | "                  | "     | 211-02-01              | (a) Ground-dried .. .. .                                                                                                                                                      | "                  | "     |
|                        | Hides and skins, undressed, n.e.s.:—                                                                                                                                                |                    |       | 211-02-02              | (b) Suspension-dried .. .. .                                                                                                                                                  | "                  | "     |
| 211-09-01              | (a) Crocodile .. .. .                                                                                                                                                               | "                  | "     | 211-02-03              | (c) Wet-salted .. .. .                                                                                                                                                        | "                  | "     |
| 211-09-09              | (b) Other .. .. .                                                                                                                                                                   | "                  | "     |                        | Sheep skins and lamb skins (except astrakhan, caracul, persian lamb, broadtail), undressed:—                                                                                  |                    |       |
|                        | Sawlogs and veneer logs—non-conifer:—                                                                                                                                               |                    |       | 211-03-01              | (a) Ground-dried .. .. .                                                                                                                                                      | "                  | "     |
| 242-03-01              | (a) Mvule (Iroko) .. .. .                                                                                                                                                           | Cubic ft.          | "     | 211-03-02              | (b) Suspension-dried .. .. .                                                                                                                                                  | "                  | "     |
| 242-03-02              | (b) Camphorwood .. .. .                                                                                                                                                             | "                  | "     | 211-03-03              | (c) Pickled .. .. .                                                                                                                                                           | "                  | "     |
| 242-03-03              | (c) Blackwood .. .. .                                                                                                                                                               | "                  | "     |                        | Hides and skins, undressed, n.e.s.:—                                                                                                                                          |                    |       |
| 242-03-04              | (d) Sandalwood .. .. .                                                                                                                                                              | "                  | "     | 211-09-01              | (a) Crocodile .. .. .                                                                                                                                                         | "                  | "     |
| 242-03-05              | (e) Mninga (Kejaat) .. .. .                                                                                                                                                         | "                  | "     | 211-09-02              | (b) Wet-salted .. .. .                                                                                                                                                        | "                  | "     |
| 242-03-06              | (f) Teak .. .. .                                                                                                                                                                    | "                  | "     | 211-09-03              | (c) Other .. .. .                                                                                                                                                             | "                  | "     |
| 242-03-07              | (g) Mahogany .. .. .                                                                                                                                                                | "                  | "     |                        | Sawlogs and veneer logs—non-conifer:—                                                                                                                                         |                    |       |
| 242-03-09              | (h) Other fine woods .. .. .                                                                                                                                                        | "                  | "     | 242-03-01              | (a) Mvule (Iroko) .. .. .                                                                                                                                                     | Cubic ft.          | "     |
|                        | Lumber, sawn, planed, grooved, tongued, etc., non-conifer:—                                                                                                                         |                    |       | 242-03-02              | (b) Camphorwood .. .. .                                                                                                                                                       | "                  | "     |
| 243-03-01              | (a) Mvule (Iroko) .. .. .                                                                                                                                                           | "                  | "     | 242-03-03              | (c) Blackwood .. .. .                                                                                                                                                         | "                  | "     |
| 243-03-02              | (b) Camphorwood .. .. .                                                                                                                                                             | "                  | "     | 242-03-04              | (d) Sandalwood .. .. .                                                                                                                                                        | "                  | "     |
| 243-03-03              | (c) Blackwood .. .. .                                                                                                                                                               | "                  | "     | 242-03-05              | (e) Mninga (Kejaat) .. .. .                                                                                                                                                   | "                  | "     |
| 243-03-04              | (d) Sandalwood .. .. .                                                                                                                                                              | "                  | "     | 242-03-06              | (f) Teak .. .. .                                                                                                                                                              | "                  | "     |
| 243-03-05              | (e) Mninga (Kejaat) .. .. .                                                                                                                                                         | "                  | "     | 242-03-07              | (g) Mahogany .. .. .                                                                                                                                                          | "                  | "     |
| 243-03-06              | (f) Teak .. .. .                                                                                                                                                                    | "                  | "     | 242-03-08              | (h) Loliondo .. .. .                                                                                                                                                          | "                  | "     |
| 243-03-07              | (g) Mahogany .. .. .                                                                                                                                                                | "                  | "     | 242-03-10              | (i) Muhugwe .. .. .                                                                                                                                                           | "                  | "     |
| 243-03-08              | (h) Loliondo .. .. .                                                                                                                                                                | "                  | "     | 242-03-19              | (j) Other hard woods .. .. .                                                                                                                                                  | "                  | "     |
| 243-03-09              | (i) Muhugwe .. .. .                                                                                                                                                                 | "                  | "     |                        | Lumber, sawn, planed, grooved, tongued, etc.—non-conifer:—                                                                                                                    |                    |       |
|                        |                                                                                                                                                                                     |                    |       | 243-03-01              | (a) Mvule (Iroko) .. .. .                                                                                                                                                     | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-02              | (b) Camphorwood .. .. .                                                                                                                                                       | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-03              | (c) Blackwood .. .. .                                                                                                                                                         | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-04              | (d) Sandalwood .. .. .                                                                                                                                                        | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-05              | (e) Mninga (Kejaat) .. .. .                                                                                                                                                   | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-06              | (f) Teak .. .. .                                                                                                                                                              | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-07              | (g) Mahogany .. .. .                                                                                                                                                          | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-08              | (h) Loliondo .. .. .                                                                                                                                                          | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-10              | (i) Muhugwe .. .. .                                                                                                                                                           | "                  | "     |
|                        |                                                                                                                                                                                     |                    |       | 243-03-19              | (j) Other hard woods .. .. .                                                                                                                                                  | "                  | "     |

SCHEDULE—(Contd.)

| PRESENT CLASSIFICATION |                                                                                                                                                                                    |                    |       | AMENDED CLASSIFICATION |                                                                                                                                                                                   |                    |       |
|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------|------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------|
| Code                   | Group No., Division No. and Item                                                                                                                                                   | Unit               | Value | Code                   | Group No., Division No. and Item                                                                                                                                                  | Unit               | Value |
|                        | Vegetable saps, juices and extracts (except dyeing and tanning extracts) and vegetable materials, including pectin, algæ and kapok, n.e.s.:—                                       |                    |       |                        | Vegetable saps, juices and extracts (except dyeing and tanning extracts) and vegetable materials, including pectin, algæ and kapok, n.e.s.:—                                      |                    |       |
| 292-09-01              | (a) Papain .. .. .                                                                                                                                                                 | Centals of 100 lb. | Value | 292-09-01              | (a) Papain .. .. .                                                                                                                                                                | Centals of 100 lb. | Value |
| 292-09-02              | (b) Kapok .. .. .                                                                                                                                                                  | "                  | "     | 292-09-02              | (b) Kapok .. .. .                                                                                                                                                                 | "                  | "     |
| 292-09-03              | (c) Seaweed .. .. .                                                                                                                                                                | "                  | "     | 292-09-03              | (c) Seaweed .. .. .                                                                                                                                                               | "                  | "     |
| 292-09-09              | (d) Other .. .. .                                                                                                                                                                  | —                  | "     | 292-09-04              | (d) Pyrethrum .. .. .                                                                                                                                                             | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 292-09-05              | (e) Pectin .. .. .                                                                                                                                                                | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 292-09-09              | (f) Other .. .. .                                                                                                                                                                 | —                  | "     |
|                        | Lubricating oils and greases, including mixtures with animal and vegetable lubricants:—                                                                                            |                    |       |                        | Lubricating oils and greases, including mixtures with animal and vegetable lubricants:—                                                                                           |                    |       |
| 313-04-01              | (a) Greases .. .. .                                                                                                                                                                | Centals of 100 lb. | "     | 313-04-01              | (a) Greases .. .. .                                                                                                                                                               | Centals of 100 lb. | "     |
| 313-04-02              | (b) Transformer and batching oil .. .. .                                                                                                                                           | Imp. gal.          | "     | 313-04-02              | (b) Transformer and batching oil .. .. .                                                                                                                                          | Imp. gal.          | "     |
| 313-04-03              | (c) Brake fluid .. .. .                                                                                                                                                            | "                  | "     | 313-04-03              | (c) Brake fluid .. .. .                                                                                                                                                           | "                  | "     |
| 313-04-09              | (d) Other oils .. .. .                                                                                                                                                             | "                  | "     | 313-04-04              | (d) Lubricating oils .. .. .                                                                                                                                                      | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 313-04-09              | (e) Other oils .. .. .                                                                                                                                                            | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 313-06                 | Mineral turpentine .. .. .                                                                                                                                                        | "                  | "     |
| 561-01                 | Nitrogenous fertilizers and nitrogenous fertilizer materials (other than natural), n.e.s. .. .. .                                                                                  | Centals of 100 lb. | "     |                        | Nitrogenous fertilizers and nitrogenous fertilizer materials (other than natural), n.e.s.:—                                                                                       |                    |       |
|                        |                                                                                                                                                                                    |                    |       | 561-01-01              | (a) Sulphate of ammonia .. .. .                                                                                                                                                   | Centals of 100 lb. | "     |
| 561-02                 | Phosphatic fertilizers and phosphatic fertilizer materials (other than natural) including super phosphates and basic dephosphorization slag .. .. .                                | "                  | "     | 561-01-09              | (b) Other .. .. .                                                                                                                                                                 | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       |                        | Phosphatic fertilizers and phosphatic fertilizer materials (other than natural) including super phosphates and basic dephosphorization slag:—                                     |                    |       |
|                        | Builders woodwork (including doors, sashes, blocks and strips for parquet and other flooring, and ready cut wooden parts of buildings, with or without fittings and accessories):— |                    |       | 561-02-01              | (a) Superphosphates .. .. .                                                                                                                                                       | "                  | "     |
| 632-03-01              | (a) Parquet flooring .. .. .                                                                                                                                                       | Cubic ft.          | "     | 561-02-09              | (b) Other phosphate fertilizers .. .. .                                                                                                                                           | "                  | "     |
| 632-03-09              | (b) Other .. .. .                                                                                                                                                                  | Centals of 100 lb. | "     |                        | Builders woodwork (including doors, sashes, blocks and strips for parquet and other flooring and ready cut wooden parts of buildings, with or without fittings and accessories):— |                    |       |
|                        |                                                                                                                                                                                    |                    |       |                        | (a) Blocks and strips for parquet flooring, conifer—                                                                                                                              |                    |       |
|                        |                                                                                                                                                                                    |                    |       | 632-03-01              | (1) Cedar .. .. .                                                                                                                                                                 | Cubic ft.          | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-02              | (2) Podocarpus .. .. .                                                                                                                                                            | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-03              | (3) Cypress .. .. .                                                                                                                                                               | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-09              | (4) Other soft woods .. .. .                                                                                                                                                      | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       |                        | (b) Blocks and strips for parquet flooring, non-conifer—                                                                                                                          |                    |       |
|                        |                                                                                                                                                                                    |                    |       | 632-03-11              | (1) Mvule (Iroko) .. .. .                                                                                                                                                         | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-12              | (2) Camphorwood .. .. .                                                                                                                                                           | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-13              | (3) Blackwood .. .. .                                                                                                                                                             | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-14              | (4) Sandalwood .. .. .                                                                                                                                                            | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-15              | (5) Mninga (Kejaat) .. .. .                                                                                                                                                       | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-16              | (6) Teak .. .. .                                                                                                                                                                  | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-17              | (7) Mahogany .. .. .                                                                                                                                                              | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-18              | (8) Loliondo .. .. .                                                                                                                                                              | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-20              | (9) Muhugwe .. .. .                                                                                                                                                               | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 632-03-29              | (10) Other hard woods .. .. .                                                                                                                                                     | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       |                        |                                                                                                                                                                                   |                    |       |
|                        |                                                                                                                                                                                    |                    |       | 632-03-99              | (c) Other .. .. .                                                                                                                                                                 | Centals of 100 lb. | "     |
|                        | Aluminium and aluminium alloys, worked (bars, rods, plates, sheets, wire, pipes, tubes, castings and forgings):—                                                                   |                    |       |                        | Aluminium and aluminium alloys, worked (bars, rods, plates, sheets, wire, pipes, tubes, castings and forgings):—                                                                  |                    |       |
| 684-02-01              | (a) Bars, rods, plates and sheets .. .. .                                                                                                                                          | "                  | "     | 684-02-01              | (a) Angles, bars, rods, tubes, shapes and sections .. .. .                                                                                                                        | "                  | "     |
| 684-02-02              | (b) Wire .. .. .                                                                                                                                                                   | "                  | "     | 684-02-02              | (b) Wire .. .. .                                                                                                                                                                  | "                  | "     |
| 684-02-09              | (c) Other .. .. .                                                                                                                                                                  | "                  | "     | 684-02-03              | (c) Flat and coiled sheets .. .. .                                                                                                                                                | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 684-02-04              | (d) Corrugated sheets .. .. .                                                                                                                                                     | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 684-02-05              | (e) Circles .. .. .                                                                                                                                                               | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 684-02-06              | (f) Foils .. .. .                                                                                                                                                                 | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 684-02-09              | (g) Other .. .. .                                                                                                                                                                 | "                  | "     |
|                        | Machinery and appliances (other than electric), n.e.s.:—                                                                                                                           |                    |       |                        | Machinery and appliances (other than electric), n.e.s.:—                                                                                                                          |                    |       |
| 716-13-01              | (a) Coffee factory machinery .. .. .                                                                                                                                               | "                  | "     | 716-13-01              | (a) Coffee factory machinery .. .. .                                                                                                                                              | "                  | "     |
| 716-13-02              | (b) Meal and flour-making machinery .. .. .                                                                                                                                        | "                  | "     | 716-13-02              | (b) Meal and flour-making machinery .. .. .                                                                                                                                       | "                  | "     |
| 716-13-03              | (c) Vegetable oil extracting machinery .. .. .                                                                                                                                     | "                  | "     | 716-13-03              | (c) Vegetable oil extracting machinery .. .. .                                                                                                                                    | "                  | "     |
| 716-13-04              | (d) Soap-making machinery .. .. .                                                                                                                                                  | "                  | "     | 716-13-04              | (d) Soap-making machinery .. .. .                                                                                                                                                 | "                  | "     |
| 716-13-05              | (e) Weighing machinery .. .. .                                                                                                                                                     | "                  | "     | 716-13-05              | (e) Weighing machinery .. .. .                                                                                                                                                    | "                  | "     |
| 716-13-09              | (f) Other .. .. .                                                                                                                                                                  | "                  | "     | 716-13-06              | (f) Sugar machinery .. .. .                                                                                                                                                       | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 716-13-07              | (g) Tea machinery .. .. .                                                                                                                                                         | "                  | "     |
|                        |                                                                                                                                                                                    |                    |       | 716-13-09              | (h) Other .. .. .                                                                                                                                                                 | "                  | "     |

GENERAL NOTICE No. 2868

**EAST AFRICA HIGH COMMISSION**  
**EAST AFRICAN CUSTOMS AND EXCISE DEPARTMENT**  
**AUCTION SALE**

NOTICE is hereby given that the undermentioned goods will be sold by public auction at the Auction Rooms of Messrs. Jamal Pirbhai, Nairobi, on 8th January, 1956, at 10 a.m. if not cleared before that date.

G. R. COATS,  
*Regional Commissioner of Customs and Excise, Kenya.*

**BONDED GOODS FOR SALE IN DEFAULT OF RE-WAREHOUSING**

| Item | Entry Number and Date                   | Importer's Name                    | Description                                                           |
|------|-----------------------------------------|------------------------------------|-----------------------------------------------------------------------|
| 1    | Re. Whsg. 25 of 28-8-53 .. .. .         | Royal Restaurants, Nairobi .. .. . | 15 cases still wines; 10 cases sparkling wines.                       |
| 2    | Re. Whsg. 26 of 28-8-53 .. .. .         | Royal Restaurants, Nairobi .. .. . | 12 cases dry gin; 28 cartons V.O. Genever (Gin); 39 cartons liqueurs. |
| 3    | L. Ex. Whse. Rml. 7 of 16-9-53 .. .. .  | Mohanlal Kalyanji, Nairobi .. .. . | 1 cask table earthenware.                                             |
| 4    | L. Ex. Whse. Rml. 11 of 16-9-53 .. .. . | Office Supply Co., Nairobi .. .. . | 25 cases typewriters.                                                 |
| 5    | Re. Whsg. 39 of 23-9-53 .. .. .         | Ranmal Ala, Nairobi .. .. .        | 5 cases brandy                                                        |

**UNENTERED GOODS LYING IN THE QUEEN'S WAREHOUSE OVER TWO MONTHS**

| Item | Entry Number and Date          | Importer's Name                                            | Description                                                                    |
|------|--------------------------------|------------------------------------------------------------|--------------------------------------------------------------------------------|
| 6    | Want of Entry NW 16/55 .. .. . | International Agencies Ltd., Nairobi .. .. .               | 1 parcel samples of shirts, etc.                                               |
| 7    | NW 18/55 .. .. .               | H. A. Turner, Nairobi .. .. .                              | 1 parcel tennis balls.                                                         |
| 8    | PP 6/55 .. .. .                | —                                                          | 1 parcel synthetic resin; 1 parcel pruning shears; 1 parcel one map of London. |
| 9    | ELH 66/55 .. .. .              | Ms. R. Sinclair, Nairobi .. .. .                           | 1 parcel textile cuttings.                                                     |
| 10   | 81/55 .. .. .                  | Mr. P. Walsh, Nairobi .. .. .                              | 1 parcel two prayer books and rosaries.                                        |
| 11   | 87/55 .. .. .                  | Mr. G. L. Peet, Nairobi .. .. .                            | 1 parcel motor vehicle spares.                                                 |
| 12   | 88/55 .. .. .                  | Station Manager, E.A.A.C., Nairobi .. .. .                 | 1 parcel two golf putters.                                                     |
| 13   | 89/55 .. .. .                  | Ms. R. Sinclair, Nairobi .. .. .                           | 1 parcel textile cuttings.                                                     |
| 14   | 99/55 .. .. .                  | —                                                          | 1 parcel ladies blouses.                                                       |
| 15   | 101/55 .. .. .                 | Mr. Gordon Stouffer, Nairobi .. .. .                       | 1 parcel dry battery cells.                                                    |
| 16   | 106/55 .. .. .                 | Ms. Overseas Representatives Ltd., Nairobi .. .. .         | 1 parcel shirts and belts.                                                     |
| 17   | 107/55 .. .. .                 | Continental Indenting House, Nairobi .. .. .               | 1 parcel textile cuttings and imitation jewellery.                             |
| 18   | 109/55 .. .. .                 | Mr. Marl Bensing, c/o Ker and Downey Ltd., Nairobi .. .. . | 1 parcel camera parts.                                                         |
| 19   | 111/55 .. .. .                 | Neptune Agencies, Nairobi .. .. .                          | 1 parcel samples of wearing apparel.                                           |
| 20   | 117/55 .. .. .                 | Mountain and Co. Ltd., Nairobi .. .. .                     | 1 parcel samples of shirts.                                                    |
| 21   | 122/55 .. .. .                 | Kanti and Co., Nairobi .. .. .                             | 1 parcel plastic raincoats.                                                    |
| 22   | 124/55 .. .. .                 | Mercantile Central Agency, Nairobi .. .. .                 | 1 parcel pens, pencils, lighters, etc.                                         |
| 23   | 125/55 .. .. .                 | Textrade Ltd., Nairobi .. .. .                             | 1 parcel textile cuttings.                                                     |
| 24   | 128/55 .. .. .                 | Mountain and Co. Ltd., Nairobi .. .. .                     | 1 parcel cotton towels.                                                        |
| 25   | 131/55 .. .. .                 | Eastern Watch Co., Nairobi .. .. .                         | 1 parcel two watches.                                                          |
| 26   | 132/55 .. .. .                 | Standard Bank of South Africa Ltd., Nairobi .. .. .        | 1 parcel camera spares.                                                        |
| 27   | 136/55 .. .. .                 | Capricorn Africa Society, Nairobi .. .. .                  | 2 parcels metal badges.                                                        |
| 28   | 137/55 .. .. .                 | International Agencies Ltd., Nairobi .. .. .               | 1 parcel samples of shirts.                                                    |
| 29   | 139/55 .. .. .                 | International Representatives, Nairobi .. .. .             | 1 parcel basketball shoes.                                                     |

**UNCLAIMED GOODS LYING IN THE QUEEN'S WAREHOUSE OVER TWO MONTHS**

| Item | Entry Number and Date           | Importer's Name | Description                                                               |
|------|---------------------------------|-----------------|---------------------------------------------------------------------------|
| 30   | Want of Entry ELH 79/55 .. .. . | —               | 1 parcel Plantoid; 1 tin Ermol; 2 umbrellas; 1 tennis racket; 1 tricycle. |
| 31   | ELH/RB 5/55 .. .. .             | —               | 1 "Koroll" 25 mm. camera.                                                 |

**ABANDONED GOODS LYING IN THE QUEEN'S WAREHOUSE OVER TWO MONTHS**

| Item | Entry Number and Date | Importer's Name | Description              |
|------|-----------------------|-----------------|--------------------------|
| 32   | NB 3/55 .. .. .       | —               | 1 beauty case (damaged). |

**SIEZED GOODS LYING IN THE QUEEN'S WAREHOUSE**

| Item | Entry Number and Date | Importer's Name | Description                        |
|------|-----------------------|-----------------|------------------------------------|
| 33   | S.N. NB 33/55 .. .. . | —               | 300 cigarettes.                    |
| 34   | S.N. NB 44/55 .. .. . | —               | 11 cigarette lighters; 100 cigars. |

GENERAL NOTICE No. 2869

**HER MAJESTY'S SUPREME COURT OF KENYA**

NOTICE is hereby given that the following Sessions of Her Majesty's Supreme Court of Kenya will be held at the places set out hereunder:—

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 7-11-55**

Cr. C. No. 159/55 Regina vs. Leo Hoyle.

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 14-11-55**

Cr. C. No. 138/55 Regina vs. Harold Whipp and Chaudhary Mohamed Shariff.

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 21-11-55**

Cr. C. No. 174/55 Regina vs. Mumbi s/o Mumo.

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 28-11-55**

Cr. C. No. 182/55 Regina vs. Oulu s/o Abondo.  
 Em. Cr. Trials Case No. 204/55 Regina vs. Grishon Kaviyva alias Kabibya and three others.

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 5-12-55**

Cr. C. No. 181/55 Regina vs. Kerongo arap Koini.  
 Cr. C. No. 189/55 Regina vs. Kakile s/o Mwanzau.  
 Cr. C. No. 191/55 Regina vs. Muriuki Gachengwa and another.  
 Cr. C. No. 199/55 Regina vs. Kimolo Mule.

**SUPREME COURT CRIMINAL SESSIONS AT NAIROBI, 12-12-55**

Cr. C. No. 157/55 Regina vs. Jacob Daniel Venman.

**SUPREME COURT CRIMINAL SESSIONS AT MOMBASA, 6-12-55**

*For Hearing*

Cr. C. No. 20/55 Regina vs. Khamisi Zuberi Atumani.  
 Cr. C. No. 23/55 Regina vs. Kombo s/o Sila.  
 Cr. C. No. 26/55 Regina vs. Fakii Juma Shebani.  
 Cr. C. No. 27/55 Regina vs. Nyota s/o Nyawa, Benduba s/o Mwero, Bodwe s/o Mwaona, Mugomba s/o Mwaona.  
 Cr. C. No. 28/55 Regina vs. Maro Adi.  
 Cr. A. No. 58/55 Abdalla s/o Ombin vs. Regina.  
 Cr. A. No. 59/55 Ochando s/o Ayata vs. Regina.  
 Cr. A. No. 60/55 Ochieng s/o Abutu vs. Regina.  
 Cr. A. No. 61/55 Magote s/o Mashere vs. Regina.

W. S. O. DAVIES,  
*Deputy Registrar.*

GENERAL NOTICE NO. 2870

## THE TRANSPORT LICENSING ORDINANCE

(Cap. 237)

THE undermentioned applications will be considered by the Transport Licensing Board meeting at the Social Service League Hall, Duke Street, Nairobi, at 9 a.m. on Tuesday, 20th December, 1955. Any person who objects to any application must lodge a copy of his objection on the prescribed form with the applicant and the Board not later than midday, 15th December, 1955.

A. H. EDWARDS,  
Executive Officer,  
Transport Licensing Board.  
P.O. Box 820, Nairobi.

## ROAD SERVICE LICENCES

TLB. 2353—Esmail Alibhai Meralli, P.O. Box 2559, Nairobi.  
Route: Mombasa-Taveta-Moshi (two small taxis);  
Nairobi-Kisumu direct and via Kericho (two small taxis); Nairobi-Namanga (three small taxis).

(Vehicles interchangeable on all routes and to carry small parcels not exceeding 20 lb. in weight.)

NB/R/25/55—Gilani's, c/o P.O. Box 20, Nakuru. Route: Nakuru-Nairobi; Nakuru-Kisumu (two taxis).

## "B" CARRIERS' LICENCES

TLB. 7254—Northern Province Roadways, Ltd., P.O. Box 290, Arusha. Variation of route: Nairobi, Thika, Fort Hall, Nyeri, Nanyuki, Isiolo, Meru, for transport of products for E.A. Tobacco Co. Present route: Nairobi-Namanga (eight vehicles).

TLB. 724—Uganda Carrier's, Ltd., P.O. Box 468, Kampala. Carriage of oxygen cylinders. Route: Nairobi-Busia (two vehicles).

855—E.A. Railways and Harbours, P.O. Box 306, Nairobi. Carriage of general goods. Route: Nairobi City (two vehicles and three trailers).

## CARRIAGE OF PETROLEUM PRODUCTS

TLB. 215—Dr. G. B. Dessy, P.O. Box 1655, Nairobi. Route: Mombasa-Nairobi; Nairobi-Thika-Fort Hall-Nyeri-Nanyuki-Meru-Isiolo-Naro Moru-Thomson's Falls (two lorries and one trailer).

5/5—Bulwark Transport (East Africa), P.O. Box 388, Mombasa. Variation of route: to add Mombasa-Kibwezi; Mombasa-Malindi; Nairobi-Fort Hall-Nyeri - Nanyuki - Meru; Nairobi - Gilgil - Thomson's Falls; Nairobi-Mau Narok or alternatively all petroleum installations in Kenya Colony. Present route: Mombasa-Nairobi; Mombasa-Kenya/Tanganyika border (one vehicle).

575—United Transport Agencies, Ltd., P.O. Box 2559, Nairobi. Route: Mombasa-Tanga; Mombasa-Manyani; Mombasa - Taveta - Moshi; Mombasa-Malindi-Lamu (four vehicles).

598—Express Transport Co., Ltd., P.O. Box 433, Nairobi. Route: Mombasa-Nairobi (ten lorries and nine trailers).

1402—Tanga-Mombasa Transport Co., P.O. Box 7, Tanga. Route: Mombasa-Tanga (11 vehicles).

2073—Hasham Suleman Ladha, P.O. Box 133, Tanga. Route: Mombasa-Tanga (four vehicles).

TLB. 8430—Kassamali A. Khanbhai, P.O. Box 258, Tanga. Route: Mombasa-Tanga (six vehicles).

407—Hasham Mohamed, P.O. Box 1936, Mombasa. Route: Mombasa-Tanga; Mombasa-Lamu (three vehicles).

4296—Murgian & Sons, Ltd., P.O. Box 2109, Nairobi. Route: Mombasa-Nairobi (five lorries and five trailers).

807—E.A. Trading Enterprises, Ltd., P.O. Box 1465, Mombasa. Route: Kenya Colony (27 lorries and 16 trailers).

6041—Franco British Transport Co., P.O. Box 6673, Nairobi. Route: Mombasa-Nairobi (one vehicle).

399—Shah Vershi Devshi & Co., Ltd., P.O. Box 36, Thika. Route: Nairobi-Nanyuki (two vehicles).

9689—Nemchand & Co., P.O. Box 110, Thika. Route: Nairobi - Thika - Maragua - Donyo Sabuk - Mitubiri-Thika Area.

NB/B/70/55—Inter-Africa Transport Co., P.O. Box 1655, Nairobi. Route: Mombasa-Nairobi; Mombasa-Moshi (four lorries and four trailers).

84/55—H. I. Gadignani, P.O. Box 277, Mombasa. Route: Mombasa - Tanga; Mombasa - Nairobi - Kampala (three lorries and three trailers).

GENERAL NOTICE NO. 2871

## THE WATER ORDINANCE

| Name and District               | River and L.R. No.    | Quantity in Gallons per Day                        | Normal or Flood Flow     | Use                                                                    |
|---------------------------------|-----------------------|----------------------------------------------------|--------------------------|------------------------------------------------------------------------|
| G. Hopkins, Mweiga .. ..        | Rahuti, 4674/2 .. ..  | 5,300 .. .. .<br>2,000 .. .. .<br>100,000 .. .. .  | Normal                   | Domestic.<br>Minor irrigation.                                         |
| Njoro Canning Factory, Njoro .. | Njoro, 523/4 .. ..    | 2,000 .. .. .<br>5,000 .. .. .                     | "                        | General irrigation.<br>Domestic.                                       |
| Lillock, Ltd., Lumbwa .. ..     | Lelu, 4010/2 .. ..    | Construction of a dam 29 ft. in height .. .. .     | "                        | Industrial 100% returnable.                                            |
| Lt.-Col. R. F. Heath, Lumbwa .. | Namuting, 1441/2/1 .. | 7,500 .. .. .<br>2,000 .. .. .<br>10,000 .. .. .   | Flood<br>Normal          | Conservation of flood flow.<br>Domestic.                               |
| T. Frazer, Makuyu .. ..         | Unnamed, 4754 .. ..   | 3,700 .. .. .<br>400,000 .. .. .<br>60,000 .. .. . | Flood<br>Normal<br>Flood | Minor irrigation.<br>General irrigation.<br>Domestic.                  |
|                                 |                       |                                                    |                          | Pulping and washing of coffee (80% returnable).<br>General irrigation. |

Publication is made of the above applications for diversion of water, plans of which may be seen at the Public Works Department, Head Office, Nairobi, or at the office of the local Water Bailiff concerned.

Objections stating specific grounds therefor should be filed in duplicate with the Water Apportionment Board, P.O. Box 662, Nairobi, within thirty days from the date of publication of this notice and a copy served on the undersigned.

W. I. T. DEWAR,  
Lawfully Authorized Agent,  
P.O. Box 662, Nairobi.

## GENERAL NOTICE No. 2872

(5761/IV/277)

## COMPENSATION COMMITTEE

ATTENTION is drawn to General Notice No. 2310 of 4th October, 1955, in which notice was given that no claim for compensation would be considered by the Committee established to advise the Minister for Finance in respect of claims for losses attributable to terrorist activity, unless it shall have been submitted within six months of the date of the occurrence of the incident out of which the claim arises.

It is now notified for public information that the provisions of General Notice No. 2310 of 1955 will come into force on 1st January, 1956. That is to say that claims which are more than six months old will be considered on their merits up to 1st January, 1956, but that thereafter no such claims will be considered except in so far as the Minister may otherwise direct with respect to any particular case or class of cases.

## GENERAL NOTICE No. 2873

## THE WAR LOAN ORDINANCE

## LOSS OF BOND CERTIFICATE

IN PURSUANCE of the provisions of regulation 17 (2) of the War Loan Regulations, notice is hereby given that the undermentioned 2½ per cent East African War Bonds Certificate has been lost and that it is proposed, after expiration of 30 days from the date of this notice, to issue a duplicate of such certificate.

1952/1954, Series "B"

Bond Certificate No. 5132, for £1,500, Mrs. Ursula Mary Turner.

K. W. S. MACKENZIE,

Secretary to the Treasury,  
The Treasury, P.O. Box 591, Nairobi.

## GENERAL NOTICE No. 2874

## HER MAJESTY'S COURT OF APPEAL FOR EASTERN AFRICA

## VACATION

THE Court of Appeal for Eastern Africa will be on vacation from 23rd December until 7th January, 1956, both dates inclusive.

Except on public holidays the office of the Registrar will be open from 9 a.m. to 12.30 p.m. A Judge will be in attendance for the disposal of urgent business.

During the vacation special arrangements as necessary for the disposal of urgent criminal appeals will be notified.

Nairobi,  
18th November, 1955.M. D. DESAI,  
Acting Registrar.

## GENERAL NOTICE No. 2875

## SUPREME COURT VACATION—MOMBASA

THE Christmas vacation will commence on 21st December, 1955, and will terminate on 4th February, 1956.

During the vacation the trial of criminal cases will proceed as usual and a Judge will be available to hear urgent civil matters admitted to hearing upon application made in accordance with the Rules of Court (Vacation Rules), 1952—Government Notice No. 1356 of 1952. The offices of the Supreme Court and the Resident Magistrate's Court will be open to the public from 8 a.m. to 12.30 p.m. on all week-days other than on public holidays and next working day after Boxing Day, i.e. 27th December, 1955; and on Saturdays when they will close at 12 noon.

The Resident Magistrates at Mombasa will hear criminal cases as usual. Urgent civil matters or those in which advocates are not engaged may also be heard when convenient.

Mombasa,  
26th November, 1955.A. WYNN-JONES,  
Resident Magistrate.

## GENERAL NOTICE No. 2876

## EAST AFRICAN RAILWAYS AND HARBOURS

## REVISION OF HARBOUR DUES AND CHARGES

## (Kenya Section)

IT IS notified for general information that the list of amendments to the Tariff of Harbour Dues and Charges No. 5 of August, 1945, published in the Official Gazette dated 13th September, 1953 (General Notice No. 2127), and to come into effect on 1st January, 1956, will be further amended in the following respect:—

## CLAUSE 22.—Hire of Cranes.

## (a) Quay or Jetty Cranes.

Sub-section (ii).—Delete the charge of Sh. 20.00 and substitute therefor Sh. 18.00.

Nairobi,  
30th November, 1955.A. F. KIRBY,  
General Manager.

## GENERAL NOTICE No. 2877

IN HER MAJESTY'S SUPREME COURT OF KENYA  
AT KISUMU

NOTICE is hereby given that the following criminal cases will be heard at Her Majesty's Supreme Court Criminal Sessions commencing at Kisumu on the 6th day of December, 1955:—

Cr. C. No. 152/55 Regina vs. Mazinza s/o Ruheyia.

Cr. C. No. 158/55 Regina vs. Nereya Mukolwe w/o Koricho.

Cr. C. No. 171/55 Regina vs. Kichure s/o Onyancha.

Cr. C. No. 185/55 Regina vs. (1) Nyandieka s/o Nyandieka,  
(2) John s/o Nokiro, (3) Oyaro s/o Nyandieka,  
(4) Angwenyi s/o Ombwori.

Cr. C. No. 186/55 Regina vs. Blasio Ochire s/o Okaka.

Cr. C. No. 187/55 Regina vs. Otiende s/o Otiende.

Cr. C. No. 188/55 Regina vs. Masuba s/o Chacha.

Cr. C. No. 190/55 Regina vs. Chamon arap Towet.

Cr. C. No. 200/55 Regina vs. Akelo s/o Musewe.

## GENERAL NOTICE No. 2878

## PUBLIC WORKS DEPARTMENT—NYANZA DIVISION

## TENDERS

TENDERS are invited for supplying from 1st January, 1956, to 30th June, 1956, within the Township of Kisumu, Kericho, Kisii and Kakamega, building stone, ballast, murram, sand, lime, hardwoods, podo, cedar, *posho*, sugar, burnt bricks, vegetables, and for motor transport on a three-ton-mile basis.

No guarantee can be given as to the quantities required during the above period.

Forms of tender and specifications may be obtained from the Senior Engineer, Public Works Department, Nyanza Division, P.O. Box 821, Kisumu.

Tenders must be sealed, marked "Materials Tender", and placed in the Divisional Tender Box by 12 noon on 20th December, 1955.

The lowest or any tender will not necessarily be accepted.

D. G. M. GARDNER,  
Chairman, Divisional Tender Board.

## GENERAL NOTICE No. 2879

PUBLIC WORKS DEPARTMENT—CENTRAL  
DIVISION (SOUTH)INVITATION TO TENDER FOR THE SUPPLY OF BUILDING MATERIALS  
AND RATIONS FOR THE PERIOD 1ST JANUARY, 1956, TO  
30TH JUNE, 1956

TENDERS are invited for the supply of the undermentioned building materials and rations.

Quotations must include for transport and delivery to sites within a 10-mile radius measured from the Divisional Headquarters:—

Building sand.

Ballast.

Special grade black-trap.

Quarry chips.

Quarry dressed building stone.

Murram.

Stone dust.

Rations (*posho*, sugar, beans, salt and meat).

Form of tender, conditions of tendering and specifications may be obtained from the Senior Engineer-in-Charge, Central Division (South), Public Works Department, P.O. Box 2267, Nairobi, on payment of a deposit of shillings one hundred (Sh. 100) which will be refunded on receipt of a bona fide tender not subsequently withdrawn within 31 days of opening date of tenders.

Tenders must be sealed in the envelope provided and must be received by the undersigned not later than 10.00 hours on Wednesday, 21st December, 1955.

The successful tenderer will be required to enter into a contract and provide a cash bond of Sh. 2,000 for the satisfactory performance of the contract.

No guarantee can be given as to the quantities required during the above-mentioned period.

The lowest or any tender will not necessarily be accepted.

P. JANSZ,  
Chairman, Divisional Tender Board,  
P.O. Box 2267, Nairobi.



## GENERAL NOTICE No. 2880

PUBLIC WORKS DEPARTMENT—CENTRAL  
DIVISION (SOUTH)

INVITATION TO TENDER FOR THE SUPPLY OF BUILDING MATERIALS  
FOR THE PERIOD 1ST JANUARY, 1956, TO 30TH JUNE, 1956

TENDERS are invited for the supply and delivery of the undermentioned building materials and rations to building sites in the following areas where public works may be undertaken:—

Thika Township.  
Machakos Township.  
Athi River Township.  
Narok Township.  
Ruiru Township.

## Item

1. Building sand.
2. Ballast.
3. Special grade black-trap.
4. Quarry chips.
5. Quarry dressed building stone.
6. Murram.
7. Stone dust.
8. Standard quality podo and cedar class timber, cypress and other exotic softwoods.
9. *Posho*, sugar, beans, salt and meat.

Form of tender, conditions of tendering and specifications may be obtained from the Senior Engineer-in-Charge, Central Division (South), Public Works Department, P.O. Box 2267, Nairobi, on payment of a deposit of shillings one hundred (Sh. 100) which will be refunded on receipt of a bona fide tender not subsequently withdrawn within 31 days of opening date of tenders.

Special tender documents must also be obtained for timber.

Tenders must be sealed in the envelope provided and must be received by the undersigned not later than 10.00 hours on Wednesday, 21st December, 1955.

The successful tenderer will be required to enter into a contract and provide a cash bond of Sh. 2,000 for the satisfactory performance of the contract.

No guarantee can be given as to the quantities required during the above-mentioned period.

The lowest or any tender will not necessarily be accepted.

P. JANSZ,  
*Chairman, Divisional Tender Board,*  
P.O. Box 2267, Nairobi.

## GENERAL NOTICE No. 2881

PUBLIC WORKS DEPARTMENT—CENTRAL  
DIVISION (SOUTH)

INVITATION TO TENDER FOR THE SUPPLY OF STANDARD QUALITY  
SAWN TIMBER FOR THE PERIOD 1ST JANUARY, 1956, TO  
30TH JUNE, 1956

TENDERS are invited for the supply of the undermentioned classes of standard quality sawn timber, subject to the limitation laid down in paragraph 3 below, for transport and delivery to sites within a 10-mile radius measured from the Divisional Headquarters.

Prices must be quoted in running feet.

2. Alternative tenders are invited for the supply and delivery of standard quality sawn timber, as specified below, in railway truck loads free on rail at mill stations.

Prices must be quoted per board foot.

Standard quality podo class timber.

Standard quality cedar class timber.

Standard quality cypress and other exotic softwoods.

3. The Divisional Tender Board will be at liberty at any time and from time to time during the period aforesaid to purchase or obtain from any source or sources other than the contractor such supplies and quantities of timber, of whatever class, type or description, as may from time to time be required for any project for which the total quantity of timber exceeds 100 tons.

4. Form of tender, conditions of tendering and specifications may be obtained from the Senior Engineer-in-Charge, Central Division (South), Public Works Department, P.O. Box 2267, Nairobi, on payment of a deposit of shillings one hundred (Sh. 100) which will be refunded on receipt of a bona fide tender not subsequently withdrawn within 31 days of opening date of tenders.

5. Tenders must be sealed in the envelope provided and must be received by the undersigned not later than 10.00 hours on Wednesday, 21st December, 1955.

6. The successful tenderer will be required to enter into a contract and provide a cash bond of Sh. 2,000 for the satisfactory performance of the contract.

7. No guarantee can be given as to the quantities required during the above-mentioned period.

8. Special tender documents *must* be obtained for timber.

9. The lowest or any tender will not necessarily be accepted.

P. JANSZ,  
*Chairman, Divisional Tender Board,*  
P.O. Box 2267, Nairobi.

## GENERAL NOTICE No. 2882

PUBLIC WORKS DEPARTMENT—CENTRAL  
DIVISION (SOUTH)

## TRANSPORT OF MATERIALS

TENDERS are invited from approved haulage contractors for the period 1st January, 1956, to 30th June, 1956, for the hire of transport.

Form of tender and conditions of tendering may be obtained from the Senior Engineer-in-Charge, Central Division (South), Public Works Department, P.O. Box 2267, Nairobi, on payment of a deposit of shillings one hundred (Sh. 100) which will be refunded on receipt of a bona fide tender not subsequently withdrawn within 31 days of opening date of tenders.

Tenders must be sealed in the envelopes provided and must reach the undersigned not later than 10.00 hours on Wednesday, 21st December, 1955.

Tenderers must be in possession of current "B" licences for their vehicles.

The lowest or any tender will not necessarily be accepted.

The successful tenderer will be required to provide a cash bond of Sh. 2,000 to ensure the satisfactory performance of the contract.

P. JANSZ,  
*Chairman, Divisional Tender Board,*  
P.O. Box 2267, Nairobi.

## GENERAL NOTICE No. 2883

## THE EAST AFRICAN CURRENCY BOARD

PAYMENT of the value of the following mutilated currency notes has been claimed by the persons named. Any other person wishing to submit a claim in respect of these notes should communicate at once with the Currency Officer, Kampala:—

No. of note.—D/57 93882, for Sh. 5.

Name and address of claimant.—Mr. Dominiko Kachope,  
P.O. Box 3, Arua.

No. of note.—C/13 77696, for Sh. 10.

Name and address of claimant.—Cpl. Lusania, Arua Township.

Nos. of notes.—C/76 57420, C/56 82751, B/24 22717,  
B/26 09607, S/3 83432, for Sh. 10 each; B/18 47988,  
X/5 94037, for Sh. 20 each.

Name and address of claimant.—Standard Bank of South  
Africa, Ltd., Kampala.

Nos. of notes.—C/89 91705, D/66 25929, D/58 95229, for  
Sh. 10 each.

Name and address of claimant.—Mr. Tomasi Okelo, Lira.

No. of note.—D/59 55451, for Sh. 5.

Name and address of claimant.—Messrs. Dahyabhai Morarji  
and Co., Lira.

Nos. of notes.—E/48 87492, E/48 87491, for Sh. 10 each.

Name and address of claimant.—Mr. Sitefano Nekambuza,  
Mbale.

No. of note.—E/69 73936, for Sh. 10.

Name and address of claimant.—Mr. Aniseti Kakaire, Bufula,  
Jinja.

No. of note.—Y/1 33333, for Sh. 10.

Name and address of claimant.—Mr. G. W. Okalang, Police  
Station, Soroti.

Nos. of notes.—C/72 58007, for Sh. 5; X/1 26540, for Sh. 20.  
Name and address of claimant.—The Assistant District Com-  
missioner, Acholi.

No. of note.—B/54 52527, Sh. 20.

Name and address of claimant.—Mr. Masisiano Kariya,  
P.O. Box 40, Mbarara.

Nos. of notes.—W/1 68609, N/7 90928, for Sh. 10 each.

Name and address of claimant.—Messrs. P. Zaverbhai & Co.,  
Ltd., Masaka.

No. of note.—D/23 35024, for Sh. 10.

Name and address of claimant.—Mr. Aramanzani Bisanga,  
Fort Portal.

No. of note.—F/10 62303, for Sh. 100.

Name and address of claimant.—No. 3159, P. C. S. Kahangire,  
Mbale.

Nos. of notes.—D/28 19540, B/11 01315, X/5 87817, for  
Sh. 20 each.

Name and address of claimant.—Mr. Nathan Ocaya, P.O.  
Box 221, Kampala.

GENERAL NOTICE No. 2884

(Lan. 10/1/1)

## LANGUAGES EXAMINATIONS

THE following results are notified for general information:—

## PRELIMINARY ORAL SWAHILI EXAMINATION

(Pass)

## Administration—

A. J. Carn.  
R. K. Duff.  
P. C. Jolley.  
T. D. Preston.

## Agriculture—

P. H. Gatley.  
E. T. Powis.  
J. E. Russell.  
R. B. Todd.

## Education—

Mrs. A. Brotherton.  
G. P. Burt.  
Mrs. H. M. Tofte.  
Mrs. J. M. Webster.  
Mrs. A. M. Wharram.

## Forests—

M. McCoy-Hill.

## Police—

M. R. Banks.  
B. C. Brooke.  
J. Crossley.  
D. S. Dhillon.  
M. R. Green.  
G. R. Gunson.  
J. Lewis.  
J. M. MacNeill.  
Mrs. M. J. Markham.  
F. G. B. Peace.  
I. L. Pritchard.  
D. R. Prophet.

## Police—(Contd.)

G. Shaw.  
J. D. Sprague.  
J. M. Taqi.  
C. A. Williams.

## Public Works—

P. Cervo.  
E. Losego.  
D. W. Muir.  
H. J. Nash.  
R. Pearce.  
G. W. Perrins.  
A. H. Randall.  
H. Sullivan.  
W. Young.

## Prisons—

W. H. G. Flowers.  
N. Morton.  
B. S. Osborne.  
F. C. J. Pratt.  
M. Pryor.  
R. W. D. Sword.

## Registrar General—

H. T. Pryor.

## Surveys—

J. V. Tucker.

## Veterinary—

T. S. Davies.

Nairobi,  
2nd December, 1955.

A. N. LAW,  
Secretary, Languages Board.

GENERAL NOTICE No. 2885

IN THE RESIDENT MAGISTRATE'S COURT  
AT KISUMU

## NOTICE OF INTENDED DESTRUCTION OF COURT RECORDS

THREE months after the date of publication of this notice I intend to apply to the Chief Justice for leave to destroy the records of the Courts of the Resident Magistrate, Second and Third Class Magistrates at Kisumu as set out below:—

Second Class Magistrate's Court Civil Proceedings  
Numbered

1926 .. 1 to 152, 158 to 161, 163 to 266, 268 to 484.  
1927 .. 1 to 50, 101 to 500, 502 to 553, 555 to 565, 569 to 582, 584, 586 to 590, 593 to 596, 598 to 628.  
1928 .. 1 to 35, 37 to 202, 204 to 262.

Third Class Magistrate's Court Civil Proceedings  
Numbered

1928 .. 1 to 119, 121 to 223, 225 to 229, 231 to 233.

Resident Magistrate's Court Civil Proceedings  
Numbered

1930 .. 515.  
1931 .. 660.  
1932 .. 228, 314, 409, 459, 485, 591, 613.  
1933 .. 68, 302, 321, 333, 391, 426, 465, 488, 506.  
1934 .. 24, 32, 202, 291, 292, 301, 475, 497.  
1935 .. 18, 88, 165, 202, 269, 365, 366, 386, 413, 419, 432, 463, 512, 551, 602, 625, 634, 654, 662, 702, 723, 726, 730, 736, 756.  
1936 .. 107, 399, 451 to 466.  
1939 .. 1 to 57, 59 to 350, 378 to 548, 551 to 579, 581 to 667, 669 to 943.  
1940 .. 1 to 74, 76 to 297, 299 to 397, 400 to 700, 702 to 716.  
1941 .. 1, 3 to 23, 25 to 30, 32 to 58, 60 to 94, 96 to 112, 114 to 132, 134 to 179, 181 to 182, 186 to 213, 215 to 369, 372 to 381, 383 to 390, 392 to 396, 398 to 403, 405 to 408.  
1942 .. 1, 2, 4 to 11, 13 to 16, 18, 19, 21 to 24, 26, 28 to 35, 37 to 46, 48 to 54, 56 to 59, 61 to 85, 87 to 89, 91, 92, 94, 95, 97 to 99, 101 to 103, 105 to 110, 112 to 124, 126 to 130, 132 to 135, 137 to 168, 170 to 173, 175 to 184, 187 to 197, 199, 200, 202, 204 to 227, 229, 231 to 233, 235 to 237, 239, 240, 242 to 245, 247, 249, 251 to 257, 259 and 261.

Any person desiring the return of an exhibit in any of the above cases must make good his claim before the 28th day of February, 1956.

All the exhibits to which no claim is substantiated as above will be liable to be included in the order for the destruction.

Kisumu,  
28th November, 1955.

ROGER J. QUIN,  
Resident Magistrate, Kisumu.

GENERAL NOTICE No. 2886

THE COMMISSIONER FOR OATHS (ADVOCATES)  
ORDINANCE

(Cap. 20)

## A COMMISSION

To all to whom these presents shall come, greeting:

BE-IT KNOWN that on the 18th day of November, 1955—

OM PARKASH SACHDEVA

an advocate of Her Majesty's Supreme Court of Kenya, was appointed to be a Commissioner for Oaths under the above-mentioned Chapter for as long as he continues to practise as such Advocate and this Commission is not revoked.

Given under my hand and the Seal of the Court this 18th day of November, 1955, at Nairobi.

K. K. O'CONNOR,  
Chief Justice,  
H.M. Supreme Court of Kenya.

GENERAL NOTICE No. 2887

THE EAST AFRICAN INDUSTRIAL LICENSING  
ORDINANCE, 1953

(Section 8)

## APPLICATION FOR THE GRANT OF AN INDUSTRIAL LICENCE

IN ACCORDANCE with the provisions of section 8 of the East African Industrial Licensing Ordinance, 1953, it is hereby notified for general information that an application dated 29th November, 1955, has been received from Soya Industrial and Food Products, Ltd. of P.O. Box 58, Jinja, Uganda, for the grant of an industrial licence to manufacture for sale and to erect, establish, and operate a factory for the manufacture for sale of glass bottles, jars, other receptacles and general glassware for domestic and industrial purposes, including lamp globes and chimneys, etc., and articles of advertising materials.

2. Any person having a financial interest in the East African Territories who claims that, in respect of any industry, commerce, or trade, in which he is concerned, he is liable to be injuriously affected by the granting of this application may, not later than 30 days from the date of the last publication of this notice, lodge with the Registrar an objection and shall serve a copy thereof on the applicant. Any objection so made must be in writing and must set out the grounds upon which the objector claims that he is liable to be injuriously affected by the granting of such application. An objection must be certified to the effect that a copy thereof has been served on the applicant.

L. F. BEVAN,  
Registrar,

East African Industrial Council,  
2nd December, 1955. P.O. Box 1091, Nairobi, Kenya Colony.

GENERAL NOTICE No. 2888

(Agr. 26/43 V)

## CONTROLLED PRODUCE

WITH reference to Government Notice No. 301 of 28th February, 1955, and to the Schedule of Controlled Produce—Minimum Prices of 1955 Plantings—attached thereto, the following amendments are hereby notified for public information:—

Beans  
(Masterpiece, Burma, Red  
Haricot and Soya)

## 3. Prices paid to producers—

- (a) At railhead markets other than Nyanza, Central and Southern Provinces .. for 31/20 substitute 41/75.  
(b) South Nyanza and Kericho (all markets) .. for 28/30 substitute 38/85.  
(c) Central and North Nyanza (all markets) .. for 29/30 substitute 39/85.  
(d) Central Province (railhead markets) .. for 29/20 substitute 39/75.  
(e) Southern Province (railhead markets) .. for 29/95 substitute 40/25.

## 5. Trader's commission .. for 1/55 substitute 2/-.

## 6. Price to trader for delivery at control store or railhead—

- (a) Other than Nyanza, Central or Southern Province .. for 32/75 substitute 43/75.  
(b) South Nyanza and Kericho .. for 33/25 substitute 44/25.  
(c) Central and North Nyanza .. for 33/25 substitute 44/25.  
(d) Central Province .. for 30/75 substitute 41/75.  
(e) Southern Province .. for 31/50 substitute 42/50.

## 10. Total cost to Control f.o.r. (without bags) .. for 34/- substitute 45/-.

Nairobi,  
23rd November, 1955.

M. BLUNDELL,  
Minister for Agriculture, Animal  
Husbandry and Water Resources.

## GENERAL NOTICE No. 2889

## THE REGISTRATION OF TITLES ORDINANCE

(Cap. 160)

WHEREAS Isobel Norah Fitzpatrick is registered as the proprietrix of the piece of land situate east of Ngong Township in the Kiambu District known as Land Reference No. 1160/17 by virtue of a certificate of title registered as No. I.R. 4216, and whereas sufficient evidence has been adduced to show that the said certificate of title has been lost, notice is hereby given that after the expiration of 90 days from the date hereof I shall issue a provisional certificate provided that no objections have been received within that period.

Nairobi,  
1st December, 1955.

H. I. STEVEN,  
*Registrar of Titles.*

## GENERAL NOTICE No. 2890

## VACANCIES IN UGANDA PROTECTORATE

## PUBLIC SERVICE COMMISSION

*Executive Engineers, Department of Hydrological Survey*

APPLICATIONS are invited for appointment on contract to vacant posts of Executive Engineers in the Department of Hydrological Survey, Uganda.

The initial salary offered will be in the Government A Scale and within the range £660 to £1,320 per annum, plus 10 per cent cost of living allowance.

The terms of appointment will be in accordance with the conditions of service applicable to *locally engaged* officers of the Uganda Civil Service.

Candidates should be between the ages of 25 and 35 and should hold a B.Sc. engineering degree or be an Associate Member of the Institute of Civil Engineers, or hold equivalent qualifications. Candidates must be experienced in land drainage or irrigation works, including design of canals, water control structures and weirs.

Applications should be addressed to the Secretary to the Public Service Commission, P.O. Box 107, Entebbe, to reach him not later than 31st December, 1955. A serving Government officer must apply through his head of department, enclosing three copies of an up-to-date personal record form (P/2). All other applicants must apply on Application Form PSC.3, copies of which are obtainable from the Secretary to the Commission.

*Hydrological Inspectors, Hydrological Survey Department*

APPLICATIONS are invited for appointment to contract posts of Hydrological Inspectors in the Hydrological Survey Department.

The initial salary offered will be in the Government C Scale within the range £540 to £924 per annum, plus 10 per cent cost of living allowance.

The terms of appointment will be in accordance with the conditions of service applicable to *locally engaged* officers of the Uganda Civil Service.

The duties of the posts include simple levelling survey work. Setting up of gauge and discharge sites and collection of gauge readings, measurement of discharges on rivers. Supervision of the execution of small land drainage and irrigation schemes.

All applications should be addressed to the Secretary to the Public Service Commission, P.O. Box 107, Entebbe, to reach him not later than 30th December, 1955. A serving Government officer must apply through his head of department, enclosing three copies of an up-to-date personal record form (P/2). All other applicants must apply on Application Form PSC.3, copies of which are obtainable from the Secretary to the Commission.

*Surveying Assistants, Hydrological Survey Department*

APPLICATIONS are invited for appointment to contract posts of Surveying Assistants in the Hydrological Survey Department.

The initial salary offered will be in the Government C Scale and within the range £540 to £924 per year, plus 10 per cent cost of living allowance.

The terms of appointment will be in accordance with the conditions of service applicable to *locally engaged* officers of the Uganda Civil Service.

The duties of the posts include surveying and levelling for irrigation and land drainage projects, plotting of work, setting out drainage and irrigation channels and the supervision of labour in finishing to grade and line. Candidates must be prepared to live in caravans or temporary quarters in the field. They should be between the ages of 25 to 35 years and preferably single. Experience in surveying and the preparation of working drawings is essential.

All applications should be addressed to the Secretary to the Public Service Commission, P.O. Box 107, Entebbe, to reach him not later than 30th December, 1955. A serving Government officer must apply through his head of department, enclosing three copies of an up-to-date personal record form (P/2). All other applicants must apply on Application Form PSC.3, copies of which are obtainable from the Secretary to the Commission.

## GENERAL NOTICE No. 2891

## VACANCIES IN KENYA GOVERNMENT

## CIVIL SERVICE COMMISSION

APPLICATIONS are invited for the following *contract* posts and should be submitted to the Secretary, Civil Service Commission, Private Bag, Nairobi, to reach him by 27th December, 1955.

Applicants in Government service should submit their applications on Form G.P.1, in triplicate, through their heads of departments, who should transmit them with their recommendations. Other applicants should submit their applications, in triplicate, on Form C.S.C.1, copies of which may be obtained from the Secretary or any Government department:—

*Executive Officers Grade II (two posts), Department of Trade and Supplies*

\*Salary Scale (C5—3):

£612 by £24 to £708: £798 by £30 to £888: £924 by £36 to £1,032.

Details of the posts are:—

(a) *Executive Officer, African Traders' Courses*

Candidates should be educated up to school certificate standard. The duties of the post will be to conduct training classes for African traders at Jeannes School, Kabete. A general knowledge of trading and ability to teach the elementary principles of commerce are desirable. A good knowledge of Swahili is also desirable.

(b) *Executive Officer, Field Officer, African Traders*

Candidates should be educated up to school certificate standard. The person appointed will be posted outside Nairobi, in the first place to Nyanza Province, and will be required to tour extensively. A good knowledge of trading would be an advantage. The nature of the duties renders a good knowledge of Swahili essential.

*Assistant Dairy Officer, Department of Veterinary Services*

\*Salary scale (C5—3):

£612 by £24 to £708: £798 by £30 to £888: £924 by £36 to £1,032.

Applicants must possess the National Diploma in Dairying or equivalent qualification. The duties of the post will entail field advisory work in European areas, or the organization of the dairy industry and teaching dairy husbandry in African areas.

*Office Assistants (two posts), Public Works Department*

\*Salary scale (C6—5):

£564 by £24 to £708.

Applicants should have a thorough knowledge of office routine and correspondence, and should have experience in controlling subordinates. They should be of school certificate standard of education. This notice replaces that which appeared in the Official Gazette of 29th November, 1955.

\*Credits in the salary scales up to a maximum of five increments may be allowed for previous experience.

In addition to the salaries for the above posts, a temporary and variable cost of living allowance is paid at the rate of 10 per cent of salary.

The principle conditions of service of contract appointments are as follows:—

(a) The term of engagement is initially for a period of 30 months, exclusive of any leave.

(b) A terminal gratuity will be payable on the completion of the contract at the rate of 13½ per cent of the total basic salary drawn.

(c) Leave will be granted at the rate of 36 to 60 days a year depending upon salary; free transport to an officer's home in East Africa for himself and his family will be allowed every two years when proceeding on leave. Alternatively, a free passage up to the cost of a passage to the United Kingdom may be granted every five years to an officer on a salary of not less than £918 a year, plus a free passage for his wife and one free adult passage towards the cost of his children's fares.

(d) When in occupation of Government quarters, rent will be charged up to a maximum of £78 a year (i.e. for unfurnished quarters), depending upon the type of quarter. When not in occupation of Government quarters, a house allowance will be payable at the rates in force from time to time.

(e) Free medical attention, not including hospital fees, will be provided by the Government medical service, when it can be made available, for an officer, his wife and unmarried dependent children under 21 years of age.

(f) An officer will be required to contribute under the appropriate Widows' and Orphans' Pension Scheme or to the Family Pensions Fund in accordance with the rules in force from time to time and the contributions may be recovered by deductions from his salary.

## GENERAL NOTICE No. 2892

## VACANCY IN KENYA GOVERNMENT

*Chairman of the Film Censorship Board*

APPLICATIONS are invited for the post of Chairman of the Film Censorship Board. Applicants should be resident in or near Nairobi and should be accessible at short notice.

The successful applicant will be appointed by His Excellency the Governor under the Cinematograph Films Censorship Rules, 1930, to be Chairman of the Film Censorship Board composed of honorary members. He will be required to arrange for the viewing of English and Indian films by members of the Board according to a roster. He will be required to preside over meetings of the Board, which are held on an average of five mornings per week and to issue the appropriate certificates and notices in respect of the films and in accordance with the findings of the Board. He will be responsible to the Minister for Defence, from whom he will receive instructions from time to time.

A consolidated salary of £700 per annum is attached to the post. The post does not carry any passage, medical and other privileges applicable to members of the Government service.

A knowledge of Hindustani is desirable.

The successful candidate will be required to take up his duties as from 1st January, 1956, and applications should be forwarded to the Secretary for Internal Security and Defence, P.O. Box 621, Nairobi, to reach him not later than 15th December, 1955.

## GENERAL NOTICE No. 2893

## VACANCIES IN TANGANYIKA TERRITORY

*Lecturer in Agriculture, Natural Resources School, Tengeru*

APPLICATIONS are invited for a vacancy of Lecturer in Agriculture in the Department of Agriculture. The post, which is pensionable, carries a salary scale of £588 by £24 to £684: £762 by £30 to £912 by £36 to £1,128 per annum. In addition, a temporary and variable cost of living allowance at the rate of 10 per cent of salary is payable. Leave and passages will be in accordance with the regulations. The successful candidate would be appointed on contract (unless he is already serving on pensionable terms in Government service) providing for the payment of a gratuity at the rate of 13½ per cent of salary, excluding cost of living allowance.

Applications from serving Government officers on salaries containing an inducement element will be considered and, if successful, would lead to an appointment on inducement terms.

Candidates must possess either the British National Diploma in Agriculture or Diploma in Agriculture from an approved agricultural college or training institution. In either case, candidates are required to have experience in East African or other tropical agriculture. Experience in teaching agricultural subjects is also desirable. The successful candidate would be responsible for the organization, planning and teaching, including practical field work, of the agricultural section of the Tengeru Natural Resources School. This is an institution which trains African youth of ages from about 17 to 23, with some eight years of previous schooling, in agriculture and other natural resources subjects.

Applications from candidates should be forwarded to the Secretary, Public Service Commission, Private Bag, Dar es Salaam, to arrive not later than 28th December, 1955. Serving Government officials should apply through their heads of departments, forwarding an up-to-date personal record form (P/2). All other applicants should submit their applications in writing, together with completed application form (P/1), which can be obtained on request from the Secretariat of the territory in which they are residing. All applications must be accompanied by such forms duly completed in duplicate.

*Masters and Mistresses for Government Indian Secondary Schools*

VACANCIES exist for graduates of Indian or Pakistani universities, preferably with teacher-training qualifications and previous teaching experience, to serve as masters and mistresses in Government Indian Secondary Schools. In the first instance, they would be employed at one of the schools in Dar es Salaam but would be liable to transfer to any of the other Government Indian Schools. The posts are pensionable and carry the salary scale B6-3 or B(W)6-3, i.e. £462 by £18 to £516 to £540: £588 by £24 to £684: £762 by £30 to £912 by £36 to £984 per annum. In addition to salary, a temporary cost of living allowance at the rate of 10 per cent of salary is payable at present.

Appointment would be on probation for two years in the first instance. The terms of appointment would be in accordance with the current conditions of service applicable to the Tanganyika Civil Service.

Applications are invited from candidates suitably qualified to specialize in the teaching of English, Gujarati and English, commercial subjects, physical education and some other subjects, preferably mathematics.

Applications in the prescribed form (P/1), which can be obtained on request from the Secretariat of the territory in which the candidates are residing, should be forwarded, in duplicate, to the Secretary, Public Service Commission, Private Bag, Dar es Salaam, to arrive not later than 21st December, 1955.

Candidates serving in Government assisted schools in the Territory should forward their applications through the manager of their school.

## GENERAL NOTICE No. 2894

## UKAMBA LIQUOR LICENSING COURT

DULY instructed by the Provincial Commissioner, Southern Province, Ngong, a special meeting of the Ukamba Liquor Licensing Court will be held at the office of the District Commissioner, Machakos, at 10 a.m. on Thursday, 22nd December, 1955.

The following application will be heard:—

*Non-spirituous Liquor On-licence*

Messrs. Mangalji Tarmohamed & Co., Plot No. 149, Section IV, Machakos.

C. CAMPBELL,

*Chairman,*

*Ukamba Liquor Licensing Court, Machakos.*

## GENERAL NOTICE No. 2895

## CITY COUNCIL OF NAIROBI

## 1954 SUPPLEMENTAL VALUATION ROLL

PURSUANT to the provisions of section 11 of the Local Government (Rating) Ordinance (Cap. 137), I hereby give notice that the Valuation Court appointed to examine the 1954 Supplemental Valuation Roll made in respect of property within the City of Nairobi has completed its examination of the said supplemental valuation roll and has made such alterations and amendments therein as it has deemed necessary, and that I have signed and certified the same and that the said supplemental roll will become fixed and binding upon all persons interested, who shall not, before Saturday, 7th January, 1956, appeal from the decision of the Valuation Court.

Nairobi,  
29th November, 1955.

E. McCULLY HUNTER,  
*Nairobi Valuation Court.*

## GENERAL NOTICE No. 2896

## CITY COUNCIL OF NAIROBI

## 1955 SUPPLEMENTAL VALUATION ROLL

PURSUANT to the provisions of section 11 of the Local Government (Rating) Ordinance (Cap. 137), I hereby give notice that the Valuation Court appointed to examine the 1955 Supplemental Valuation Roll made in respect of property within the City of Nairobi has completed its examination of the said supplemental valuation roll and has made such alterations and amendments therein as it has deemed necessary, and that I have signed and certified the same and that the said supplemental roll will become fixed and binding upon all persons interested, who shall not, before Saturday, 7th January, 1956, appeal from the decision of the Valuation Court.

Nairobi,  
29th November, 1955.

E. McCULLY HUNTER,  
*President, Nairobi Valuation Court.*

## GENERAL NOTICE No. 2897

## NYANZA COUNTY COUNCIL

## THE CONTROL OF GRASS FIRES ORDINANCE

(Cap. 185)

## ORDER

IN EXERCISE of the powers conferred by section 11 of the Control of Grass Fires Ordinance, the Nyanza County Council hereby declares a state of danger in respect of the whole of the county under its jurisdiction and orders as follows:—

1. The burning of vegetation is totally prohibited from the 1st January, 1956, until the 31st March, 1956 (both days inclusive) in all wards of the Council's district.

2. Provided that no part of the above Order shall apply to:

- (a) the East African Railways and Harbours Administration;
- (b) a manufacturer of sugar who wishes to burn standing sugar cane on his farm in order to facilitate the milling of such cane, provided he has given due prior notice of his intention to do so to the nearest police officer.

3. Provided further that temporary exemptions to the above Order may, in exceptional circumstances, be given by any member of the Council in respect of the Ward represented by him or by the Chairman of any Production Sub-Committee.

Kericho,  
2nd December, 1955.

E. D. BURRIDGE,  
*Acting Clerk of Council.*  
*Nyanza County Council.*



GENERAL NOTICE No. 2898

## TRANS NZOIA DISTRICT COUNCIL

ESTIMATES OF REVENUE AND EXPENDITURE FOR THE YEAR ENDING 31ST DECEMBER, 1956

THE following summary of estimates is hereby published pursuant to the provisions of section 120 (a) of the Local Government (District Councils) Ordinance (Cap. 140):—

| EXPENDITURE                        | £       | REVENUE                        | £       |
|------------------------------------|---------|--------------------------------|---------|
| Administration and General .. .. . | 6,973   | Administration Revenue .. .. . | 12,032  |
| Works Overheads .. .. .            | 6,855   | Sundry Revenue .. .. .         | 1,685   |
| Miscellaneous .. .. .              | 805     | Road Revenue .. .. .           | 22,606  |
| District Roads:                    |         | Estimated Deficit .. .. .      | 916     |
| Maintenance .. .. .                | 22,606  |                                |         |
|                                    | £37,239 |                                | £37,239 |

28th November, 1955.

P. J. SIMPSON,  
Executive Officer.

GENERAL NOTICE No. 2863

## THE CROWN LANDS ORDINANCE

## ELDORET—PETROL SERVICE STATIONS

TENDERS in terms of proposals for development are invited for the purpose of erecting two petrol service stations on surveyed plots as described in the Schedule hereto.

2. A plan of the plots may be seen at the Lands Department, Nairobi, and at the office of the Town Clerk, Eldoret, or may be obtained from the Director of Surveys, P.O. Box 1766, Nairobi, on payment of Sh. 3, post free.

*Tenders*

Sealed envelopes marked "Tender for Petrol Service Station" must be deposited with the District Commissioner, Eldoret, before noon on Wednesday, 28th December, 1955.

2. Each tender should be accompanied by a statement containing a detailed description of the proposal of the tenderer for the development of the site(s). Proposals must be in accordance with the Municipal By-laws and should be for petrol service stations on modern lines, with adequate provision on the sites for standing vehicles for their refuelling off the road. Points of ingress and egress should be indicated on a site plan.

3. The stand premium, annual rental, survey fees and fees payable in respect of the preparation and registration of the grant, together with the stamp duty (which is approximately 2 per cent of the stand premium and the rent) in respect of each grant, must be paid within 14 days of the demand therefor. Titles will be issued as soon as possible thereafter.

4. In the consideration of tenders, regard will be paid to the relative merits of the proposals and the financial sufficiency of the tenderer(s) to undertake them.

5. Tenders must be supported by a statement from an established oil company confirming the bona fides of the applicant(s) and including an undertaking that the tenderer(s), if successful, will be appointed authorized dealer(s) in those products of the company applicable to the use as a petrol station.

6. Should the tenderer(s) wish to apply for both plots, two separate tenders must be submitted.

7. The Commissioner does not undertake to accept any of the submitted tenders.

*General Conditions*

1. Grants will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and title will be issued under the Registration of Titles Ordinance. The term of grant will be 99 years from the first day of the month following the notification of approval of the grant.

2. The Governor or such person or authority as may be appointed for the purpose shall have the right to enter upon the plot and lay and have access to water mains, service pipes, telegraph or telephone wires and electric mains of all descriptions, whether overhead or underground, and the grantee shall not erect any building in such a way as to cover or interfere with any existing routes, main or service pipes or the telegraph or telephone wires and electric mains aforementioned.

3. No building shall be erected on the plot unless and until plans (including block plans showing the position of the buildings), drawings, elevations and specifications thereof shall have been previously approved by the Municipal Council, Eldoret, and by the Commissioner of Lands. Such plans, drawings, elevations and specifications shall be submitted in triplicate to the Local Authority within six months of the commencement of the term.

4. The grantee(s) shall not subdivide, sell, transfer, sub-lease, mortgage, charge or otherwise alienate or part with possession of the plot during the first ten years of the grant and only thereafter if the prior consent in writing of the Commissioner of Lands is obtained: such consent will not be given if the

approved development under the accepted tender has not been completed to the satisfaction of the Commissioner.

5. The grantee(s) shall be required to pay all rates, taxes, charges, duties, assessments or outgoings of whatever description as may be charged, assessed, levied or imposed by any Government or Local Authority upon the land leased to him/them or the buildings erected thereon, including any contribution or other sum paid by the Government in lieu thereof.

6. The grantee(s) shall pay to the Commissioner of Lands on demand such sum as the Commissioner may estimate to be the proportionate cost of constructing all roads and drains and sewers serving or adjoining the land.

7. The grantee(s) having paid the estimated proportionate cost of constructing roads and drains to serve the land shall, on completion of such construction and the ascertainment of the actual proportionate cost, either pay (within seven days of demand) or be refunded the amount by which the actual proportionate cost exceeds or falls short of the amount paid as aforesaid.

8. The grantee shall from time to time pay to the Commissioner of Lands on demand such proportion of the cost of maintaining all roads and drains serving or adjoining the land as the Commissioner may assess.

9. Should the Commissioner of Lands at any time require the said roads to be constructed to a higher standard the grantee(s) shall pay to the Commissioner on demand such proportion of the cost of such construction as the Commissioner may assess.

*Special Conditions*

1. Each grantee of a plot will be required to erect complete for use on the plot within 30 months from the date of commencement of the grant a petrol service station of approved design, constructed of approved permanent and fireproof materials on proper foundations in accordance with the development conditions imposed on the acceptance of the tender, and shall maintain the same, including the external paintwork in good and substantial condition during the term of the grant.

2. Each plot shall be used for the purpose of petrol storing, refuelling and oiling and greasing vehicles but not for normal garage repairs.

3. The external appearance including the colour of such buildings and lettering thereon requires approval by the Eldoret Municipal Council.

4. The grantee(s) shall not at any time during the term of the grant erect any buildings to cover more than 90 per centum of the area of the land or such lesser area as is laid down by the Local Authority in its By-laws.

5. No residence will be permitted on the land, though the grantee(s) may include in the buildings to be erected thereon, a shelter for a night watchman.

6. The grantee(s) shall not do or permit anything to be done on the land which may become a nuisance.

Nairobi,

18th November, 1955.

J. A. O'LOUGHLIN,  
for Commissioner of Lands.

## SCHEDULE

## Eldoret—Section XII

| Plot No. | Area (approx.) | Stand Premium | Annual Rent | Road Charges | Survey Fees |
|----------|----------------|---------------|-------------|--------------|-------------|
|          | <i>Acres</i>   | <i>Sh.</i>    | <i>Sh.</i>  | <i>Sh.</i>   | <i>Sh.</i>  |
| L.R.     |                |               |             |              |             |
| 778/103  | 0.2250         | 19,000        | 3,800       | 15,000       | 274/50      |
| 778/106  | 0.2296         | 17,000        | 3,400       | 6,000        | 271/50      |



## GENERAL NOTICE No. 2899

## ESTATE OF THE LATE PHILIP NICHOLSON DEARLOVE

TAKE NOTICE that all persons having any claims against or owing moneys to the above-named Philip Nicholson Dearlove of Ainabkoi in the Colony of Kenya, who died at Nakuru in the Colony of Kenya on the 30th day of October, 1955, are required to prove such claims before me, the undersigned, or to pay to me the amount due, as the case may be, on or before the 1st day of March, 1956, after which date the claims so proved will be paid and the estate distributed according to law.

ROBERT GEORGE RIDLEY,  
*Attorney of the Executor,*  
*c/o The Standard Bank of South Africa, Ltd.,*  
*P.O. Box 1303, Nairobi.*

## GENERAL NOTICE No. 2900

## MRS. HELEN CHRISTIE-MILLER, DECEASED

TAKE NOTICE that all persons having any claims against the estate of the above-named deceased, who died at Kensington, London, England, on the 5th day of November, 1955, are requested to lodge and prove details thereof with the undersigned on or before 14th January, 1956.

I. LEAN,  
*for Shapley, Barret, Allin & Company,*  
*Advocates for the Executor,*  
*P.O. Box 286, Nairobi.*  
Nairobi,  
28th November, 1955.

## GENERAL NOTICE No. 2901

IN HER MAJESTY'S SUPREME COURT OF KENYA  
AT NAIROBI

## PROBATE AND ADMINISTRATION

TAKE NOTICE that application having been made in this Court in—

## (1) CAUSE No. 318 OF 1955

By Messrs. Shapley, Barret, Allin & Company, advocates of Nairobi, for and on behalf of Harry Bentley and Philip Glynn Grylls, on behalf of Barclays Bank D.C.O., Nairobi, the personal representatives of the deceased, for a grant of letters of administration with will annexed of the estate of Stanley McKnight of Nairobi, who died at Nairobi on the 21st day of October, 1955.

## (2) CAUSE No. 319 OF 1955

By G. S. Sandhu, Esq., advocate of Nairobi, for and on behalf of Antonio Rodolfo Conrado De Sa of Nairobi, the nephew of the deceased, for a grant of letters of administration with will annexed of the estate of Jose Lourdes De Sa of Sangolda, Bardes, Goa, who died at Sangolda aforesaid on the 10th day of May, 1948.

## (3) CAUSE No. 320 OF 1955

By G. J. Amin, Esq., advocate of Nairobi, for and on behalf of Ishwerbhai Khushalbhair Patel of Nairobi, one of the attorneys of the widow of the deceased, for a grant of letters of administration intestate of the estate of Fulabhai Khushalbhair Patel of Nairobi, who died at Tarapur, India, on the 12th day of March, 1955.

## (4) CAUSE No. 324 OF 1955

By Messrs. Cockar & Cockar, advocates of Nairobi, for and on behalf of Shaffi Mohamed Darr of Nairobi, the son of the deceased, for a grant of letters of administration intestate of the estate of Fateh Mohamed Darr of Nairobi, who died at Nairobi on the 18th day of September, 1955.

## (5) CAUSE No. 325 OF 1955

By Messrs. Kaplan & Stratton, advocates of Nairobi, for and on behalf of Lily Simpson of Mombasa, the widow of the deceased, for a grant of letters of administration intestate of the estate of John William Simpson of Voi in the Colony of Kenya, who died at Mombasa on the 20th day of September, 1955.

## (6) CAUSE No. 326 OF 1955

By Dorothy May Pratt of Lower Kabete, Nairobi, the executrix named in the will of the deceased, for a grant of probate of the will of Felix Thomas Biet Pratt of Lower Kabete, Nairobi, who died at Lower Kabete on the 21st day of August, 1955.

This Court will proceed to issue the grant unless cause be shown to the contrary and appearance in this respect entered on or before the 20th day of December, 1955.

R. H. LOWNIE,  
*Deputy Registrar,*  
*H.M. Supreme Court of Kenya.*  
Nairobi,  
1st December, 1955.

Note.—The above-mentioned wills are deposited and open to inspection at the Court, Room No. 28, during office hours.

## GENERAL NOTICE No. 2902

## DAVID SILVER, DECEASED

NOTICE is hereby given pursuant to section 28 of the Trustees Ordinance (Cap. 36) that any person having a claim against or an interest in the estate of the late David Silver of Machakos in the Colony of Kenya, who died on the 16th day of November, 1954, is hereby required to send particulars in writing of his claim or interest to the undersigned before the 10th day of February, 1956, after which date the executor will distribute the estate among the persons entitled thereto, having regard only to the claims and interests of which he has had notice and will not as respects the property so distributed be liable to any person of whose claim he shall not then have had notice.

KAPLAN & STRATTON,  
*Advocates to the Executor,*  
*Queensway House,*  
*P.O. Box 111, Nairobi.*  
29th November, 1955.

## GENERAL NOTICE No. 2903

IN HER MAJESTY'S SUPREME COURT OF KENYA  
AT NAIROBI

## PROBATE AND ADMINISTRATION

## CAUSE No. 185 OF 1955

*In the matter of the estate of Amar Singh s/o Gangoo,*  
*deceased*

TAKE NOTICE that a grant of letters of administration to the estate of the above-named Amar Singh son of Gangoo, deceased, who died at Nairobi in the Colony of Kenya on the 13th day of June, 1955, was made to Parsini daughter of Munsha Singh, the widow of the said deceased, and that all persons having any claims against the estate of the said deceased are required to prove the same with the undersigned on or before the 31st day of December, 1955, after which date the claims so proved will be paid and the estate distributed according to law.

K. D. MAINI,  
*for Maini & Patel,*  
*Advocates for the Administratrix,*  
*Rahemtulla Trust Building,*  
*Government Road, Nairobi.*  
Nairobi,  
7th November, 1955.

## GENERAL NOTICE No. 2904

## PROBATE AND ADMINISTRATION

TAKE NOTICE that after 14 days from the date of this Gazette I intend to apply to H.M. Supreme Court at Nairobi for representation of the estates of the persons named in the second column of the Schedule hereto, who died on the dates respectively set forth against their names.

And further take notice that all persons having any claims against or interests in the estates of the said deceased persons are required to prove such claims or interests before me within two months from the date of this Gazette, after which date the claims and interests will be paid and satisfied and the several estates distributed according to law.

## SCHEDULE

| Public Trustee's Cause No. | Name of Deceased             | Address | Date of Death | Testate or Intestate |
|----------------------------|------------------------------|---------|---------------|----------------------|
| 86/55                      | Loris Scheid                 | Nairobi | 10-10-55      | Intestate            |
| 87/55                      | Lycurgus Peter Paul da Costa | Arusha  | 9-9-49        | Intestate            |

Nairobi,  
2nd December, 1955.

D. L. FINDLAY,  
*for Public Trustee.*

## GENERAL NOTICE No. 2905

## SHARIF MOHAMED, DECEASED

TAKE NOTICE that all persons having any claims against the estate of the above-named deceased, late of Kisumu in the Colony of Kenya, who died on the 16th day of February, 1954, at Kisumu aforesaid, are requested to lodge and prove details thereof with the undersigned on or before the 20th day of January, 1956, after which date the claims so proved will be considered for payment and the estate will be distributed according to law.

P. V. RAICHURA,  
*for Kohli & Patel,*  
*Advocates for the Administrator,*  
*P.O. Box 24, Kisumu.*  
Kisumu,  
30th November, 1955.

## GENERAL NOTICE No. 2906

IN HER MAJESTY'S SUPREME COURT OF KENYA  
AT ELDORET IN THE DISTRICT DELEGATE'S COURT

## PROBATE AND ADMINISTRATION

CAUSE No. 19 OF 1955

*Notice of application for grant of probate of the will of the late Brendan O'Shea of Eldoret in the Uasin Gishu District in the Colony of Kenya.*

TAKE NOTICE that application having been made in this Court by Marie Therese O'Shea, widow, of Eldoret in the Uasin Gishu District in the Colony of Kenya, and by John Victor Grant and Desmond Patrick O'Shea, both of Nairobi in the said Colony of Kenya, for grant of probate of the will of the late Brendan O'Shea of Eldoret in Uasin Gishu District, Kenya Colony, who died at Eldoret on the 22nd day of July, 1955. This Court will proceed to issue the same unless cause be shown to the contrary and appearance be entered in this respect on or before the 12th day of December, 1955.

K. S. FEW,  
District Delegate,

Eldoret, Districts of Uasin Gishu, Trans Nzoia,  
23rd November, 1955. Nandi, Elgeyo and Marakwet.

*Note.*—The above-named will is now deposited and open to inspection at the Court during office hours.

## GENERAL NOTICE No. 2907

## THE BANKRUPTCY ORDINANCE

## RECEIVING ORDER

*Debtor's name.*—Khetshi Padamshi.  
*Address.*—c/o P.O. Box 1144, Nairobi.  
*Description.*—Merchant.  
*Date of filing petition.*—30th November, 1955.  
*Court.*—H.M. Supreme Court of Kenya, Nairobi.  
*No. of matter.*—31 of 1955.  
*Date of order.*—30th November, 1955.  
*Whether debtor's or creditors' petition.*—Debtor's petition.  
*Act or acts of bankruptcy.*—Presentation of bankruptcy petition.

Nairobi, L. N. LEACH,  
2nd December, 1955. Deputy Official Receiver.

## GENERAL NOTICE No. 2908

## THE BANKRUPTCY ORDINANCE

## SECOND MEETING OF CREDITORS

*Debtor's name.*—George Edwin Gascoine.  
*Address.*—P.O. Broderick Falls.  
*Description.*—Company director.  
*Court.*—H.M. Supreme Court of Kenya, Nairobi.  
*No. of matter.*—24 of 1955.  
*Date of second meeting of creditors.*—12th December, 1955.  
*Hour.*—2.30 p.m.  
*Place.*—The Official Receiver's Office, Law Courts Building, Nairobi.

Nairobi, L. N. LEACH,  
2nd December, 1955. Deputy Official Receiver.

## GENERAL NOTICE No. 2909

## THE BANKRUPTCY ORDINANCE

## NOTICE OF DIVIDEND

*Debtor's name.*—Ali Mohamed s/o Peer Bux.  
*Address.*—P.O. Box 2467, Nairobi.  
*Description.*—Contractor.  
*Court.*—H.M. Supreme Court of Kenya, Nairobi.  
*No. of matter.*—33 of 1953.  
*Amount per £.*—Sh. 2.05.  
*First or final or otherwise.*—First and final.  
*When payable.*—7th December, 1955.  
*Where payable.*—Office of the Official Receiver, Law Courts Building, P.O. Box 231, Nairobi.

Nairobi, D. J. COWARD,  
29th November, 1955. Official Receiver.

## GENERAL NOTICE No. 2910

IN HER MAJESTY'S SUPREME COURT OF KENYA  
AT NAIROBI

-IN BANKRUPTCY CAUSE No. 37 OF 1953

*Re Jagjiwan Kalidas Patel, trading as National Cycle Mart, bankrupt*

THE bankrupt having applied to the Court for his discharge, the Court has fixed Friday the 13th day of January, 1956, at 10.30 o'clock in the forenoon at Nairobi for hearing the application.

R. H. LOWNIE,  
Deputy Registrar,

26th November, 1955. H.M. Supreme Court of Kenya.

## GENERAL NOTICE No. 2911

## THE BANKRUPTCY ORDINANCE

## NOTICE OF DIVIDEND

*Debtor's name.*—Atma Singh s/o Hukmi Ram.  
*Address.*—Plot No. 2389/46/1, Sheikh Road, Pangani, Nairobi.  
*Court.*—H.M. Supreme Court, Nairobi.  
*No. of matter.*—11 of 1953.  
*Amount per £.*—Cents 52.  
*First or final or otherwise.*—Second and final.  
*When payable.*—7th December, 1955.  
*Where payable.*—Office of the Official Receiver, Law Courts Building, P.O. Box 231, Nairobi.

Nairobi, D. J. COWARD,  
29th November, 1955. Official Receiver.

## GENERAL NOTICE No. 2912

SOUTH AFRICAN MUTUAL LIFE ASSURANCE SOCIETY  
MUTUALPARK, PINELANDS, C.P.

*Policies Nos. 882792/3, for Sh. 5,000 each, dated 25th September, 1952, respectively, on the life and the property of Matheus Miguel de Souza, and Policy No. 776863, for Sh. 43140, dated 26th January, 1951, on the life of Mervyn Innocent Franco de Souza, and the property of Matheus Miguel de Souza.*

NOTICE is hereby given that evidence of the loss or destruction of these policies has been submitted to the Society and any person in possession of the policies or claiming to have any interest therein should communicate immediately by registered post with the Society. Failing any such communication, certified copies of these policies (which shall be the sole evidence of the contracts) will be issued to the owner.

Pinelands, T. A. MURRAY,  
16th November, 1955. General Manager.

## GENERAL NOTICE No. 2913

## THE COMPANIES ORDINANCE

(Cap. 288)

PURSUANT to section 284, sub-section (3), of the above Ordinance, it is hereby notified that at the expiration of three months from the date hereof the name of the undermentioned company will, unless cause be shown to the contrary, be struck off the Register of Companies and the company will be dissolved:—

“V” Engineering Works, Limited.

Nairobi, D. J. COWARD,  
2nd December, 1955. Registrar of Companies.

## GENERAL NOTICE No. 2914

## THE COMPANIES ORDINANCE

## NOTICE OF DIVIDEND

*Name of company.*—M. Haider & Co., Ltd.  
*Address of registered office.*—Plot No. 2401, Victoria Street, Nairobi.  
*Court.*—H.M. Supreme Court of Kenya, Mombasa.  
*No. of matter.*—Mombasa Winding-up Proceedings No. 1 of 1953.  
*First or final or otherwise.*—First dividend.  
*Amount.*—Sh. 4 in the £.  
*When payable.*—8th December, 1955.  
*Where payable.*—The Official Receiver's Office, Law Courts Building, P.O. Box 231, Nairobi.

Nairobi, D. J. COWARD,  
2nd December, 1955. Official Receiver and Liquidator.

## GENERAL NOTICE No. 2915

## REVOCATION OF POWER OF ATTORNEY

NOTICE is hereby given that the power of attorney dated 20th September, 1945, executed and given by Hiranand Gidoomal on behalf of Messrs. J. H. Gidoomal to Girdharimal Metharam Tharani at Nairobi is hereby revoked and cancelled.

J. H. GIDOOMAL.

## GENERAL NOTICE No. 2916

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the business of provision store and wine merchants, heretofore carried on by Isher Singh Fateh Singh of Elburgon in the Colony of Kenya under the name and style of Elburgon Flour Mills on Plot No. 43 at Elburgon aforesaid has, as from the 1st day of October, 1955, been sold and transferred to Purshottam Govindbhai Patel, Gordhanbhai Ashabhai Patel, Shantilal Shankerbhai Patel and Kishabhai Ranchhodhbhai Patel, who will, as from the said date carry on the said business under the same name and style.

Address of the transferor is P.O. Box 24, Elburgon.

Address of the transferees is P.O. Box 428, Nakuru.

The transferees are not assuming nor do they intend to assume any liabilities incurred by the transferor in the said business up to and inclusive of the 30th day of September, 1955. All debts due to and owing by the transferor up to and inclusive of the 30th day of September, 1955, shall be received and paid by the said transferor.

F. X. DA GAMA ROSE,  
*Advocate for the Transferor and the  
Transferees, P.O. Box 696, Donald  
Avenue, Isher Singh's Building,  
Nakuru.*

Nakuru,  
29th November, 1955.

## GENERAL NOTICE No. 2917

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the business of a provision store heretofore carried on by Self Provision Stores Limited under the name and style of Self Provision Stores at Plot No. 209/1816, Victoria Street, Nairobi, in the Colony of Kenya, has from the 27th day of September, 1954, been sold and transferred to Dahyabhai Bawaji Patel and Kantilal Zaverbhai Patel, who will carry on the said business at the same place and under the name and style of Victoria Provision Stores, as from the 27th day of September, 1954.

The address of the transferor is P.O. Box 632, Nairobi.

The address of the transferees is P.O. Box 6703, Nairobi

The transferees do not assume nor do they intend to assume any liabilities of the transferor incurred in the said business up to but not including the 27th day of September, 1954, and the same will be paid and discharged by the Transferor. All claims relating to the period before the 27th day of September, 1954, should be submitted to both the transferor and the transferees at the addresses given above together with supporting invoices and statements.

CHITAN SAROOP,  
*Managing Director,  
Self Provision Stores Limited.*

Nairobi, DAHYABHAI BAWAJI PATEL.  
14th November, 1955. KANTILAL ZAVERBHAI PATEL.

## GENERAL NOTICE No. 2918

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the businesses of retail trade, hotelkeeper and butcheries carried on by Mohamed Sheikh under the firms name or style of Nyuki Store and Nyuki Hotel, on Plot No. F. 48, Nyuki Market Butchery at Stall No. 15 and Nyuki Market Store at Stall No. 19, African Location, Nanyuki, have, as from the 28th day of November, 1955, been transferred to Mrs. Amina Mohamed, wife of Mohamed Sheikh, who will carry on the said businesses under the same names or style and in the same premises.

The address of the transferor is P.O. Box 152, Nanyuki.

The address of the transferee is P.O. Box 152, Nanyuki.

All debts due and owing by the transferor will be received and paid by the transferee as from the 28th day of November, 1955.

MOHAMED SHEIKH,  
*Transferor.*

Nanyuki, AMINA MOHAMED SHEIKH,  
28th November, 1955. *Transferee.*

## GENERAL NOTICE No. 2919

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the business of a general dealer carried on by Cecilia Ella Henderson under the name and style of Hogg Antiques on L.R. No. 209/2437, Nairobi in the Colony of Kenya, has been sold and transferred to Mary Jackson as from the 1st day of February, 1956.

The address of the transferor is Dinham's Country Club, Limuru.

The address of the transferee is P.O. Box 677, Nairobi.

The transferee does not assume nor does she intend to assume the liabilities incurred by the transferor in the said business up to and including the 31st day of January, 1956.

Likewise all debts owing to the transferor up to and including the 31st day of January, 1956, should be paid to her.

The transferee will carry on the said business at the same place and address under the same name and style of Hogg Antiques.

CECILIA E. HENDERSON,  
*Transferor.*

Nairobi, M. JACKSON,  
28th November, 1955. *Transferee.*

## GENERAL NOTICE No. 2920

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the business of general hardware merchants and contractors, heretofore carried on by Madanlal Aggarwal s/o Atma Ram and Viraji Ramabhai Jethwa under the name or style of Rongai Contractors and Hardware Company at Plot No. 5699, Rongai Township, Kenya Colony, has, as from the 24th day of November, 1955, been sold and transferred to Atma Ram Bansi Ram, who will, as from the said date, carry on the said business under the name or style of Aggarwal Stores at the said Plot No. 5699, Rongai Township aforesaid.

*Name of business.*—Rongai Contractors and Hardware Company.

*Names and addresses of transferors:*

Madanlal Aggarwal son of Atma Ram, P.O. Box 4, Rongai.  
Viraji Ramabhai Jethwa, P.O. Box 4, Rongai.

*Name and address of transferee.*—Atma Ram Bansi Ram, P.O. Rongai.

All debts due to and owing by the transferors up to and including the 23rd day of November, 1955, will be received and paid by the said Madanlal Aggarwal son of Atma Ram and Viraji Ramabhai Jethwa.

The transferee is not assuming nor does he intend to assume any liability whatsoever incurred by the transferors in the said business up to and including the 23rd day of November, 1955.

MADANLAL AGGARWAL s/o ATMA RAM,  
VIRAJI RAMABHAI JETHWA,  
*Transferors.*

ATMA RAM BANSI RAM,  
*Transferee.*

## GENERAL NOTICE No. 2921

THE FRAUDULENT TRANSFER OF BUSINESSES  
ORDINANCE

NOTICE is hereby given that the business of general retail merchants carried on by Mangalbhaj K. Patel and Mathurbhai H. Patel, in partnership under the firm name or style of M. K. Patel & Co. at Plot No. 5, Timboroa, has been, as from the 22nd day of November, 1955, sold and transferred to Manoharlal Bansal and Satya Pal Mohindra of Eldoret, who will carry on the said business in the same premises under the name and style of Timboroa Stores.

The address of the transferor, Mathurbhai H. Patel is P.O. Box 514, Eldoret, and of the transferor, Mangalbhaj K. Patel, is P.O. Box 15, Kisumu.

The address of the transferees is P.O. Timboroa.

The transferees do not assume nor do they intend to assume any liabilities of the transferors incurred in the said business.

Eldoret, M. H. MALIK & CO.,  
23rd November, 1955. *Advocates for the Transferors  
and Transferees.*

## GENERAL NOTICE No. 2922

## REPUDIATION

I, Rattan Singh Panesar, of Sultan Hamud in the Colony of Kenya, hereby give notice that I will not be responsible for any debts or liabilities incurred by my sons, Dharam Singh Runjabi and Surjeet Singh Panesar, both of Eldoret, and that they have no authority of any kind enabling them to pledge my credit for any purpose whatsoever.

R. S. PANESAR.

## GENERAL NOTICE No. 2923

## THE CROWN LANDS ORDINANCE

## CITY OF NAIROBI—CITY SQUARE PLOTS

TENDERS in terms of proposals for development are invited for the leasehold of the surveyed plots listed in the Schedules to this notice. The plots are situated in the City Square in the area adjoining Government Road between Lugard Avenue and Whitehouse Road.

2. The purposes to which the plots may be put are described in the Schedules and include high-grade shops, offices and flats and a departmental store.

3. A plan of the sites may be inspected in the Lands Department, Nairobi, or a copy may be obtained at the office of the Director of Surveys, P.O. Box 1766, Nairobi, on payment of Sh. 4, post free.

*Conditions of Sale**(a) Tenders*

1. Sealed envelopes marked "Tenders for City Square" must be deposited with the undersigned before noon on 31st January, 1956.

2. Each tender should be accompanied by a statement indicating:—

(a) the detailed proposals of the tenderer for the development of the site or sites for which tender is made. Proposals must be in accordance with the City by-laws; no sketch plan should be submitted;

(b) the amount of capital available for development purposes together with a banker's letter in support.

3. The successful tenderers will be required to pay within 14 days of notification that their tenders have been accepted 25 per cent of the stand premium set out in the Schedules together with the proportionate amount of rent due to 31st December following.

4. The balance of the purchase price will be payable on demand prior to the issue of titles.

5. The survey fees and fees payable in respect of the preparation and registration of the title together with the stamp duty (which is approximately 2 per cent of the purchase price and the rent) in respect of the grant must be paid within seven days of the demand therefor. Titles will be issued as soon as convenient.

6. In the consideration of tenders regard will be paid to the relative merits of the proposals for construction both immediate and long term and the financial sufficiency of the tenderer to undertake such construction.

7. The stand premium and annual rent will be as laid down in the Schedules.

8. The Commissioner does not undertake to accept any tender.

9. Tenderers should indicate the order of preference for plots in accordance with the enumeration of the plan referred to above which may be inspected in the Lands Department.

*(b) General*

1. Grants will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and title will be issued under the Registration of Titles Ordinance. The term of the grant will be 99 years from the first day of the month following the notification of approval of the grant.

2. The Government or such person or authority as may be appointed for the purpose shall have the right to enter upon the plot and lay and have access to water mains, service pipes, telegraph or telephone wires and electric mains of all descriptions, whether overhead or underground and the grantee shall not erect any building in such a way as to cover or interfere with any existing routes, main or service pipes or the telegraph or telephone wires and electric mains aforementioned.

3. The grantee shall erect complete for use and occupation within three years of the date of commencement of the term of the grant an approved building in accordance with the terms of the successful tender of a design including block plans showing the position of the buildings, drawings and elevations, previously approved by the Commissioner of Lands and the City Council and shall maintain the same, including the external paintwork in good and substantial repair and condition during the continuance of the term of the grant. The grantee will be required to conform with the City by-laws in all respects and particular attention should be paid to the by-law relating to the maximum site coverage. All buildings in the area will be required to conform to a general architectural plan and successful tenderers will be required to consult with the Town Planning Advisory Panel appointed by the City Council before submitting plans.

4. The grantee shall not sell, transfer, sublease, charge or otherwise alienate or part with possession of the plot without the prior consent in writing of the Commissioner of Lands and such consent will not be given if the building prescribed by Condition No. 3 aforesaid has not been completed to the satisfaction of the Commissioner:

Provided, nevertheless, that the plot may with the prior consent in writing of the Commissioner of Lands be charged for the purpose of securing the repayment of any sum which the Commissioner may be satisfied is required by the grantee to enable him to fulfil his obligations under Condition No. 3 aforesaid.

5. The grantee shall be required to pay all rates, taxes, charges, duties, assessments or outgoings of whatever description as may be charged, assessed, levied or imposed by any Government or local authority upon the land or the buildings erected thereon including any contribution or other sum paid by the Government in lieu thereof.

6. The cost of the construction of roads, footpaths, drains and sewers to serve the plot shall be payable by the grantee on demand.

*Special Conditions Applicable to the Plots in Schedule No. 1*

1. That portion of the ground floor of each premises fronting on the street or footpath shall be used for the purposes of high-grade shops only. The remaining floors shall not be used for purposes other than offices or residential flats, except that the first floor may be used for the purposes of shops. The grantee shall not do or permit to be done on the premises anything which is or might become a nuisance.

2. The minimum street frontage for each separate shop shall be, unless otherwise agreed by the Commissioner of Lands, not less than 20 feet in width.

3. All buildings shall be designed and erected to a high architectural standard.

4. The external appearance, including the colour of such buildings and lettering thereon to be as approved by the Nairobi City Council.

5. Subject to compliance with the City Council's by-laws in connexion with height and coverage the maximum sum total of the plinth areas or coverages, measured at each and every floor level, permitted to a plot shall be 5.7 times the area of the plot in square feet. The floor area of any basement wholly below ground level may be excluded from the calculation. The City Council and the Commissioner of Lands may at their entire discretion permit architectural structures of a height in excess of 100 feet.

6. Successful tenders may be required to submit at their own expense simple models of the proposed buildings.

*Special Conditions Applicable to the Plot in Schedule No. 2*

1. The premises may be used for the purposes of a departmental store only.

2. All buildings shall be designed and erected to a high architectural standard.

3. The external appearance, including the colour of such buildings and lettering thereon to be as approved by the Nairobi City Council.

4. The height of the exterior walls shall not exceed 42 feet and thereafter any height of the buildings in excess of 42 feet otherwise than on the exterior walls shall be as the Commissioner of Lands and the City Council may approve with due regard to angles of light.

5. Successful tenderers may be required to submit at their own expense simple models of the proposed buildings.

Nairobi,

1st December, 1955.

A. W. HORNER,  
Commissioner of Lands.

## SCHEDULE NO. 1

| Plot No. | Area Approx. | Stand Premium | Annual Rental | Survey Fees |
|----------|--------------|---------------|---------------|-------------|
|          | <i>Acres</i> | <i>Sh.</i>    | <i>Sh.</i>    | <i>Sh.</i>  |
| L.R.     |              |               |               |             |
| 209/4287 | 0.227        | 162,500       | 32,500        | 191/50      |
| 209/4288 | 0.287        | 138,000       | 27,600        | 191/50      |
| 209/4291 | 0.1212       | 52,800        | 10,560        | 191/50      |
| 209/4292 | 0.1212       | 52,800        | 10,560        | 191/50      |
| 209/4293 | 0.287        | 112,500       | 22,500        | 191/50      |
| 209/4294 | 0.2583       | 123,750       | 24,750        | 191/50      |
| 209/4295 | 0.337        | 161,700       | 32,340        | 191/50      |
| 209/4296 | 0.337        | 139,650       | 27,930        | 191/50      |
| 209/4298 | 0.3053       | 133,000       | 26,600        | 191/50      |

## SCHEDULE NO. 2

| Plot No. | Area Approx. | Stand Premium | Annual Rental | Survey Fees |
|----------|--------------|---------------|---------------|-------------|
|          | <i>Acres</i> | <i>Sh.</i>    | <i>Sh.</i>    | <i>Sh.</i>  |
| L.R.     |              |               |               |             |
| 209/4297 | 0.2066       | 90,000        | 18,000        | 191/50      |



GENERAL NOTICE NO. 2804

## THE CROWN LANDS ORDINANCE

## MOMBASA—SECTION XXI

TENDERS in terms of proposals for development are invited for the leasehold of the surveyed plots listed in the Schedule to this notice.

2. The purposes to which the plots may be put are high-grade shops, offices and residence.

3. A plan of the sites may be inspected in the Lands Department, Nairobi, or a copy may be obtained at the office of the Director of Surveys, P.O. Box 1766, Nairobi, on payment on Sh. 4, post free.

## CONDITIONS OF SALE

## (a) Tenders

1. Sealed envelopes marked "Tenders for Section XXI, Mombasa" must be deposited with the undersigned before noon on 16th January, 1956.

2. Each tender should be accompanied by a statement indicating:—

(a) The detailed proposals of the tenderer for the development of the site or sites for which tender is made. The proposals must be in accordance with the Municipal By-laws. A sketch plan should be submitted.

(b) The amount of capital available for development purposes together with a banker's letter in support.

3. The successful tenderers will be required to pay within 14 days of notification that their tenders have been accepted 25 per cent of the stand premium set out in the Schedule, together with a proportionate amount of rent due to 31st December following.

4. The balance of the purchase price will be payable on demand prior to the issue of titles.

5. The survey fees and fees payable in respect of the preparation and registration of the title, together with the stamp duty (which is approximately 2 per cent of the purchase price and the rent) in respect of the grant must be paid within 14 days of the demand therefor. Titles will be issued as soon as conveniently may be.

6. In the consideration of tenders, regard will be paid to the relative merits of the proposals for construction both immediate and long term and the financial sufficiency of the tenderer to undertake such construction.

7. The stand premium and annual rent will be as laid down in the Schedule.

8. The Commissioner does not undertake to accept any tender.

9. Tenderers should indicate the order of preference for plots in accordance with the enumeration of the plan referred to above, which may be inspected in the Lands Department.

## (b) General

1. Grants will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and title will be issued under the Registration of Titles Ordinance. The term of the grant will be 99 years from the first day of the month following the notification of approval of the grant.

2. The Government or such person or authority as may be appointed for the purpose shall have the right to enter upon the plot and lay and have access to water mains, service pipes, telegraph or telephone wires and electric mains of all descriptions, whether overhead or underground and the grantee shall not erect any building in such a way as to cover or interfere with any existing routes, main or service pipes or the telegraph or telephone wires and electric mains aforementioned.

3. The grantee shall erect complete for use and occupation within two years of the date of commencement of the term of the grant an approved building in accordance with the terms of the successful tender of a design, including block plans showing the position of the buildings, drawings and elevations, previously approved by the Commissioner of Lands and the Municipal Board and shall maintain the same, including the external paintwork, in good and substantial repair and condition during the continuance of the term of the grant. The grantee will be required to conform with the Municipal By-laws in all respects.

4. The grantee shall not sell, transfer, sub-lease, charge or otherwise alienate or part with possession of the plot without the prior consent in writing of the Commissioner of Lands and such consent will not be given if the building prescribed by Condition No. 3 aforesaid has not been completed to the satisfaction of the Commissioner:

Provided nevertheless that the plot may with the prior consent in writing of the Commissioner of Lands be charged for the purpose of securing the repayment of any sum which the Commissioner may be satisfied is required by the grantee to enable him to fulfil his obligations under Condition No. 3 aforesaid.

5. The grantee shall be required to pay all rates, taxes, charges, duties, assessments or outgoings of whatever description as may be charged, assessed, levied or imposed by any Government or Local Authority upon the land or the buildings erected thereon, including any contribution or other sum paid by the Government in lieu thereof.

6. The cost of the construction of roads and sewers to serve the plot shall be payable by the grantee on demand.

## (c) Special Conditions

1. That portion of the ground floor of each premises fronting on the street or footpath shall be used for the purposes of high-grade shops only. The remaining floors shall not be used for purposes other than shops, offices or residential flats except with the specific previous consent in writing of the Commissioner of Lands. The grantee shall not do or permit to be done on the premises anything which is or might become a nuisance.

2. The minimum street frontage for each separate shop shall be, unless otherwise agreed by the Commissioner of Lands, not less than 20 ft. in width.

3. All buildings shall be designed and erected to a high architectural standard.

4. The external appearance, including the colour of such buildings and lettering thereon to be as approved by the Municipal Board of Mombasa.

Nairobi,

16th November, 1955.

J. D. HUNTER,

for Commissioner of Lands.

## SCHEDULE

| Plot No. | Area         | Stand Premium | Annual Rent | Survey Fees | Road and Sewers  |
|----------|--------------|---------------|-------------|-------------|------------------|
|          | <i>Acres</i> | <i>Sh.</i>    | <i>Sh.</i>  | <i>Sh.</i>  | <i>On Demand</i> |
| 171      | 0.1267       | 33,000        | 6,600       | 300         |                  |
| 396      | 0.2504       | 49,000        | 9,800       | 300         |                  |
| 397      | 0.2583       | 42,000        | 8,400       | 300         | "                |
| 398      | 0.2583       | 42,000        | 8,400       | 300         | "                |
| 399      | 0.2583       | 42,000        | 8,400       | 300         | "                |
| 400      | 0.2583       | 42,000        | 8,400       | 300         | "                |
| 401      | 0.2583       | 42,000        | 8,400       | 300         | "                |
| 402      | 0.3352       | 58,000        | 11,600      | 300         | "                |



## GENERAL NOTICE NO. 2797

## THE CROWN LANDS ORDINANCE

## NYERI TOWNSHIP—RESIDENTIAL PLOTS

NOTICE is hereby given that plots in Nyeri Township as described in the Schedule are available for alienation and applications are invited for the direct grants of the individual plots.

2. A plan of the plots may be seen at the office of the District Commissioner, Nyeri, and at the Public Map Office of the Survey Department, Nairobi, or may be obtained from the Director of Surveys, P.O. Box 1766, Nairobi, on payment of Sh. 6, post free.

3. Applications should be submitted to the Commissioner of Lands, Nairobi, through the District Commissioner, Nyeri, stating the plot required in order of preference.

4. Applications must be sent so as to reach the District Commissioner, Nyeri, not later than noon on Wednesday, 28th December, 1955.

5. Applications must *not* be sent direct to the Commissioner of Lands.

6. Applicants must enclose with their application their cheque for Sh. 1,000 as a deposit, which will be dealt with as follows:—

- (a) If the applicant is offered and takes up and pays for a plot within a period of seven days as required by Condition (a) (1) below, the deposit will be credited to him.
- (b) If the application is unsuccessful, the applicant's deposit will be returned to him.
- (c) If the application is successful and the applicant fails to take up and pay for the plot offered to him within a period of seven days as required by General Condition No. 1 below, the Commissioner of Lands may declare the deposit forfeited and the applicant shall have no further claim thereto.

## (a) General Conditions

1. Each allottee of a plot shall pay to the Commissioner of Lands within seven days of notification that his application has been approved, the assessed stand premium and proportion of annual rent together with the survey fees, the fees payable in respect of the preparation and registration of the grant (Sh. 220) and the stamp duty in respect of the grant (approximately 2 per cent of the stand premium and annual rent). In default of payment within the specified time, the Commissioner of Lands may cancel the allocation and the applicant shall have no further claim to the grant of the plot.

2. The grant will be issued in the name of the allottee as stated in the letter of application.

3. Grants will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and titles will be issued under the Registration of Titles Ordinance. The term of the grants will be 99 years from the first day of the month following the notification of the approval of the grant.

4. The application for any plot shall be deemed to be upon and subject to the conditions herein contained and the provisions of the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and in particular Part VII thereof.

## (b) Special Conditions

1. The grantee shall erect complete for occupation within 24 months of the date of the commencement of the term a building of approved design on proper foundations constructed of stone, burnt brick or concrete with roofing of tiles or other permanent materials approved by the Commissioner of Lands and shall maintain the same in good and substantial tenable repair and condition, including the external paintwork, during the continuance of the term.

2. No building shall be erected on any plot unless plans (including block plans showing the position of the buildings), drawings, elevations and specifications thereof shall have been approved by the Local Authority and by the Commissioner of Lands or such other person as he may appoint. Such plans, etc., shall be submitted in triplicate to the Clerk to the Aberdare County Council, Nanyuki, within six months of the date of the commencement of the term.

3. In the event of the grantee failing to comply with any condition herein contained, any proceedings that may be necessary will forthwith be instituted for the recovery of the land. Moneys that may have been paid in respect of the plot will be forfeited to the Crown.

4. No buildings erected on the said land may be occupied until the grantee shall have submitted a block plan with the position of such buildings clearly defined and showing a system of drainage for disposing of surface and sullage water on the said land and also for disposing of sewage by waterborne carriage to septic tank and soakage pit in each case to the satisfaction of the Local Authority and the Commissioner of Lands and the grantee shall also satisfy the Local Authority and the Commissioner of Lands that such systems of drainage have been properly constructed, such satisfaction in both cases to be expressed in writing.

5. The grantee shall at his own expense duly and suitably connect such drainage system with any town drainage system when in the opinion of the Local Authority the latter system is so far completed as to enable the grantee reasonably so to do.

6. Any building erected on the plot shall conform to a building line decided upon by the Local Authority.

7. The grantee shall not sell or transfer the plot nor enter into any mortgage charge (other than with the consent of the Commissioner of Lands for the raising of a loan for building purposes) or agreement for sale in respect thereof within ten years of the date of the commencement of the term.

8. Subject to Special Condition No. 7 the grantee shall not at any time during the continuance of the term of the grant subdivide the land or assign, sublet or otherwise dispose of any portion without prior consent in writing of the Governor.

9. All outbuildings, offices, etc., shall be properly sited and screened from view to the satisfaction of the Local Authority or such person as may be appointed for the purpose and shall be kept so screened during the continuance of the grant.

10. The Government or such person or authority as may be appointed for the purpose shall have the right to enter upon any plot and lay and have access to water mains, sewers, pipes and drains, telegraph and telephone wires and electric mains of all descriptions whether overhead or underground and the grantee shall not erect any building in such a way as to cover or interfere with any existing alignment of mains, sewers, or service pipes or the telegraph or telephone wires and electric mains aforementioned.

11. The grantee shall pay such rates, taxes, charges, duties, assessments or outgoings of whatever description as may be imposed, charged or assessed by any Government or Local Authority upon the land or buildings erected thereon including any contribution or other sum paid by the Government in lieu thereof.

12. The grantee shall pay to the Commissioner of Lands on demand such sum as the Commissioner may estimate to be the proportionate cost of constructing all roads and drains and sewers serving or adjoining the land.

13. The grantee having paid the estimated proportionate cost of constructing roads and drains to serve the land shall on completion of such construction and the ascertainment of the actual proportionate cost either pay (within seven days of demand) or be refunded the amount by which the actual proportionate cost exceeds or falls short of the amount paid as aforesaid.

14. The grantee shall from time to time pay to the Commissioner of Lands on demand such proportion of the cost of maintaining all roads and drains serving or adjoining the land as the Commissioner may assess.

15. Should the Commissioner of Lands at any time require the said roads to be constructed to a higher standard the grantee shall pay to the Commissioner on demand such proportion of the cost of such construction as the Commissioner may assess.

16. The plot shall be used for private residential purposes only and no other purpose whatsoever.

17. At no time during the term of the grant shall more than one private dwelling-house with necessary offices and outbuildings be erected on the plot.

18. The grantee shall not at any time during the term of the grant erect any buildings to cover more than 50 per centum of the area of the plot or such lesser area as may be laid down by the Local Authority in its by-laws.

Nairobi,  
18th November, 1955.

J. A. O'LOUGHLIN,  
for Commissioner of Lands.

## SCHEDULE

## Nyeri—Section XXII

| Plot No. | Area (approx.) | Stand Premium | Annual Rent | Roads and Drains Contribution | Survey Fees |
|----------|----------------|---------------|-------------|-------------------------------|-------------|
|          | <i>Acres</i>   | <i>Sh</i>     | <i>Sh</i>   | <i>Sh</i>                     | <i>Sh</i>   |
| 33       | 0.5005         | 1,100         | 220         | 2,437/50                      | 191/50      |
| 34       | 0.5005         | 1,100         | 220         | 2,287/10                      | 191/50      |
| 38       | 0.2501         | 550           | 110         | 1,143/75                      | 191/50      |
| 39       | 0.2501         | 550           | 110         | 1,220/00                      | 191/50      |
| 42       | 0.2945         | 640           | 128         | 1,220/00                      | 191/50      |
| 43       | 0.3472         | 760           | 152         | 1,525/00                      | 191/50      |
| 46       | 0.3472         | 760           | 152         | 1,525/00                      | 191/50      |
| 56       | 0.3332         | 720           | 144         | 1,300/00                      | 191/50      |
| 57       | 0.3332         | 720           | 144         | 1,625/00                      | 191/50      |

## GENERAL NOTICE No. 2737

## THE CROWN LANDS ORDINANCE

## PLOTS FOR SHOPS, OFFICES AND FLATS, SOTIK TOWNSHIP

NOTICE is hereby given that the plots in Sotik Township as described in the Schedule are available for alienation and applications are invited for the direct grants of individual plots.

A plan of the plots may be seen at the Public Map Office of the Survey Department, Nairobi, or at the office of the District Commissioner, Kericho, or may be had on application to the Director of Surveys, P.O. Box 1766, Nairobi, on payment of Sh. 4, post free.

Applications must be submitted to the Commissioner of Lands, Nairobi, through the District Commissioner, Kericho, not later than noon on the 17th day of January, 1956.

Applications must *not* be sent direct to the Commissioner of Lands.

*General Conditions*

1. Each allottee of a plot shall pay to the Commissioner of Lands within 14 days of notification that his application has been approved, the survey fees and the assessed stand premium in respect of the plot together with the proportion of rent, the fees payable in respect of the preparation and registration of the title (Sh. 220) and the stamp duty (which is approximately 2 per cent of the stand premium and annual rent) in respect of the grant. In default of payment within the specified time, the Commissioner of Lands may cancel the allocation and the applicant shall have no further claim to the grant of the plot.

2. The grantee shall be responsible for the estimated proportionate costs of roads and drains serving the plot and will be required to pay the same within 14 days of demand therefor.

3. The grant will be issued in the name of the allottee as stated in the letter of application.

4. Grants will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and titles will be issued under the Registration of Titles Ordinance. The term of the grants will be 99 years from the first day of the month following the notification of the approval of the grant.

5. The acceptance of any plot shall be deemed to be upon and subject to the conditions herein contained and the provisions of the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and in particular Part VII thereof.

*Special Conditions*

1. The grantee shall erect complete for occupation within 18 months of the date of the commencement of the term buildings of approved design on proper foundations constructed of stone, burnt brick or concrete with roofing of tiles or other permanent materials approved by the Commissioner of Lands and shall maintain the same (including the external paintwork) in good and substantial tenantable repair and condition.

2. The buildings shall not be erected on any plot until plans (including block plans showing the positions of the buildings and a system of drainage for disposing of sewage, surface and sullage water on the land), drawings, elevations and specifications thereof shall have been approved in writing by the Local Authority and the Commissioner of Lands. Such plans, drawings, elevations and specifications shall be submitted in triplicate to the Local Authority within three months of the date of the commencement of the term.

3. The land and buildings shall only be used for shops, offices and flats which shall not include a petrol station.

4. The buildings shall not cover more than 90 per centum of the area of the land or such lesser area as is laid down by the Local Authority in its by-laws if used for shop purposes only and not more than 75 per centum of the area of the land or such lesser area as is laid down in the Local Authority's by-laws if used for the combined purposes of shops, offices and flats.

5. The land shall not be used for the purpose of any trade or business which the Commissioner of Lands considers to be dangerous or offensive.

6. The grantee shall not subdivide the land.

7. The grantee shall not sell, transfer, sublet or charge the land or any part thereof except with the prior consent in writing of the Governor; no application for such consent (except in respect of a loan required for building purposes) will be considered until Special Condition No. 1 has been performed.

8. The grantee shall pay to the Commissioner of Lands on demand such sum as the Commissioner may estimate to be the proportionate cost of constructing all roads and drains and sewers serving or adjoining the land.

9. The grantee having been paid the estimated proportionate cost of constructing roads and drains to serve the land shall on completion of such construction and the ascertainment of the actual proportionate cost either pay (within seven days of demand) or be refunded the amount by which the actual proportionate cost exceeds or falls short of the amount paid as aforesaid.

10. The grantee shall from time to time pay to the Commissioner of Lands on demand such proportion of the cost of maintaining all roads and drains serving or adjoining the land as the Commissioner may assess.

11. Should the Commissioner of Lands at any time require the said roads to be constructed to a higher standard the grantee shall pay to the Commissioner on demand such proportion of the cost of such construction as the Commissioner may assess.

12. The grantee shall pay such rates, taxes, charges, duties, assessments or outgoings of whatever description as may be imposed, charged or assessed by any Government or Local Authority upon the land or the buildings erected thereon, including any contribution or other sum paid by the Governor in lieu thereof.

13. The Governor or such person or authority as may be appointed for the purpose shall have the right to enter upon the land and lay and have access to water mains, service pipes and drains, telephone or telegraph wires and electric mains of all descriptions whether overhead or underground and the grantee shall not erect any building in such a way as to cover or interfere with any existing alignments of main or service pipes or telephone or telegraph wires and electric mains.

Nairobi,  
8th November, 1955.

F. E. FIRMINGER,  
for Commissioner of Lands.

## SCHEDULE

*Sotik—Business-cum-Residential (Shop, Offices and Flats)*

| Plot No. | Area (approx.) | Stand Premium | Annual Rent | Road Charges (Initial Contribution) | Survey Fees |
|----------|----------------|---------------|-------------|-------------------------------------|-------------|
|          | <i>Acres</i>   | <i>Sh.</i>    | <i>Sh.</i>  | <i>Sh. Payable on demand</i>        | <i>Sh.</i>  |
| 20       | 0.1148         | 1,000         | 200         |                                     | 191/50      |
| 21       | 0.1148         | 1,000         | 200         |                                     | 191/50      |
| 22       | 0.1189         | 1,040         | 208         |                                     | 191/50      |
| 23       | 0.1221         | 1,060         | 212         |                                     | 191/50      |
| 24       | 0.1148         | 1,000         | 200         |                                     | 191/50      |
| 25       | 0.1274         | 1,400         | 280         |                                     | 191/50      |
| 39       | 0.1148         | 1,000         | 200         |                                     | 191/50      |
| 40       | 0.1148         | 1,000         | 200         |                                     | 191/50      |
| 41       | 0.1148         | 1,250         | 250         |                                     | 191/50      |

## GENERAL NOTICE No. 2924

## TOT PRODUCTS, LIMITED

IT IS notified for the general information of the public that I have with effect from the 30th day of September, 1955, severed my connexion with the above company and all interest including shares and liabilities have been transferred to and taken over by the said company from the said date of 30th September, 1955. This is, therefore, to notify that I would not hold myself liable to anybody for any obligation, debts and liabilities incurred by or on behalf of the said company thereafter, i.e., 30th September, 1955.

Nairobi,  
30th November, 1955.

SHAUKATALI KARMALI,  
P.O. Box 1631,  
Nairobi.

GENERAL NOTICE NO. 2735

## THE CROWN LANDS ORDINANCE

NAKURU—PLOT FOR SHOPS, SHOWROOMS, OFFICES  
AND PETROL STATION

NOTICE is hereby given that Plot L.R. No. 451/433 in Nakuru, is available for alienation and applications are invited for the direct grant of this plot.

2. A plan of the plot may be seen at the office of the Town Clerk, Nakuru, and at the Public Map Office of the Survey Department, Nairobi, or may be obtained from the Director of Surveys, P.O. Box 1766, Nairobi, on payment of Sh. 3 post free.

3. Applications should be submitted to the Commissioner of Lands, Nairobi, through the Town Clerk, Nakuru.

Applications must *not* be sent direct to the Commissioner of Lands.

4. Applications must be sent so as to reach the Town Clerk, Nakuru, not later than noon on Saturday, 17th December, 1955.

5. Applicants must enclose with their application their cheque for Sh. 1,000 in favour of the Commissioner of Lands as a deposit, which will be dealt with as follows:—

- (a) If the applicant is offered and takes up and pays for a plot within the period of fourteen days as required by General Condition No. 1 below, the deposit will be credited to him.
- (b) If the application is unsuccessful the applicant's deposit will be returned to him.
- (c) If the application is successful and the applicant fails to take up and pay for the plot offered to him within a period of fourteen days the Commissioner of Lands may declare the deposit forfeited and the applicant shall have no further claim thereto.

## (a) General Conditions

1. The allottee of the plot shall pay to the Commissioner of Lands within fourteen days of notification that his application has been approved, the assessed stand premium and proportion of annual rent, together with the survey fees, the fees payable in respect of the preparation and registration of the grant (Sh. 220) and the stamp duty in respect of the grant (approximately 2 per cent of the stand premium and annual rent). In default of payment within the specified time the purchaser shall have no further claim to the grant of the plot.

2. The grant will be issued in the name of the allottee as stated in the letter of application.

3. The grant will be made under the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and title will be issued under the Registration of Titles Ordinance. The term of the grant will be 99 years from the first day of the month following the notification of the approval of the grant.

## (b) Special Conditions

1. The grantee shall erect complete for occupation within twenty-four months of the date of the commencement of the term a building of approved design on proper foundations constructed of stone, burnt brick or concrete with roofing of tiles or other permanent materials approved by the Local Authority and the Commissioner of Lands and shall maintain the same in good and substantial tenable repair and condition, including the external paintwork, during the continuance of the term.

2. No building shall be erected on the plot unless plans (including block plans showing the position of the building and a system of drainage for disposing of sewage, surface and sullage water on the land), drawings, elevations and specifications thereof shall have been approved by the Local Authority and by the Commissioner of Lands or such other person as he may appoint. Such plans, etc., shall be submitted in triplicate to the Local Authority within six months of the date of the commencement of the term.

3. The grantee shall not subdivide the land.

4. The grantee shall not sell, transfer, sublet or charge the land or any part thereof except with the prior consent in writing of the Governor; no application for such consent (except in respect of a loan required for building purposes) will be considered until Special Condition No. 1 has been performed.

5. The Governor or such person or authority as may be appointed for the purpose shall have the right to enter upon the plot and lay and have access to water mains, sewers, pipes and drains, telegraph and telephone wires and electric mains of all descriptions, whether overhead or underground and the grantee shall not erect any building in such a way as to cover or interfere with any existing alignment of mains, sewers or service pipes or the telegraph or telephone wires and electric mains aforementioned.

6. The grantee shall pay such rates, taxes, charges, duties, assessments or outgoings of whatever description as may be imposed, charged or assessed by any Government or Local Authority upon the land or buildings erected thereon, including any contribution or other sum paid by the Government in lieu thereof.

7. The land shall only be used for shops, showrooms, offices and one petrol station, subject to the shops being constructed on the west and north sides of the plot only and the petrol filling station being sited at the north of the plot with no road access to the main trunk road.

8. The petrol filling station shall be used for the refuelling of vehicles and the storage of petrol and oil only.

9. The building erected on this plot (excluding the petrol filling station) shall have a minimum height of at least three storeys.

10. All applicants or their agents will be required to attend a meeting of the Town Planning Committee of the Municipal Council, Nakuru, who will specify conditions, with the object of securing co-ordinated development, relating to—

- (a) heights of canopies, of clere storey windows (if any) over canopies and of copings and cornices.
- (b) The placing of signs and advertisements.

11. Building proposals and plans in respect of the plot shall provide:—

- (a) On the ground floor a minimum of 50 per cent site coverage and a maximum of 90 per cent site coverage of the plot area.
- (b) (i) On the first floor if used for shop purposes a minimum of 50 per cent site coverage and a maximum of 90 per cent site coverage of the plot area.  
(ii) If used for office or similar purposes the site coverage shall be 50 per cent of the plot area.
- (c) All subsequent floors, a site coverage of 40 per cent of the plot area.

12. The cost of the construction of roads, drains and sewers serving the plot shall be payable by the grantee on demand.

13. The grantee shall from time to time pay to the Commissioner of Lands on demand such proportion of the cost of maintaining all roads, drains and sewers serving or adjoining the land as the Commissioner may assess.

14. Should the Commissioner of Lands or Local Authority at any time require the said roads to be constructed to a higher standard the grantee shall pay to the Commissioner on demand such proportion of the cost of such construction as the Commissioner may assess.

15. The grantee shall not do or permit anything to be done on the land which may become a nuisance.

16. The acceptance of the plot shall be deemed to be upon and subject to the conditions herein contained and the provisions of the Crown Lands Ordinance (Cap. 155 of the Revised Edition of the Laws of Kenya) and in particular Part VII thereof.

17. When submitting applications, those applying should set out the minimum amount of capital they are prepared to spend on development.

General Notice No. 2677 is hereby cancelled.

Nairobi,  
11th November, 1955.

J. A. O'LOUGHLIN,  
for Commissioner of Lands.

## SCHEDULE

Nakuru plot No.—L.R. 451/433.

Acres (approx.)—0.946.

Stand premium.—Sh. 37,000.

Annual rent.—Sh. 7,400

Survey fees.—Sh. 191/50.

## GENERAL NOTICE No. 2925

## KEREBE MINES, LIMITED

NOTICE is hereby given that under the powers contained in a debenture dated 13th July, 1954, the registered holder thereof on 18th November, 1955, appointed me, Angus Alexander Lawrie, Mansion House, Nairobi, receiver and manager of the property of Kerebe Mines, Limited, charged by the said debenture.

ANGUS A. LAWRIE,  
Receiver and Manager,  
P.O. Box 612,  
Nairobi.

## GENERAL NOTICE No. 2809

## IN HER MAJESTY'S COURT OF APPEAL FOR EASTERN AFRICA AT DAR ES SALAAM

## CAUSE LIST

Before Worley, P., Bacon, J.A., and Mahon, Acting C.J.

Monday, 5th December, 1955, at 10 a.m.

For Hearing: Civil Appeals

- No. 37/55 Keshavji Ramji and another vs. Mohanlal Ramji and another.  
No. 38/55 G. Balletto vs. Nelly Agata Strobino and another.

Tuesday, 6th December, 1955, at 9 a.m.

- No. 74/55 British East Africa Corporation Limited vs. Evarista Kashaga.  
No. 76/55 Hasham Suleman Ladha vs. V. G. Acharya.

Thursday, 8th December, 1955, at 9 a.m.

- No. 83/55 Alexander Gray Patterson and another vs. Badrudin Mohamed Saleh Kanji.  
No. 89/55 W. Czurn vs. Messrs. W. and D. Hickman Ltd.

Monday, 12th December, 1955, at 9 a.m.

For Hearing: Criminal Appeals

- No. 127/55 Regina vs. Dr. P. R. Dhavle.  
No. 194/55 Regina vs. Mathias s/o Mwomezi and two others.  
No. 355/55 Regina vs. Ahungu s/o Mgwira and two others.  
No. 364/55 Regina vs. Canision s/o Walwa.

Tuesday, 13th December, 1955, at 9 a.m.

- No. 377/55 Regina vs. Sumail s/o Nyampangula and another.  
No. 443/55 Regina vs. Nurdin Ali Remtulla and another.  
No. 303/55 Regina vs. Tontoli s/o Ndegeleje.  
No. 448/55 Regina vs. Ibrahim Rajabu.

Wednesday, 14th December, 1955, at 9 a.m.

Seven murder appeals which are getting ready.

Thursday, 15th December, 1955, and Friday, 16th December, 1955, at 9 a.m.

Any of the above appeals hearings whereof may not have been completed and/or any criminal or civil appeals record whereof may be ready by then.

## IN HER MAJESTY'S COURT OF APPEAL FOR EASTERN AFRICA AT ZANZIBAR

## CAUSE LIST

Monday, 19th December, 1955, at 9 a.m.

For Hearing: Criminal Appeals

- No. 462/55 Regina vs. Jaffer Hutu alias Mganga Mpemba.  
No. 468/55 Regina vs. Saleh bin Mohamed bin Salim Shikeli.

For Hearing: Civil Appeals

- No. 44/55 Salim bin Awadh bin Mbaruk Bakharesha vs. Ramadhan bin Awadh bin Mbaruk Bakharesha.  
No. 75/55 Mohamed Rashid Miskiri vs. Juma bin Nusura Mnyasa.  
No. 87/55 Mjasiri wa Mtashiwa vs. Asman wa Mtashiwa.  
No. 88/55 Omar bin Ndege Shirazi vs. Abdulla bin Ali bin Said El-Ghurabi by his guardian and next friend Ali bin Said El-Ghurabi.  
No. 86/55 Jethalal Valabhdas, trading as Jethalal Valabhdas and Co. vs. Frederick Ivan Andrew and Ivan George Carlyle Andrew, trading as Andrew and Co.

Nairobi,  
24th November, 1955.

M. D. DESAI,  
Acting Registrar.

## GENERAL NOTICE No. 2926

## THE FRAUDULENT TRANSFER OF BUSINESSES ORDINANCE

NOTICE is hereby given that the business of bar, tea room and restaurant, heretofore carried on by Daulat Khano wife of Husein Rahemtulla, under the name and style of Taj Grill Room at Plot No. 6, Section XXIX, Grigg Street, Eldoret, Kenya, has, as from the 17th day of October, 1955, been sold and transferred to Prabhubhai Rawjibhai Patel, who will carry on the said business at the same place and under the same name and style.

The address of the transferor is P.O. Box 564, Eldoret.

The address of the transferee is P.O. Box 235, Eldoret.

The transferee does not assume nor does he intend to assume any liabilities of the transferor incurred in the said business up to and including the 16th October, 1955, and the same will be paid and discharged by the transferor and likewise all debts due to the transferor in respect of the said business up to and including the said 16th October will be received by the transferor.

P. R. PATEL,  
for Daulat Khan Husein Rahemtulla,  
Transferor.

17th October, 1955.  
P. R. PATEL,  
Transferee.

## GENERAL NOTICE No. 2567

## TRANS NZOIA DISTRICT COUNCIL

## IMPOSITION OF HOSPITAL RATE

NOTICE is hereby given that the following motion will be put before Council at its meeting on 23rd December, 1955:—

"That a Hospital Rate of Sh. 40 be imposed for the year 1956 on every person of totally European origin or descent residing within the district, other than:—

- (1) A married woman living with her husband.
- (2) Any person under the age of 21 years.
- (3) Any person on a temporary visit to the district not exceeding six months in duration.
- (4) Any female person whose total income, as defined in the East African Income Tax (Management) Act, 1952, whether received in the Colony or not, did not exceed £120 in the calendar year 1955."

The burden of proof of exemption from the rate shall be on the person claiming exemption.

P. J. SIMPSON,  
Executive Officer,  
Council Offices,  
P.O. Box 104, Kitale.

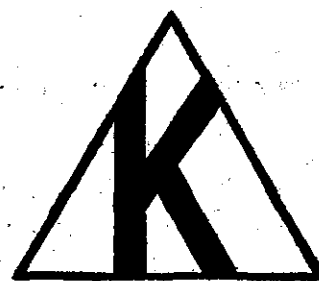
## GENERAL NOTICE No. 2927

## THE TRADE MARKS ORDINANCE

(Cap. 293)

TAKE NOTICE that applications have been made for the registration of the trade marks shown below, and that each such mark will be registered after 90 days from the date of this Gazette, provided no notice of opposition is received.

APPLICATION No. 6648      PART A      CLASS 1



(To be associated with No. 6649 and another.)

Registration of this trade mark shall give no right to the exclusive use of the letter "K".

Nature of goods.—All goods included in this class.

Name of applicant.—African Explosives and Chemical Industries Limited.

Address.—40, Fox Street, Johannesburg, Union of South Africa, and c/o Messrs. Kaplan & Stratton, advocates, P.O. Box 111, Nairobi.



APPLICATION No. B 6606 PART B

CLASS 24



The applicants admit that the device of an aeroplane (flying boat) is common to the trade in cotton piece goods.

*Nature of goods.*—Cotton piece goods.

*Name of applicant.*—David Whitehead & Sons Limited.

*Address.*—Lower Mill, Rawtenstall, Rossendale, County of Lancaster, England, and c/o Messrs. Kaplan & Stratton, advocates, P.O. Box 111, Nairobi.

APPLICATION No. 6770 PART A

CLASS 38

**ASKARIS**

*Nature of goods.*—Articles of clothing.

*Name of applicant.*—Foister, Clay & Ward Limited.

*Address.*—Frog Island, Leicester, and c/o Messrs. Kaplan & Stratton, advocates, P.O. Box 111, Nairobi.

APPLICATION No. 6772 PART A

CLASS A

**PLACIDYL**

*Nature of goods.*—Chemical substances prepared for use in medicine and pharmacy.

*Name of applicant.*—Abbott Laboratories.

*Address.*—14th Street and Sheridan Road, North Chicago, Illinois, U.S.A., and c/o Messrs. Kaplan & Stratton, advocates, P.O. Box 111, Nairobi.

APPLICATION No. 6773 PART A

CLASS 3

**ABIDEC**

*Nature of goods.*—Multi-vitamin preparation.

*Name of applicant.*—Parke, Davis & Company.

*Address.*—Foot of Joseph Campau Avenue, At the River, Detroit 32, Michigan, United States of America, and also of Staines Road, Hounslow, Middlesex, England, and c/o W. B. Cumming, Esq., advocate, P.O. Box 607, Nairobi.

APPLICATION No. 6776 PART A

CLASS 50

**BATTLESHIP**

*Nature of goods.*—Incandescent gas mantles (not metal).

*Name of applicant.*—Falk, Stadelmann & Company Limited.

*Address.*—Veritas House, 91, Farringdom Road, London, E.C.1, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6778 PART A

CLASS 38

**TREKKA**

*Nature of goods.*—Complete articles of clothing, knitted or woven or made of knitted or woven fabric.

*Name of applicant.*—Woodfords (Leicester) Limited.

*Address.*—Langton Street, Leicester, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6779

PART A

CLASS 48

**MEMOIRE**

*Nature of goods.*—Perfumes, toilet preparations (not medicated), cosmetic preparations, dentifrices, depilatory preparations, toilet articles (not included in other classes), sachets for use in waving the hair, soaps and essential oils.

*Name of applicant.*—Elizabeth Arden Limited.

*Address.*—25, Old Bond Street, London, W.1, and 76, Grosvenor Street, London, W.1, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6780

PART A

CLASS 3

**SETLERS**

*Nature of goods.*—Medicinal and pharmaceutical preparations.

*Name of applicant.*—Beecham (Northern) Limited.

*Address.*—68, Pall Mall, London, S.W., England, and Westfield Street, St. Helens, Lancashire, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6782

PART A

CLASS 43

**PORTESSA**

*Nature of goods.*—Beverages and preparations for making beverages.

*Name of applicant.*—H. E. Daniel Limited.

*Address.*—St. Bernard Works, Stoney Lane, Upper Norwood, London, S.E.19, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6783

PART A

CLASS 41

**SAFARI**

*Nature of goods.*—Furnitures.

*Name of applicant.*—Hounsfield Limited.

*Address.*—81, Morland Road, Croydon, Surrey, England, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6784

PART A

CLASS 43

**STAND FAST**

(To be associated with No. 2066.)

*Nature of goods.*—Whisky.

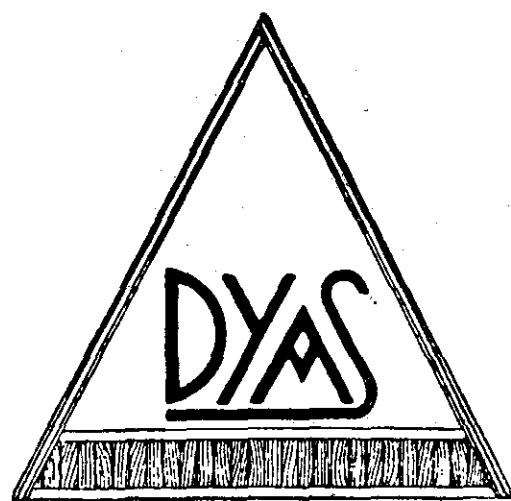
*Name of applicant.*—William Grant & Sons Limited.

*Address.*—The Glenfiddich Distillery, Dufftown, Scotland, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6790

PART A

CLASS 50



*Nature of goods.*—Wood products, especially plywood panels and plywood of all kinds and pressed laminated wood.

*Name of applicant.*—Slovácká Preklizkárna a Dyhárna Národní Podnik.

*Address.*—Ostroch, Czechoslovakia, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

APPLICATION No. 6792

PART A

CLASS 3

**DIDROMYCINE**

*Nature of goods.*—Chemical substances prepared for use in medicine and pharmacy.

*Name of applicant.*—Societe des Usines Chimiques Rhone-Poulenc.

*Address.*—21, Rue Jean-Goujon, Paris 8e, France, and c/o Messrs. Atkinson & Company, advocates, P.O. Box 29, Mombasa.

Nairobi.

1st December, 1955.

D. J. COWARD,  
Registrar of Trade Marks.